LL.B. (3 Year) Degree Programme – Year I, Semester I

CONSTITUTIONAL LAW I

Course Code: 26LLB102

Complete Academic Notes

Constitution of India: Foundations, Fundamental Rights, DPSP, Duties, Amendment and Emergency

Units I – VI • Every syllabus topic explained in detail

With definitions, explanations, examples, flowcharts, tables and landmark case laws

Criminal law references use the Bharatiya Nyaya Sanhita, 2023 and Bharatiya Nagarik Suraksha Sanhita, 2023, with old IPC/CrPC sections in brackets

Syllabus Checklist (Unit-wise Topic List)

The table below lists every topic of the prescribed syllabus (Course Code 26LLB102) in the exact syllabus order. Headings such as "Right to Equality (Article 14 to 18)" are treated as overview topics, and the sub-topics listed under them are explained separately. Each topic begins on a fresh page.

Unit	No.	Topic (as in the syllabus)	Status
UNIT I	1.1	Constitution –Meaning and Significance	Covered
	1.2	Evolution of Modern Constitutions	Covered
	1.3	Classification of Constitutions	Covered
	1.4	Constitutionalism	Covered
	1.5	Role of Drafting Committee of the Constituent Assembly	Covered
	1.6	Salient features of Indian Constitution	Covered
	1.7	Preamble to Indian Constitution – Importance and Amenability	Covered
	1.8	Nature of the Indian Constitution	Covered
	1.9	Union and Its Territories	Covered
	1.10	Citizenship	Covered
UNIT II	2.1	Fundamental Rights under Indian Constitution	Covered
	2.2	Classification of Fundamental Rights	Covered
	2.3	Definition of State under Article 12, 13 - Inviolability of Fundamental Rights	Covered
	2.4	Enforceability of Fundamental Rights	Covered
	2.5	Distinctions between pre and post Constitutional laws	Covered
	2.6	Doctrine of eclipse	Covered
	2.7	Doctrine of Severability	Covered
	2.8	Doctrine of waiver	Covered
	2.9	Doctrine of Judicial Review	Covered
	2.10	Right to Equality (Article 14 to 18)	Covered
	2.11	Equality before law and equal protection of laws	Covered
	2.12	Doctrine of Rule of law	Covered
	2.13	Doctrine of Reasonable Classification	Covered
	2.14	Right against arbitrariness	Covered
	2.15	New doctrine of Equality	Covered
	2.16	Right against discrimination	Covered
	2.17	Doctrine of Protective Discrimination	Covered
	2.18	Doctrine of Compensatory Discrimination	Covered
	2.19	Equality in Public Employment : Reservation	Covered
	2.20	Abolition of Untouchability	Covered
	2.21	Abolition of Titles	Covered
	2.22	Right to Freedom (Article 19 to 22 and 21A)	Covered

Unit	No.	Topic (as in the syllabus)	Status
	2.23	Six freedoms and the reasonable restriction on the exercise of those freedoms under Article 19	Covered
	2.24	Protection against Ex-post Facto Laws; Double Jeopardy; Compelled self incrimination	Covered
	2.25	Right to life and personal liberty	Covered
	2.26	Right to Education (86th amendment, 2002)	Covered
	2.27	Protection against Arrest and Detention in Certain cases	Covered
	2.28	Right against exploitation (Article 23 and 24)	Covered
	2.29	Prohibition against Forced Labour	Covered
	2.30	Prohibition against Child Labour	Covered
	2.31	Right to freedom of Religion (Article 25 to 28)	Covered
	2.32	Concept of Secularism	Covered
	2.33	Religious Freedom of the Individual and Religious Denominations	Covered
	2.34	Restrictions on right to freedom of religion; essential religious practices test	Covered
	2.35	Right to cultural and educational rights (Article 29 and 30)	Covered
	2.36	Rights of the minorities	Covered
	2.37	Right to Property (Article 19(1)(f), Article 31 and Article 300 (Constitutional policy before and after the 44th Amendment)	Covered
	2.38	Right to Constitutional Remedies (Article 32 and 226)	Covered
	2.39	Writ jurisdiction – meaning, nature, significance and kinds of writs	Covered
	2.40	Locus standi and Public Interest Litigation	Covered
	2.41	Limitations on Fundamental rights	Covered
UNIT III	3.1	Concept of Welfare State and Social Justice	Covered
	3.2	Meaning, Nature, Significance, Classification and Justiciability	Covered
	3.3	Directive Principles of State Policy vis-à-vis Fundamental Rights (Judicial Interpretation)	Covered
UNIT IV	4.1	Evolution of Fundamental Duties (42nd Amendment 1976)	Covered
	4.2	Relationship between fundamental rights and duties	Covered
	4.3	Legislative and Judicial efforts for enforcement of Fundamental Duties	Covered
UNIT V	5.1	Need of Amending the Constitution	Covered
	5.2	Methods and process of Amendment	Covered
	5.3	Doctrine of Basic Structure	Covered
UNIT VI	6.1	Need of Emergency Provisions	Covered
	6.2	Types of Emergency	Covered
	6.3	National Emergency	Covered
	6.4	Constitutional / State Emergency	Covered
	6.5	Financial Emergency	Covered
	6.6	Impact of Emergency on Federalism and Fundamental Rights (SR Bommai Case)	Covered

Table of Contents

Syllabus Checklist (Unit-wise Topic List) **2**

UNIT I: Introduction to Constitutional Law **6**

1.1 Constitution –Meaning and Significance 7
1.2 Evolution of Modern Constitutions 10
1.3 Classification of Constitutions 13
1.4 Constitutionalism 16
1.5 Role of Drafting Committee of the Constituent Assembly 19
1.6 Salient features of Indian Constitution 22
1.7 Preamble to Indian Constitution – Importance and Amenability 26
1.8 Nature of the Indian Constitution 30
1.9 Union and Its Territories 33
1.10 Citizenship 37

UNIT II: Fundamental Rights **41**

2.1 Fundamental Rights under Indian Constitution 43
2.2 Classification of Fundamental Rights 46
2.3 Definition of State under Article 12, 13 - Inviolability of Fundamental Rights 49
2.4 Enforceability of Fundamental Rights 53
2.5 Distinctions between pre and post Constitutional laws 56
2.6 Doctrine of eclipse 59
2.7 Doctrine of Severability 62
2.8 Doctrine of waiver 65
2.9 Doctrine of Judicial Review 68
2.10 Right to Equality (Article 14 to 18) 71
2.11 Equality before law and equal protection of laws 73
2.12 Doctrine of Rule of law 76
2.13 Doctrine of Reasonable Classification 79
2.14 Right against arbitrariness 82
2.15 New doctrine of Equality 85
2.16 Right against discrimination 88
2.17 Doctrine of Protective Discrimination 92
2.18 Doctrine of Compensatory Discrimination 95
2.19 Equality in Public Employment : Reservation 98
2.20 Abolition of Untouchability 102
2.21 Abolition of Titles 105
2.22 Right to Freedom (Article 19 to 22 and 21A) 108
2.23 Six freedoms and the reasonable restriction on the exercise of those freedoms under Article 19 110
2.24 Protection against Ex-post Facto Laws; Double Jeopardy; Compelled self incrimination 114
2.25 Right to life and personal liberty 118
2.26 Right to Education (86th amendment, 2002) 122
2.27 Protection against Arrest and Detention in Certain cases 125
2.28 Right against exploitation (Article 23 and 24) 129
2.29 Prohibition against Forced Labour 132
2.30 Prohibition against Child Labour 135
2.31 Right to freedom of Religion (Article 25 to 28) 138
2.32 Concept of Secularism 141
2.33 Religious Freedom of the Individual and Religious Denominations 144
2.34 Restrictions on right to freedom of religion; essential religious practices test 148

2.35 Right to cultural and educational rights (Article 29 and 30) 152
2.36 Rights of the minorities 155
2.37 Right to Property (Article 19(1)(f), Article 31 and Article 300 (Constitutional policy before and after the 44th Amendment) 158
2.38 Right to Constitutional Remedies (Article 32 and 226) 162
2.39 Writ jurisdiction – meaning, nature, significance and kinds of writs 166
2.40 Locus standi and Public Interest Litigation 170
2.41 Limitations on Fundamental rights 174

UNIT III: Directive Principles of State Policy 177
3.1 Concept of Welfare State and Social Justice 178
3.2 Meaning, Nature, Significance, Classification and Justiciability 181
3.3 Directive Principles of State Policy vis-à-vis Fundamental Rights (Judicial Interpretation) 184

UNIT IV: Fundamental Duties 188
4.1 Evolution of Fundamental Duties (42nd Amendment 1976) 189
4.2 Relationship between fundamental rights and duties 192
4.3 Legislative and Judicial efforts for enforcement of Fundamental Duties 195

UNIT V: Amendment of the Constitution 199
5.1 Need of Amending the Constitution 200
5.2 Methods and process of Amendment 203
5.3 Doctrine of Basic Structure 207

UNIT VI: Emergency Provisions 211
6.1 Need of Emergency Provisions 212
6.2 Types of Emergency 215
6.3 National Emergency 218
6.4 Constitutional / State Emergency 222
6.5 Financial Emergency 225
6.6 Impact of Emergency on Federalism and Fundamental Rights (SR Bommai Case) 228

References / Bibliography 231

UNIT I
Introduction to Constitutional Law

Topics in this Unit

1.1 Constitution –Meaning and Significance

1.2 Evolution of Modern Constitutions

1.3 Classification of Constitutions

1.4 Constitutionalism

1.5 Role of Drafting Committee of the Constituent Assembly

1.6 Salient features of Indian Constitution

1.7 Preamble to Indian Constitution – Importance and Amenability

1.8 Nature of the Indian Constitution

1.9 Union and Its Territories

1.10 Citizenship

Topic 1.1: Constitution –Meaning and Significance

Introduction

Every organised society needs basic rules about who will govern, how power will be used, and what rights the people will have. These basic rules are found in the **Constitution**. It is the highest law of the land: all other laws, and all actions of the Government, must conform to it. For a law student, the Constitution is the starting point of the entire legal system, because every statute, rule and order draws its validity from it.

Definition

> A **Constitution** is the fundamental law of a State that establishes its main organs (legislature, executive and judiciary), distributes powers among them, defines the relationship between the State and its citizens, and guarantees basic rights.

> **K.C. Wheare:** a constitution is "the collection of legal rules which establish and regulate or govern the government".

> **Thomas Paine:** "A constitution is not the act of a government, but of a people constituting a government."

Detailed Explanation

1. Meaning in Two Senses

1. **Wider sense:** the whole system of rules (written or unwritten, legal or conventional) by which a country is governed. In this sense, the United Kingdom has a constitution even though it has no single written document.
2. **Narrower sense:** a single written document, adopted by a special body, that has higher legal authority than ordinary law. The Constitution of India is a constitution in this sense.

2. Contents of a Constitution

1. Structure of government: legislature, executive, judiciary.
2. Distribution of powers: between organs (separation of powers) and between levels of government (federalism).
3. Fundamental rights of individuals and limits on State power.
4. Principles of State policy and national goals.
5. Procedure for amending the constitution.
6. Special provisions such as emergency powers.

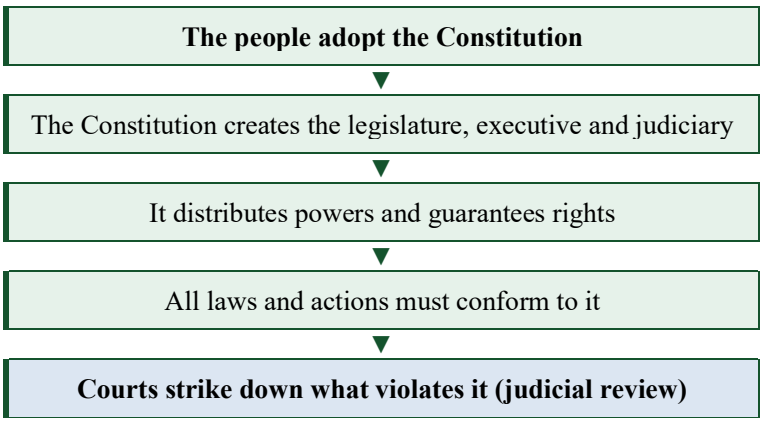
3. Constitution and Ordinary Law

Point	Constitution	Ordinary law
Source	Constituent Assembly or the people	Legislature created by the Constitution
Status	Supreme, fundamental law	Subordinate to the Constitution
Amendment	Special procedure (Art 368)	Ordinary legislative procedure
Validity	Self-validating	Valid only if consistent with the Constitution
Example	Constitution of India, 1950	Indian Contract Act, 1872

4. Significance of a Constitution

1. **Source of legitimacy:** it gives legal authority to the Government and its organs.
2. **Limits power:** it prevents arbitrary use of power by setting limits on every organ (constitutionalism).
3. **Protects rights:** it guarantees fundamental rights against the State and gives remedies (Arts 32, 226).
4. **Distributes power:** it divides power between the Union and the States, and among the legislature, executive and judiciary.
5. **Expresses national ideals:** the Preamble declares justice, liberty, equality and fraternity as national goals.
6. **Provides stability and continuity:** it creates a stable framework that survives changes of government.
7. **Enables social transformation:** the Indian Constitution is a tool for social change (DPSP, reservation, abolition of untouchability).
8. **Supremacy and judicial review:** courts can strike down laws that violate the Constitution.

Flowchart: The Constitution as the supreme law



Examples

- Parliament passes a law that takes away the right of citizens to speak against the Government. The courts can declare it void because it violates Article 19(1)(a).
- The Constitution decides that "police" is a State subject; so ordinarily, each State legislature makes laws on police.

Case Laws

Case Law: Marbury v Madison

Year: 1803 **Court:** Supreme Court of the United States

Facts / Background: Shortly before leaving office, President John Adams appointed William Marbury as a justice of the peace, but his commission was not delivered. The new Secretary of State, James Madison, refused to deliver it. Marbury applied directly to the Supreme Court for a writ of mandamus under a section of the Judiciary Act, 1789.

Legal Issue: Can the Supreme Court declare an Act of Congress void if it conflicts with the Constitution?

Court's Decision / What the Court Held: Chief Justice John Marshall held that the section of the Judiciary Act that gave the Supreme Court original jurisdiction to issue mandamus in such a case was contrary to the Constitution and therefore void. A written constitution is the fundamental and paramount law of the nation, and it is the duty of the judiciary to say what the law is. A law repugnant to the Constitution is void.

Relevance to the Topic: The case established the supremacy of a written constitution and the power of judicial review, both of which are basic features of the Indian Constitution.

Important Points

- A constitution is the fundamental, supreme law of a State.
- It creates and limits the organs of government and protects rights.
- The Constitution of India was adopted on 26 November 1949 and came into force on 26 January 1950.
- All laws must conform to the Constitution; courts can strike down inconsistent laws (*Marbury v Madison*, 1803).

Remember: The Constitution is the source of all governmental power in India; no organ is above it.

Topic 1.2: Evolution of Modern Constitutions

Introduction

The idea that government must be limited by a supreme law developed over many centuries. Modern constitutions are the product of struggles against absolute monarchy, revolutions, the growth of democracy and the movement for human rights. Studying this evolution helps us understand why the Indian Constitution contains the features it does.

Definition

> The **evolution of modern constitutions** refers to the historical development of the idea and practice of written, supreme and rights-protecting constitutions, from early charters limiting royal power to the comprehensive constitutions of the twentieth century.

Detailed Explanation

1. Early Ideas

1. **Ancient Greece:** Aristotle studied the constitutions of many Greek city-states and classified governments (monarchy, aristocracy, polity, and their corrupt forms).
2. **Roman Republic:** separation of offices and checks among consuls, Senate and assemblies.
3. **Ancient India:** the concept of *dharma* bound even the king; the king was expected to rule according to law and the welfare of the people (*raja dharma*).

2. English Constitutional Development

1. **Magna Carta (1215):** King John agreed that no free man would be imprisoned or deprived of property except by the lawful judgment of his peers or the law of the land. It is the root of the rule of law.
2. **Petition of Right (1628):** limited the King's power to tax and imprison without law.
3. **Habeas Corpus Act (1679):** protected against unlawful detention.
4. **Bill of Rights (1689):** established parliamentary supremacy after the Glorious Revolution.
5. **Development of conventions:** cabinet government, collective responsibility and a constitutional monarchy.

3. Influence of Political Thinkers

Thinker	Idea	Influence
John Locke	Government by consent; natural rights to life, liberty and property	Fundamental rights; limited government

Thinker	Idea	Influence
Montesquieu	Separation of powers	Distribution of power among organs
Rousseau	Social contract; popular sovereignty	"We, the People"
A.V. Dicey	Rule of law	Equality before law (Art 14)

4. The American and French Revolutions

1. **US Declaration of Independence (1776)** and **US Constitution (1787):** the first modern written constitution, with federalism, separation of powers and checks and balances. The **Bill of Rights (1791)** added fundamental rights. *Marbury v Madison* (1803) established judicial review.
2. **French Declaration of the Rights of Man and of the Citizen (1789):** proclaimed liberty, equality and fraternity, and the rights of the citizen.

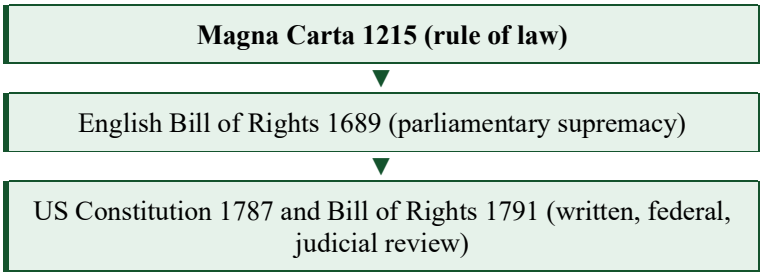
5. Nineteenth and Twentieth Centuries

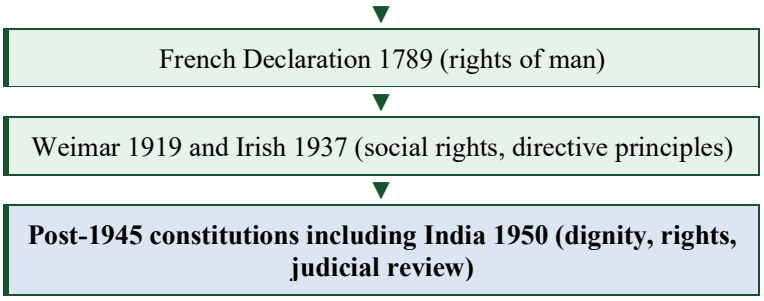
1. Spread of written constitutions in Europe and Latin America.
2. **Weimar Constitution of Germany (1919):** included social and economic rights, and emergency powers.
3. **Irish Constitution (1937):** included Directive Principles of Social Policy, which inspired Part IV of the Indian Constitution.
4. **After the Second World War:** the Universal Declaration of Human Rights (1948), the German Basic Law (1949), and constitutions of newly independent countries emphasised human dignity, judicial review and constitutional courts.

6. Development of the Indian Constitution

1. Regulating Act, 1773 to the Government of India Act, 1935 (gradual introduction of representative government and federalism).
2. Demand for a Constituent Assembly by the Indian National Congress (1934–35).
3. Cabinet Mission Plan (1946): the Constituent Assembly was set up; its first meeting was on 9 December 1946.
4. Adoption on 26 November 1949; commencement on 26 January 1950.

Flowchart: Evolution of modern constitutions





Examples

- Article 21 ("No person shall be deprived of his life or personal liberty except according to procedure established by law") reflects the idea of Magna Carta and the "due process" clauses of the US Constitution.
- Part IV (DPSP) of the Indian Constitution reflects the influence of the Irish Constitution.

Case Laws

This is a historical topic, and there is no single case law that deals with it directly. The influence of foreign constitutional developments is reflected in Indian cases discussed in later topics, such as *A.K. Gopalan v State of Madras* (1950) and *Maneka Gandhi v Union of India* (1978), where the Supreme Court compared "procedure established by law" with the American "due process of law" (Topic 2.25).

Important Points

- Modern constitutionalism began with Magna Carta (1215) and developed through English, American and French experience.
- The US Constitution (1787) was the first modern written constitution.
- The Irish Constitution (1937) inspired the Directive Principles in India.
- The Indian Constitution drew on all these developments and on the Government of India Act, 1935.

Remember: The Indian Constitution is a borrowed but adapted document: it combines ideas from many constitutions with Indian conditions.

Topic 1.3: Classification of Constitutions

Introduction

Constitutions differ widely in form, content and working. Political scientists classify them into types, such as written or unwritten, rigid or flexible, federal or unitary. These classifications help us understand the nature of a particular constitution and compare it with others. The Indian Constitution often combines features of different types.

Definition

> **Classification of constitutions** is the grouping of constitutions into types on the basis of features such as form (written/unwritten), method of amendment (rigid/flexible), distribution of power (federal/unitary) and system of executive (parliamentary/presidential).

Detailed Explanation

1. Written and Unwritten Constitutions

1. **Written:** contained in a single document or a set of documents adopted at a particular time, e.g. the USA (1787) and India (1950).
2. **Unwritten (uncodified):** made up of statutes, judicial decisions, conventions and customs, e.g. the United Kingdom.
3. The distinction is not absolute: written constitutions also develop through conventions and judicial decisions, and unwritten constitutions include written statutes.

2. Rigid and Flexible Constitutions

1. **Rigid:** requires a special procedure for amendment, more difficult than ordinary law-making (e.g. the USA, where amendments require two-thirds of Congress and ratification by three-fourths of the States).
2. **Flexible:** can be amended by the ordinary law-making process (e.g. the UK).
3. **India:** partly rigid and partly flexible (Art 368: simple majority, special majority, and special majority with ratification by half the States).

3. Federal and Unitary Constitutions

1. **Federal:** power is divided between a central government and regional governments, each independent in its sphere (e.g. the USA, Australia, Canada).
2. **Unitary:** all power is concentrated in the central government, which may delegate powers to local units (e.g. the UK, France).
3. **India:** federal with a strong unitary bias (quasi-federal), described as a "Union of States" (Art 1).

4. Parliamentary and Presidential Constitutions

1. **Parliamentary:** the executive is drawn from and responsible to the legislature (e.g. the UK, India).
2. **Presidential:** the executive is separate from and not responsible to the legislature (e.g. the USA).

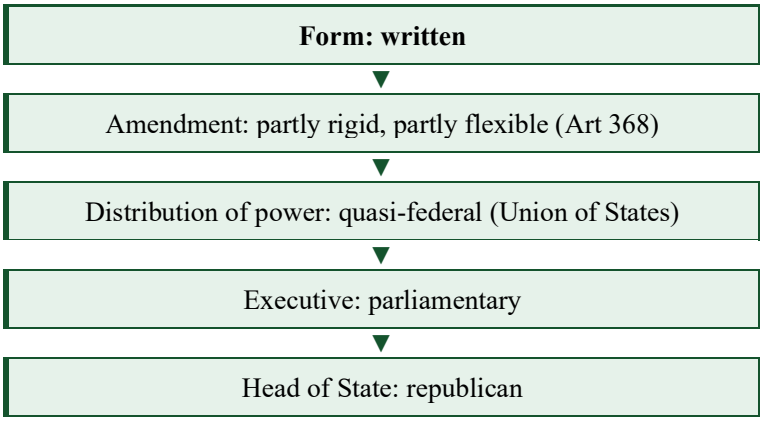
5. Other Classifications

Basis	Types	Example
Origin	Evolved / enacted	UK (evolved); India (enacted)
Head of State	Monarchical / republican	UK (monarchy); India (republic)
Sovereignty	Parliamentary sovereignty / constitutional supremacy	UK / India and USA
Nature of rights	With bill of rights / without	India (Part III) / Australia (no comprehensive bill of rights)
Political system	Democratic / authoritarian	Based on elections and freedoms

6. Position of the Indian Constitution

Classification	Indian position
Written or unwritten	Written (the lengthiest in the world)
Rigid or flexible	Partly rigid, partly flexible
Federal or unitary	Federal with unitary features (quasi-federal)
Parliamentary or presidential	Parliamentary
Monarchical or republican	Republican (elected President)
Sovereignty	Constitutional supremacy, with judicial review

Flowchart: Classifying the Indian Constitution



▼

Supremacy: Constitution supreme, subject to judicial review

Examples

- Parliament can create a new State by a simple majority (Arts 2–4), showing flexibility, but changes in the distribution of legislative powers need ratification by half the States, showing rigidity.
- The President of India is elected, which makes India a republic, unlike the UK, where the head of State is a hereditary monarch.

Case Laws

There is no case law dealing specifically with the general classification of constitutions. However, the classification of the Indian Constitution as federal or unitary has been discussed in *State of West Bengal v Union of India* (1962), explained under Topic 1.8 (Nature of the Indian Constitution), and in *S.R. Bommai v Union of India* (1994), explained under Unit VI.

Important Points

- Constitutions are classified as written/unwritten, rigid/flexible, federal/unitary, parliamentary/presidential and monarchical/republican.
- India's Constitution is written, partly rigid and partly flexible, quasi-federal, parliamentary and republican.
- The categories are not watertight; most constitutions combine features.

Remember: The Indian Constitution is best described as a mixture of types, adapted to Indian needs.

Topic 1.4: Constitutionalism

Introduction

Having a written constitution does not automatically mean that a country is governed according to it. Some countries have constitutions on paper but are ruled arbitrarily. **Constitutionalism** means that the government actually respects the limits placed on it by the constitution. It is the idea of "limited government" under law, and it is the soul of a democratic constitution.

Definition

> **Constitutionalism** is the principle that the powers of government are derived from, and limited by, a constitution, so that government acts according to law and cannot exercise power arbitrarily.

> Prof. **Carl J. Friedrich:** constitutionalism means "a system of effective, regularised restraints upon governmental action".

Detailed Explanation

1. Constitution and Constitutionalism Distinguished

Point	Constitution	Constitutionalism
Nature	A document or set of rules	A principle or philosophy
Meaning	Structure and powers of government	Limits on government power in practice
Existence	Every State may have one	Exists only where limits are effective
Example	Even authoritarian States have constitutions	Present where courts can check abuses of power

2. Elements of Constitutionalism

1. **Limited government:** every organ has defined powers and cannot exceed them.
2. **Rule of law:** government according to law, not the will of rulers.
3. **Separation of powers:** division of power among the legislature, executive and judiciary, with checks and balances.
4. **Fundamental rights:** individual rights that the State cannot violate.
5. **Independent judiciary and judicial review:** courts can strike down unconstitutional actions.
6. **Accountability:** free elections, a responsible executive, a free press.
7. **Federalism:** division of power between the Union and the States.
8. **Limited amending power:** even the power to amend cannot destroy the basic structure.

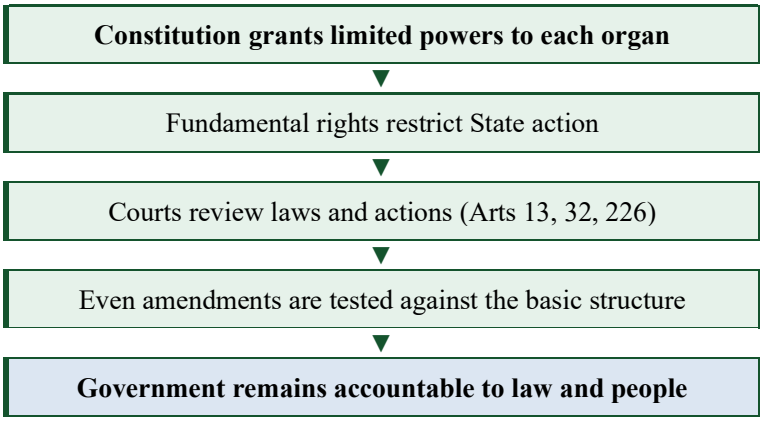
3. Constitutionalism in India

1. Fundamental rights in Part III and their enforcement through Arts 32 and 226.
2. Judicial review (Art 13).
3. The basic structure doctrine limits the amending power (*Kesavananda Bharati*, 1973).
4. Independent institutions: the Election Commission, CAG, UPSC.
5. Federal distribution of powers.
6. Emergency safeguards after the 44th Amendment (1978).

4. Constitutional Morality

Constitutional morality means respect for constitutional norms and values by those in power, even where the law does not expressly require it. Dr. B.R. Ambedkar said in the Constituent Assembly that constitutional morality "is not a natural sentiment. It has to be cultivated." The Supreme Court has used the idea in cases such as *Manoj Narula v Union of India* (2014) and *Navtej Singh Johar v Union of India* (2018).

Flowchart: How constitutionalism operates in India



Examples

- During the Emergency of 1975–77, fundamental rights were suspended and many persons were detained without trial. The 44th Amendment (1978) added safeguards to prevent such misuse, which strengthened constitutionalism.
- If Parliament passes a constitutional amendment removing judicial review, the courts can strike it down under the basic structure doctrine.

Case Laws

Case Law: I.R. Coelho (Dead) by LRs v State of Tamil Nadu

Year: 2007 **Court:** Supreme Court of India (nine-judge bench)

Facts / Background: Several State laws, including land reform laws, had been placed in the Ninth Schedule of the Constitution under Article 31B, which protects such laws from

challenge on the ground of violating fundamental rights. Some of these laws were added after 24 April 1973 (the date of the *Kesavananda* judgment). Their validity was challenged.

Legal Issue: Can laws placed in the Ninth Schedule after 24 April 1973 be completely immune from judicial review?

Court's Decision / What the Court Held: The Court held that laws added to the Ninth Schedule after 24 April 1973 are open to challenge if they violate the basic structure, including the essence of the fundamental rights in Articles 14, 19 and 21. The Court emphasised that constitutionalism is about limits on power and that judicial review is an essential part of the basic structure.

Relevance to the Topic: The case is an important statement of constitutionalism in India: no law or amendment can escape the limits set by the basic structure.

Important Points

- Constitutionalism means limited government under law.
- It requires rule of law, separation of powers, fundamental rights, an independent judiciary and accountability.
- A country may have a constitution without constitutionalism.
- In India, judicial review and the basic structure doctrine secure constitutionalism (*I.R. Coelho*, 2007).

Remember: Constitutional morality, in Ambedkar's words, has to be cultivated.

Topic 1.5: Role of Drafting Committee of the Constituent Assembly

Introduction

The Constitution of India was framed by the Constituent Assembly between 1946 and 1949. Among its many committees, the **Drafting Committee**, chaired by Dr. B.R. Ambedkar, played the central role of preparing the draft text, defending it during debates, and revising it in the light of amendments. Understanding its role helps explain the form and content of the Constitution.

Definition

> The **Drafting Committee** was a committee of the Constituent Assembly, appointed on 29 August 1947, to scrutinise the draft Constitution prepared by the Constitutional Adviser and the reports of other committees, and to prepare and present the Draft Constitution of India to the Assembly.

Detailed Explanation

1. Constituent Assembly: Background

1. It was formed under the **Cabinet Mission Plan (1946)**; members were elected indirectly by the provincial legislative assemblies, with representatives of princely states.
2. First meeting: **9 December 1946**; Dr. Sachchidananda Sinha was the temporary chairman; **Dr. Rajendra Prasad** was elected President on 11 December 1946.
3. **Objectives Resolution** was moved by Jawaharlal Nehru on 13 December 1946 and adopted on 22 January 1947; it became the basis of the Preamble.
4. After Partition, the Assembly became a sovereign body and also acted as the Dominion legislature.
5. **Sir B.N. Rau** was the Constitutional Adviser and prepared the first draft.

2. Composition of the Drafting Committee

Member	Remarks
Dr. B.R. Ambedkar	Chairman
N. Gopalaswami Ayyangar	Member
Alladi Krishnaswami Ayyar	Member
K.M. Munshi	Member
Syed Mohammad Saadulla	Member
N. Madhava Rau	Replaced B.L. Mitter
T.T. Krishnamachari	Replaced D.P. Khaitan after his death (1948)

3. Functions and Role of the Drafting Committee

1. **Preparation of the Draft Constitution:** it examined B.N. Rau's draft and the reports of committees (Union Powers, Provincial Constitution, Fundamental Rights, Minorities, etc.), and prepared the Draft Constitution, published in **February 1948**.
2. **Public consultation:** the draft was circulated for comments; the committee considered thousands of suggested amendments.
3. **Piloting the draft in the Assembly:** Dr. Ambedkar introduced the draft on 4 November 1948 and defended it clause by clause during the three readings.
4. **Revision and final draft:** after debates, the committee revised the text and prepared the final version.
5. **Harmonising diverse views:** it balanced demands of federalism and unity, individual rights and social reform, and the interests of minorities.
6. **Technical drafting:** it gave precise legal language to the Constitution, using models such as the Government of India Act, 1935.

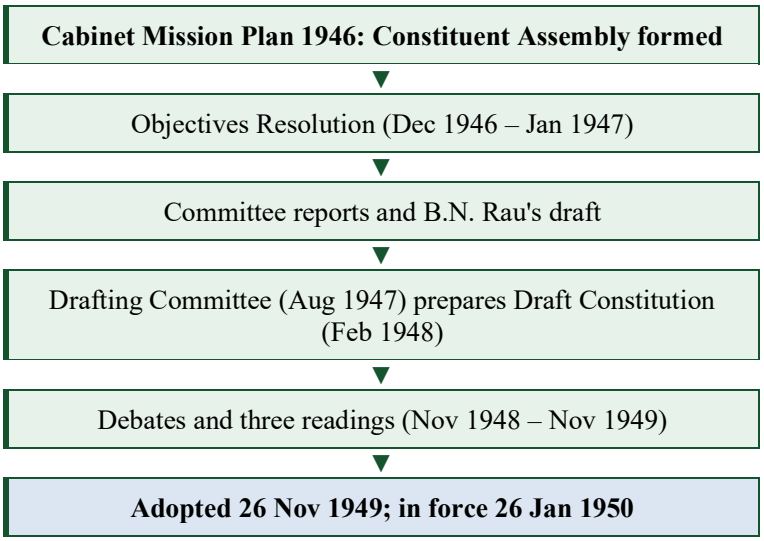
4. Adoption and Commencement

1. The Constitution was adopted on **26 November 1949** (now celebrated as Constitution Day).
2. Some provisions (citizenship, elections, provisional Parliament) came into force immediately; the rest on **26 January 1950**.
3. The Assembly took **2 years, 11 months and 18 days** and held 11 sessions.

5. Dr. Ambedkar's Contribution

Dr. Ambedkar is called the "chief architect" of the Constitution. In his final speech on 25 November 1949, he warned about the contradictions of political equality and social inequality, and the need for constitutional methods and constitutional morality.

Flowchart: Making of the Constitution



Examples

- The Drafting Committee adopted the expression "procedure established by law" in Article 21 instead of "due process of law", after considering the American experience.
- The Committee used the term "Union of States" in Article 1 to emphasise that States have no right to secede.

Case Laws

There is no landmark case dealing directly with the role of the Drafting Committee. However, the Supreme Court has held that the **Constituent Assembly Debates** and reports of its committees may be used as an external aid to understand the background and intention behind constitutional provisions (for example, in *R.S. Nayak v A.R. Antulay*, 1984, and in many constitutional bench decisions such as *Indra Sawhney v Union of India*, 1992, where the debates on Article 16(4) were examined).

Important Points

- The Drafting Committee was set up on 29 August 1947 with Dr. B.R. Ambedkar as Chairman.
- The Draft Constitution was published in February 1948 and introduced on 4 November 1948.
- The Constitution was adopted on 26 November 1949 and came into force on 26 January 1950.
- B.N. Rau was the Constitutional Adviser; Dr. Rajendra Prasad was the President of the Constituent Assembly.
- Constituent Assembly Debates can be used as an aid to interpretation.

Remember: 26 January was chosen to commemorate the Purna Swaraj declaration of 1930.

Topic 1.6: Salient features of Indian Constitution

Introduction

Every constitution has certain distinctive features that reflect the history and needs of the country. The Indian Constitution was framed for a vast and diverse country emerging from colonial rule, with deep social inequalities. Its salient features show how the framers combined borrowed ideas with Indian realities to build a democratic, federal and welfare-oriented republic.

Definition

> The **salient features** of the Indian Constitution are its essential and distinguishing characteristics that define its structure, philosophy and working.

Detailed Explanation

1. Lengthiest Written Constitution

Originally it had 395 Articles in 22 Parts and 8 Schedules; it now has about 470 Articles in 25 Parts and 12 Schedules. It is lengthy because it covers both the Union and the States, includes detailed provisions on minorities, SCs/STs, services and elections, and draws from many sources.

2. Drawn from Various Sources

Source	Features borrowed
Government of India Act, 1935	Federal scheme, Governor, judiciary, emergency provisions, PSCs
United Kingdom	Parliamentary government, rule of law, single citizenship, cabinet system, writs
United States	Fundamental rights, judicial review, independence of the judiciary, removal of judges, Vice-President
Ireland	Directive Principles of State Policy, nomination of members to the Rajya Sabha
Canada	Federation with a strong Centre, residuary powers with the Centre
Australia	Concurrent List, freedom of trade and commerce, joint sitting
Germany (Weimar)	Suspension of fundamental rights during emergency
USSR	Fundamental duties, ideals of justice in the Preamble
France	Republic; liberty, equality, fraternity
South Africa	Amendment procedure, election of Rajya Sabha members

3. Blend of Rigidity and Flexibility

Art 368 provides different procedures: some provisions can be amended by simple majority, others by special majority, and federal provisions require ratification by half of the States.

4. Federal System with Unitary Bias

Division of powers (Seventh Schedule), a written and supreme Constitution and an independent judiciary are federal features; a strong Centre, single citizenship, All-India Services, emergency powers and the Governor's role are unitary features.

5. Parliamentary Form of Government

A nominal head (President) and a real executive (Council of Ministers headed by the Prime Minister), with collective responsibility to the Lok Sabha (Art 75).

6. Fundamental Rights

Part III (Arts 12–35) guarantees justiciable rights: equality, freedom, against exploitation, religion, cultural and educational rights, and constitutional remedies.

7. Directive Principles of State Policy

Part IV (Arts 36–51) sets out socio-economic goals for a welfare State; they are not enforceable by courts but are fundamental in governance.

8. Fundamental Duties

Part IVA (Art 51A), added by the 42nd Amendment (1976), lists duties of citizens.

9. Integrated and Independent Judiciary

A single hierarchy of courts with the Supreme Court at the top; security of tenure of judges; power of judicial review.

10. Secular State

The State has no religion of its own and treats all religions equally (Arts 25–28); "Secular" was added to the Preamble in 1976.

11. Universal Adult Franchise

Every citizen aged 18 and above has the right to vote (Art 326; age reduced from 21 by the 61st Amendment, 1988).

12. Single Citizenship

Only Indian citizenship, unlike the USA, where there is both national and State citizenship.

13. Independent Bodies

Election Commission (Art 324), Comptroller and Auditor General (Art 148), UPSC and State PSCs (Art 315), Finance Commission (Art 280).

14. Emergency Provisions

National Emergency (Art 352), State Emergency (Art 356) and Financial Emergency (Art 360).

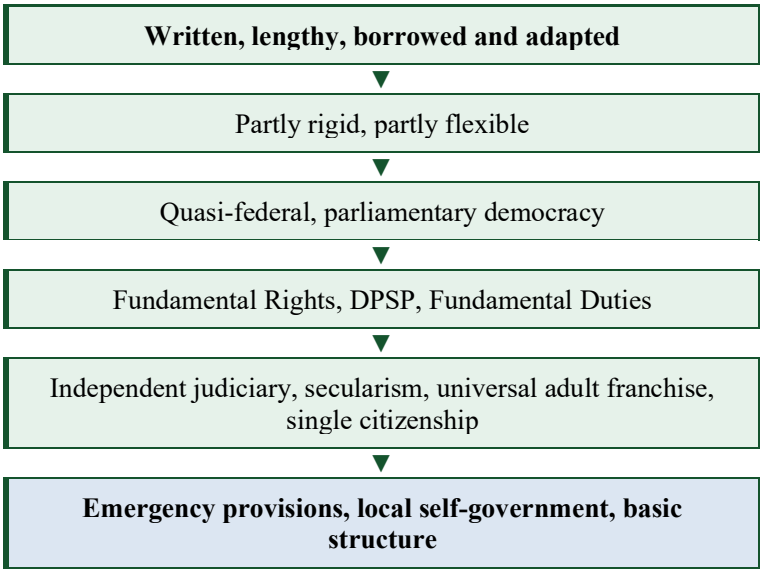
15. Three-Tier Government

The 73rd and 74th Amendments (1992) gave constitutional status to panchayats and municipalities.

16. Basic Structure

The amending power of Parliament is limited; it cannot alter the basic structure (*Kesavananda Bharati*, 1973).

Flowchart: Salient features at a glance



Examples

- A citizen of Andhra Pradesh living in Delhi is simply an Indian citizen; there is no separate Andhra Pradesh citizenship (single citizenship).
- When the Union and a State legislate on a Concurrent List subject and there is a conflict, the Union law prevails (Art 254), reflecting the strong Centre.

Case Laws

Case Law: Indira Nehru Gandhi v Raj Narain

Year: 1975 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Allahabad High Court set aside the election of Prime Minister Indira Gandhi to the Lok Sabha on grounds of electoral malpractice. While her appeal was pending, Parliament passed the 39th Amendment, which inserted Article 329A, placing the election of the Prime Minister beyond the jurisdiction of courts and validating her election.

Legal Issue: Can Parliament, by constitutional amendment, take away judicial review of an election and declare it valid?

Court's Decision / What the Court Held: The Supreme Court struck down clause (4) of Article 329A. It held that democracy, free and fair elections, the rule of law and judicial review are part of the basic structure, which Parliament cannot destroy by amendment.

Relevance to the Topic: The case shows that democracy, free elections, rule of law and judicial review are not only salient features but also essential, unamendable features of the Indian Constitution.

Important Points

- The Indian Constitution is the lengthiest written constitution in the world.
- It borrows from many sources but adapts them.
- It is partly rigid and partly flexible, quasi-federal, parliamentary and secular.
- It contains Fundamental Rights, DPSP and Fundamental Duties.
- Democracy, rule of law and judicial review are basic features (*Indira Nehru Gandhi v Raj Narain*, 1975).

Remember: The Constitution is "a borrowed bag", but the bag has been tailored to Indian needs.

Topic 1.7: Preamble to Indian Constitution – Importance and Amenability

Introduction

The Preamble is the introduction to the Constitution. It sums up the philosophy of the Constitution and the objectives it seeks to achieve. It answers three important questions: Where does the Constitution get its authority? What kind of State does it create? What goals does it set for the nation? The Supreme Court has discussed its legal status and whether Parliament can amend it.

Definition

> **The Preamble:** "WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens: JUSTICE, social, economic and political; LIBERTY of thought, expression, belief, faith and worship; EQUALITY of status and of opportunity; and to promote among them all FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation; IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION."

Detailed Explanation

1. Components of the Preamble

1. **Source of authority:** "We, the People of India" means sovereignty lies with the people.
2. **Nature of the State:** sovereign, socialist, secular, democratic, republic.
3. **Objectives:** justice, liberty, equality, fraternity.
4. **Date of adoption:** 26 November 1949.

2. Meaning of Key Words

Word	Meaning
Sovereign	India is independent, not subject to any external authority
Socialist	Commitment to reducing inequality and achieving social and economic justice through democratic means (a mixed-economy model)
Secular	The State has no religion; equal respect and protection for all religions
Democratic	Government by elected representatives, accountable to the people
Republic	The head of State is elected, not hereditary
Justice	Social, economic and political justice
Liberty	Freedom of thought, expression, belief, faith and worship
Equality	Of status and opportunity

Word	Meaning
Fraternity	A sense of brotherhood, ensuring dignity of the individual and unity and integrity of the nation

3. Importance of the Preamble

1. **Key to the Constitution:** it states the philosophy and goals of the Constitution.
2. **Aid to interpretation:** where a provision is ambiguous, courts refer to the Preamble to choose the interpretation that best advances its objectives.
3. **Source of authority:** it shows that the Constitution derives authority from the people.
4. **Basic structure:** its essential features, such as sovereignty, democracy, secularism and the republican form, are part of the basic structure.
5. **Identity card:** N.A. Palkhivala described it as the "identity card of the Constitution".

4. Is the Preamble a Part of the Constitution?

Case	Holding
In re Berubari Union (1960)	The Preamble is the key to the minds of the makers but is **not part** of the Constitution, and is not a source of power
Kesavananda Bharati v State of Kerala (1973)	The Preamble **is part** of the Constitution; it can be used to interpret it
LIC of India v Consumer Education and Research Centre (1995)	The Preamble is an integral part of the Constitution

5. Amenability: Can the Preamble be Amended?

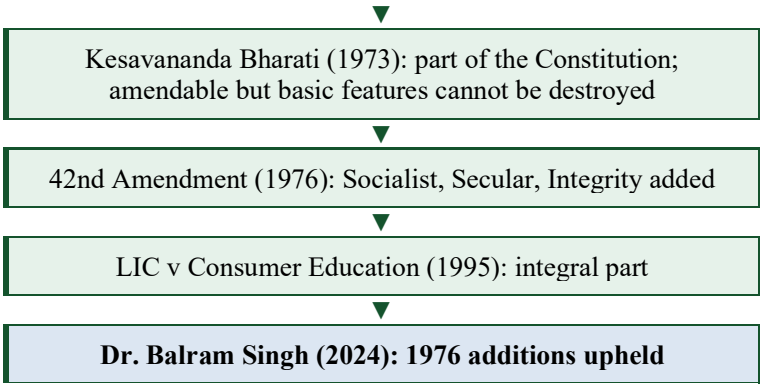
1. In *Kesavananda Bharati* (1973), the Supreme Court held that the Preamble can be amended under Art 368, but the amendment cannot destroy its basic features.
2. The Preamble has been amended only once, by the **42nd Amendment (1976)**, which added the words **"Socialist", "Secular"** and **"Integrity"**.
3. In *Dr. Balram Singh v Union of India* (2024), the Supreme Court dismissed challenges to the 1976 additions.

6. Limitations

1. The Preamble is not a source of substantive power for any organ.
2. It is not directly enforceable in courts; it cannot override express provisions.

Flowchart: Legal status of the Preamble

In re Berubari (1960): not part of the Constitution



Examples

- When interpreting Article 14, courts rely on the Preamble's promise of "equality of status and of opportunity".
- Courts have used "socialist" and "justice, social, economic and political" in the Preamble to support welfare legislation and workers' rights.

Case Laws

Case Law: Kesavananda Bharati Sripadagalvaru v State of Kerala (on the Preamble)

Year: 1973 **Court:** Supreme Court of India (thirteen-judge bench)

Facts / Background: The petitioner, head of a religious mutt in Kerala, challenged Kerala land reform laws and the 24th, 25th and 29th Constitutional Amendments. One of the questions was the scope of Parliament's power to amend the Constitution, including the Preamble. (The full case is explained under Unit V.)

Legal Issue: Is the Preamble a part of the Constitution, and can it be amended?

Court's Decision / What the Court Held: The majority held that the Preamble is part of the Constitution and can be used for interpretation. It can be amended under Article 368, but the basic features of the Constitution reflected in the Preamble cannot be destroyed.

Relevance to the Topic: The case settled that the Preamble is part of the Constitution and laid down the limits on its amendability.

Case Law: Dr. Balram Singh v Union of India

Year: 2024 **Court:** Supreme Court of India

Facts / Background: Petitions were filed challenging the insertion of the words "socialist" and "secular" into the Preamble by the 42nd Amendment, 1976. The petitioners argued that

since the Preamble was adopted on 26 November 1949, words could not be inserted later, and that the amendment was made during the Emergency without proper debate.

Legal Issue: Was the insertion of "socialist" and "secular" into the Preamble by the 42nd Amendment valid?

Court's Decision / What the Court Held: The Supreme Court dismissed the petitions. It held that the amending power under Article 368 extends to the Preamble, and the date of adoption mentioned in the Preamble does not limit that power. "Socialist" and "secular" have become part of the constitutional identity and are consistent with the Constitution's values.

Relevance to the Topic: The case confirms that the Preamble is amendable and that the 1976 additions are valid.

Important Points

- The Preamble states the source of authority, the nature of the State, its objectives and the date of adoption.
- *Berubari* (1960): not part of the Constitution; *Kesavananda* (1973): part of it.
- It can be amended, but its basic features cannot be destroyed.
- Amended only once, by the 42nd Amendment (1976): Socialist, Secular, Integrity.
- *Dr. Balram Singh* (2024): the 1976 additions were upheld.

Remember: The Preamble is not a source of power, but it is a powerful guide to interpretation.

Topic 1.8: Nature of the Indian Constitution

Introduction

Is India a federation, a unitary State, or something in between? This question has been debated since the Constitution was adopted. The Constitution has strong federal features but also gives great power to the Union. Scholars have described it as "quasi-federal", "co-operative federalism" or "federal in normal times and unitary in emergency". Understanding its nature is essential for studying Centre-State relations and emergency provisions.

Definition

> The **nature of the Indian Constitution** refers to its character as a federal, unitary or mixed system of government, determined by examining how power is distributed between the Union and the States and how the Constitution works in practice.

Detailed Explanation

1. Federal Features

1. **Dual polity:** the Union and the States, each with its own government.
2. **Written Constitution:** the division of powers is written down.
3. **Division of powers:** the Seventh Schedule contains the Union List, State List and Concurrent List (Art 246).
4. **Supremacy of the Constitution:** both levels derive power from it.
5. **Rigid amendment procedure for federal provisions:** ratification by half the States (Art 368(2) proviso).
6. **Independent judiciary:** the Supreme Court decides disputes between the Union and States (Art 131).
7. **Bicameral legislature:** the Rajya Sabha represents the States.

2. Unitary (Non-Federal) Features

1. **"Union of States"** (Art 1): the federation is not the result of an agreement among States, and States cannot secede.
2. **Parliament can alter State boundaries** without the States' consent (Arts 3–4).
3. **Single Constitution** for the Union and States (except J&K earlier).
4. **Single citizenship.**
5. **Integrated judiciary and All-India Services** (Art 312).
6. **Strong Centre:** Union List is larger; residuary powers lie with Parliament (Art 248).
7. **Parliament can legislate on State subjects** in certain cases (Arts 249, 250, 252, 253).

8. **Governor appointed by the President** (Art 155); Bills may be reserved for the President (Art 200).
9. **Emergency provisions** (Arts 352, 356, 360) convert the federation into a unitary system.
10. **Financial dependence** of States on the Union.

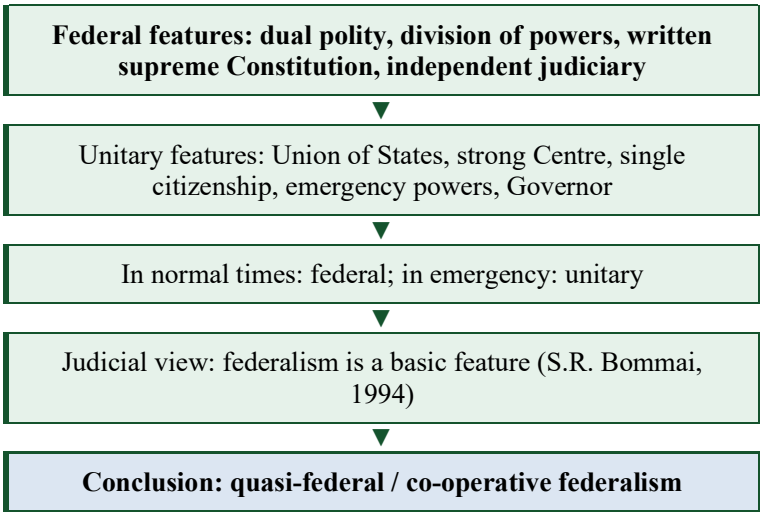
3. Views of Scholars

Scholar	Description
K.C. Wheare	"Quasi-federal": a unitary State with subsidiary federal features rather than a federal State with subsidiary unitary features
Granville Austin	"Co-operative federalism"
Dr. B.R. Ambedkar	Federal, but can be both unitary and federal according to time and circumstances
Ivor Jennings	A federation with a strong centralising tendency
Morris Jones	"Bargaining federalism"

4. Judicial View

1. *State of West Bengal v Union of India* (1962): the Indian Constitution is not a traditional federation; the States are not sovereign.
2. *State of Rajasthan v Union of India* (1977): the Constitution has a strong unitary bias.
3. *S.R. Bommai v Union of India* (1994): federalism is part of the basic structure; States are not mere appendages of the Centre.
4. *State (NCT of Delhi) v Union of India* (2018) and *Government of NCT of Delhi v Union of India* (2023): collaborative federalism and the role of an elected government.

Flowchart: Nature of the Indian Constitution



Examples

- Parliament created the State of Telangana in 2014 by the Andhra Pradesh Reorganisation Act, without needing the consent of the Andhra Pradesh legislature (which was consulted under Art 3), showing the strong position of the Union.
- During a National Emergency, Parliament can legislate on any subject in the State List (Art 250).

Case Laws

Case Law: State of West Bengal v Union of India

Year: 1962 **Court:** Supreme Court of India (six-judge bench)

Facts / Background: Parliament passed the Coal Bearing Areas (Acquisition and Development) Act, 1957, which allowed the Union Government to acquire coal-bearing land, including land vested in the States. West Bengal filed a suit under Article 131, arguing that the Union could not acquire property belonging to a State, because the States are sovereign.

Legal Issue: Are the States sovereign under the Indian Constitution, so that the Union cannot acquire State property?

Court's Decision / What the Court Held: The majority held that the Indian Constitution does not create a traditional federation; the States are not sovereign, and the Constitution has a strong Centre. Parliament had the power to acquire property vested in a State. The suit was dismissed.

Relevance to the Topic: The case is a leading authority on the quasi-federal nature of the Indian Constitution.

Important Points

- The Indian Constitution has both federal and unitary features.
- It is described as quasi-federal (Wheare) and co-operative federalism (Austin).
- States are not sovereign (*State of West Bengal v Union of India*, 1962).
- Federalism is part of the basic structure (*S.R. Bommai*, 1994).

Remember: India is federal in normal times and unitary during emergencies.

Topic 1.9: Union and Its Territories

Introduction

Part I of the Constitution (Articles 1 to 4) deals with the Union and its territory. It declares what India is, what its territory includes, and how new States can be created or existing States reorganised. These provisions explain how the map of India has changed since 1950, through the reorganisation of States on linguistic lines, the creation of new States, and the integration of territories such as Goa and Sikkim.

Definition

> **Article 1(1):** "India, that is Bharat, shall be a Union of States."

> **Article 1(3):** "The territory of India shall comprise (a) the territories of the States; (b) the Union territories specified in the First Schedule; and (c) such other territories as may be acquired."

Detailed Explanation

1. Article 1: Name and Territory

1. "India, that is Bharat" gives both names.
2. "Union of States" (not "Federation of States") was used deliberately: the Indian federation is not the result of an agreement among States, and no State has the right to secede.
3. Territory of India = States + Union territories + acquired territories.
4. The First Schedule lists the States and Union territories (currently 28 States and 8 Union territories).

2. Article 2: Admission or Establishment of New States

Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit. This applies to territories that were not part of India (e.g. Sikkim in 1975 by the 36th Amendment).

3. Article 3: Formation of New States and Alteration of Existing States

Parliament may by law:

1. form a new State by separation of territory from any State, by uniting two or more States or parts of States, or by uniting any territory to a part of any State;
2. increase the area of any State;
3. diminish the area of any State;
4. alter the boundaries of any State;

5. alter the name of any State.

Procedure (proviso to Art 3):

1. A Bill can be introduced only on the recommendation of the President.
2. If the Bill affects the area, boundaries or name of a State, the President must refer it to the State legislature for its views within a specified period.
3. Parliament is not bound by the views of the State legislature.

4. Article 4: Laws under Articles 2 and 3

Such laws may amend the First and Fourth Schedules and contain supplemental and consequential provisions, and they are **not deemed to be amendments** of the Constitution for the purposes of Art 368, so they can be passed by simple majority.

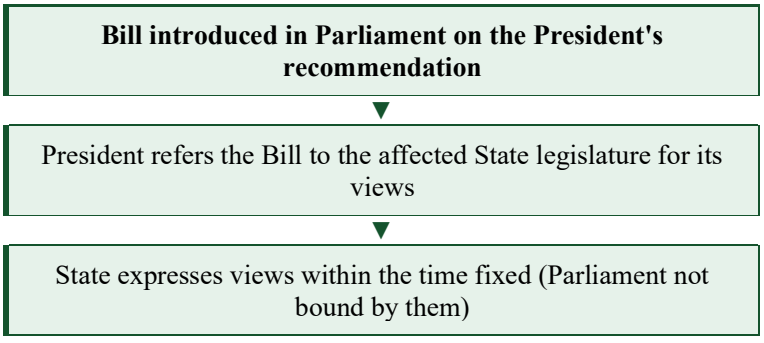
5. Cession of Territory

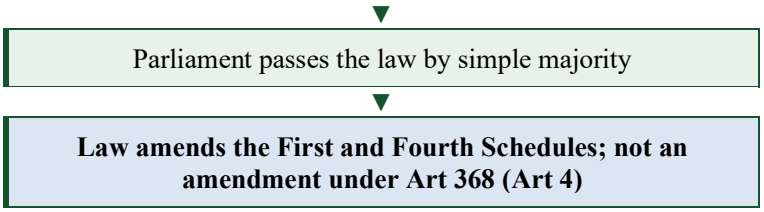
Articles 3 and 4 do not authorise ceding Indian territory to a foreign country. Cession requires a constitutional amendment under Art 368 (*In re Berubari Union*, 1960). Example: the 9th Amendment (1960) for Berubari and the 100th Amendment (2015) for the India-Bangladesh Land Boundary Agreement. Settlement of a boundary dispute, however, is not cession and does not require amendment.

6. Reorganisation of States

Year	Development
1953	Andhra State created after Potti Sriramulu's fast
1956	States Reorganisation Act: States reorganised on linguistic lines (7th Amendment)
1960	Bombay divided into Maharashtra and Gujarat
1966	Punjab reorganised; Haryana created
1987	Goa became a State
2000	Chhattisgarh, Uttarakhand and Jharkhand created
2014	Telangana created from Andhra Pradesh
2019	Jammu & Kashmir reorganised into two Union territories (J&K and Ladakh)

Flowchart: Procedure to create a new State under Article 3





Examples

- Telangana was created by the Andhra Pradesh Reorganisation Act, 2014, passed under Article 3.
- Transferring a village from India to a neighbouring country requires a constitutional amendment, because it is a cession of territory.

Case Laws

Case Law: In re Berubari Union and Exchange of Enclaves

Year: 1960 **Court:** Supreme Court of India (Advisory opinion under Article 143)

Facts / Background: Under the Nehru-Noon Agreement of 1958 between India and Pakistan, half of the Berubari Union in West Bengal was to be transferred to Pakistan (East Pakistan), and certain enclaves were to be exchanged. The President referred to the Supreme Court the question of how the agreement could be implemented.

Legal Issue: Can Parliament cede Indian territory to a foreign State by an ordinary law under Article 3, or is a constitutional amendment under Article 368 required?

Court's Decision / What the Court Held: The Supreme Court advised that the power under Article 3 to "diminish the area of any State" does not include cession of national territory to a foreign State. Cession can be implemented only by a constitutional amendment under Article 368. (The Court also observed that the Preamble is not part of the Constitution, a view later overruled in *Kesavananda Bharati*.) Parliament then passed the 9th Amendment (1960).

Relevance to the Topic: The leading case on cession of territory and the limits of Article 3.

Case Law: Babulal Parate v State of Bombay

Year: 1960 **Court:** Supreme Court of India

Facts / Background: The States Reorganisation Bill, 1956 originally proposed certain arrangements for Bombay. After the State legislature gave its views on the Bill, Parliament made substantial changes to it (creating a bilingual State of Bombay) without referring the changed Bill again to the State legislature. The validity of the Act was challenged.

Legal Issue: Must Parliament refer the Bill again to the State legislature every time it amends the Bill after the State has expressed its views?

Court's Decision / What the Court Held: The Supreme Court held that the proviso to Article 3 requires only that the Bill be referred to the State legislature to obtain its views. Parliament is not bound to accept those views, and it need not make a fresh reference each time it amends the Bill. The Act was valid.

Relevance to the Topic: The case explains the procedure under Article 3 and shows Parliament's wide power over State boundaries.

Important Points

- Article 1: "India, that is Bharat, shall be a Union of States."
- Article 2: admission or establishment of new States.
- Article 3: formation of new States and alteration of areas, boundaries or names, by simple majority after reference to the State.
- Article 4: such laws are not amendments under Art 368.
- Cession of territory requires a constitutional amendment (*In re Berubari*, 1960).
- Parliament is not bound by the State's views (*Babulal Parate*, 1960).

Remember: "Union of States" signifies that the Union is indestructible and no State can secede.

Topic 1.10: Citizenship

Introduction

Citizenship is the full and equal membership of a person in a State. Citizens enjoy certain rights that non-citizens do not, such as the right to vote, to hold certain high offices, and some fundamental rights (Arts 15, 16, 19, 29 and 30). Part II of the Constitution (Articles 5 to 11) deals with citizenship at the commencement of the Constitution, and the Citizenship Act, 1955 governs acquisition and loss of citizenship after that.

Definition

> **Citizenship** is the legal status of a person as a full member of a State, entitled to civil and political rights and subject to duties towards the State.

Detailed Explanation

1. Constitutional Provisions (Articles 5–11)

Article	Subject
5	Citizenship at the commencement of the Constitution: domicile in India plus birth in India, or either parent born in India, or ordinarily resident for 5 years before 26 January 1950
6	Rights of citizenship of persons who migrated to India from Pakistan
7	Rights of citizenship of certain migrants to Pakistan (who later returned under a permit for resettlement)
8	Rights of persons of Indian origin residing outside India
9	Persons voluntarily acquiring citizenship of a foreign State are not citizens
10	Continuance of the rights of citizenship, subject to law made by Parliament
11	Parliament may regulate citizenship by law

2. Citizenship Act, 1955: Modes of Acquisition

1. **By birth (s.3):** persons born in India on or after 26 January 1950 but before 1 July 1987 are citizens; between 1 July 1987 and 3 December 2004, if either parent was a citizen; on or after 3 December 2004, if both parents are citizens, or one is a citizen and the other is not an illegal migrant.
2. **By descent (s.4):** persons born outside India to Indian citizen parents, subject to registration.
3. **By registration (s.5):** persons of Indian origin, persons married to Indian citizens, etc.
4. **By naturalisation (s.6):** foreigners who meet residence and other requirements.

5. **By incorporation of territory (s.7):** when new territory becomes part of India (e.g. Goa, Sikkim).

3. Special Provisions

1. **Section 6A (Assam Accord):** persons of Indian origin who came to Assam from Bangladesh before 1 January 1966 are citizens; those who came between 1 January 1966 and 25 March 1971 can become citizens after registration and a period of 10 years. Upheld in *In re Section 6A of the Citizenship Act, 1955* (2024).
2. **Citizenship (Amendment) Act, 2019 (section 6B):** provides an expedited path to citizenship for Hindu, Sikh, Buddhist, Jain, Parsi and Christian migrants from Afghanistan, Bangladesh and Pakistan who entered India on or before 31 December 2014. The rules were notified in March 2024. Challenges to its validity are pending before the Supreme Court.
3. **Overseas Citizenship of India (OCI):** not dual citizenship, but a form of registration giving certain benefits to persons of Indian origin.

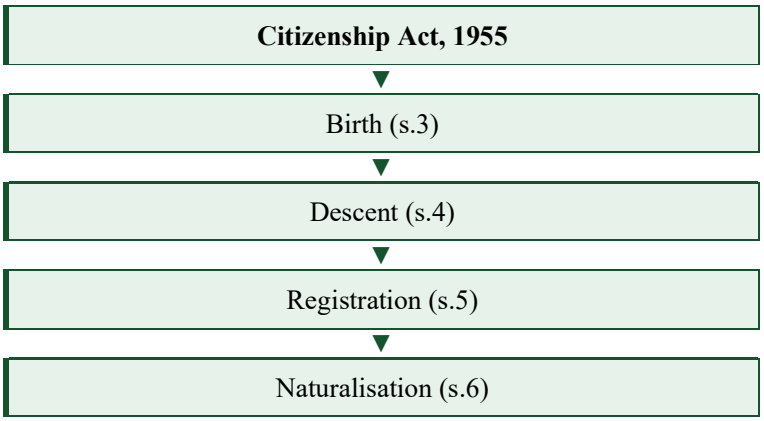
4. Loss of Citizenship

1. **Renunciation (s.8):** a citizen who acquires another nationality may renounce Indian citizenship.
2. **Termination (s.9):** voluntary acquisition of foreign citizenship automatically ends Indian citizenship.
3. **Deprivation (s.10):** the Government may deprive a person of citizenship acquired by registration or naturalisation on grounds such as fraud, disloyalty, or trading with the enemy.

5. Rights Available Only to Citizens

Articles 15, 16, 19, 29 and 30; the right to vote (Art 326); eligibility for offices such as President, Vice-President, judges of the Supreme Court and High Courts, Governor, Attorney-General and members of Parliament and State legislatures.

Flowchart: Modes of acquiring Indian citizenship



▼

Incorporation of territory (s.7)

Examples

- A child born in India in 2010 to an Indian father and a foreign mother (who is not an illegal migrant) is an Indian citizen by birth.
- An Indian citizen who voluntarily becomes a citizen of Canada loses Indian citizenship (s.9).

Case Laws

Case Law: In re Section 6A of the Citizenship Act, 1955

Year: 2024 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Section 6A, inserted in 1985 to implement the Assam Accord, granted citizenship to certain migrants from Bangladesh who entered Assam before specified dates. Petitioners argued that it was discriminatory against Assam and other border States, violated Article 14, and threatened the cultural rights of the Assamese people under Article 29.

Legal Issue: Is section 6A of the Citizenship Act constitutionally valid?

Court's Decision / What the Court Held: By a 4:1 majority, the Supreme Court upheld the validity of section 6A. It held that Parliament had the competence to enact it under Article 11, that the special treatment of Assam had a reasonable basis given its unique situation, and that the presence of different ethnic groups does not by itself violate the right to conserve culture under Article 29(1).

Relevance to the Topic: The case is the most recent authority on Parliament's power over citizenship and the limits of challenges based on Articles 14 and 29.

Case Law: State Trading Corporation of India Ltd. v Commercial Tax Officer

Year: 1963 **Court:** Supreme Court of India (special bench)

Facts / Background: The State Trading Corporation, a government company, challenged a sales tax assessment by filing a writ petition under Article 32, claiming the fundamental rights of citizens under Article 19.

Legal Issue: Is a corporation (company) a "citizen" entitled to the rights under Article 19?

Court's Decision / What the Court Held: The Supreme Court held that a corporation is not a citizen within the meaning of Part II of the Constitution or the Citizenship Act.

Citizenship is limited to natural persons, so a company cannot claim the rights guaranteed only to citizens.

Relevance to the Topic: The case explains that citizenship belongs only to natural persons. (Later, in *R.C. Cooper* (1970) and *Bennett Coleman* (1973), shareholders were allowed to challenge actions affecting the company's rights.)

Important Points

- Articles 5–11 deal with citizenship; Parliament regulates it under Art 11.
- The Citizenship Act, 1955 provides acquisition by birth, descent, registration, naturalisation and incorporation of territory.
- Citizenship may be lost by renunciation, termination or deprivation.
- India has single citizenship; OCI is not dual citizenship.
- Section 6A (Assam Accord) was upheld (*In re Section 6A*, 2024).
- Companies are not citizens (*State Trading Corporation*, 1963).

Remember: Some fundamental rights (Arts 15, 16, 19, 29, 30) are available only to citizens.

UNIT II
Fundamental Rights

Topics in this Unit

2.1 Fundamental Rights under Indian Constitution
2.2 Classification of Fundamental Rights
2.3 Definition of State under Article 12, 13 - Inviolability of Fundamental Rights
2.4 Enforceability of Fundamental Rights
2.5 Distinctions between pre and post Constitutional laws
2.6 Doctrine of eclipse
2.7 Doctrine of Severability
2.8 Doctrine of waiver
2.9 Doctrine of Judicial Review
2.10 Right to Equality (Article 14 to 18)
2.11 Equality before law and equal protection of laws
2.12 Doctrine of Rule of law
2.13 Doctrine of Reasonable Classification
2.14 Right against arbitrariness
2.15 New doctrine of Equality
2.16 Right against discrimination
2.17 Doctrine of Protective Discrimination
2.18 Doctrine of Compensatory Discrimination
2.19 Equality in Public Employment : Reservation
2.20 Abolition of Untouchability
2.21 Abolition of Titles
2.22 Right to Freedom (Article 19 to 22 and 21A)

2.23 Six freedoms and the reasonable restriction on the exercise of those freedoms under Article 19

2.24 Protection against Ex-post Facto Laws; Double Jeopardy; Compelled self incrimination

2.25 Right to life and personal liberty

2.26 Right to Education (86th amendment, 2002)

2.27 Protection against Arrest and Detention in Certain cases

2.28 Right against exploitation (Article 23 and 24)

2.29 Prohibition against Forced Labour

2.30 Prohibition against Child Labour

2.31 Right to freedom of Religion (Article 25 to 28)

2.32 Concept of Secularism

2.33 Religious Freedom of the Individual and Religious Denominations

2.34 Restrictions on right to freedom of religion; essential religious practices test

2.35 Right to cultural and educational rights (Article 29 and 30)

2.36 Rights of the minorities

2.37 Right to Property (Article 19(1)(f), Article 31 and Article 300 (Constitutional policy before and after the 44th Amendment)

2.38 Right to Constitutional Remedies (Article 32 and 226)

2.39 Writ jurisdiction – meaning, nature, significance and kinds of writs

2.40 Locus standi and Public Interest Litigation

2.41 Limitations on Fundamental rights

Topic 2.1: Fundamental Rights under Indian Constitution

Introduction

Fundamental Rights are the basic rights that the Constitution guarantees to individuals against the State. They are called "fundamental" because they are essential for the full development of human personality and for democracy, and because they are protected by the supreme law and enforceable in the highest court. Part III of the Constitution (Articles 12 to 35) contains these rights. Dr. Ambedkar described Article 32, which enforces them, as the "heart and soul" of the Constitution.

Definition

> **Fundamental Rights** are the rights guaranteed by Part III of the Constitution of India, which limit the power of the State, are enforceable by the courts through writs under Articles 32 and 226, and cannot be taken away by ordinary law.

Detailed Explanation

1. Historical Background

1. The Nehru Report (1928) and the Karachi Resolution of the Indian National Congress (1931) demanded guaranteed rights.
2. The Constituent Assembly set up an Advisory Committee on Fundamental Rights, Minorities, etc., chaired by Sardar Vallabhbhai Patel, with a sub-committee on Fundamental Rights chaired by J.B. Kripalani.
3. The framers were influenced by the US Bill of Rights, the French Declaration of 1789 and the Universal Declaration of Human Rights (1948).

2. Features of Fundamental Rights

1. **Justiciable:** enforceable by courts (Arts 32, 226).
2. **Not absolute:** subject to reasonable restrictions (e.g. Art 19(2)–(6)).
3. **Mostly negative obligations on the State,** but some impose positive duties (e.g. Art 21A, Art 17).
4. **Some available only to citizens** (Arts 15, 16, 19, 29, 30), others to all persons (Arts 14, 20, 21, 21A, 22, 23, 25).
5. **Some are enforceable against private persons** (Arts 15(2), 17, 23, 24).
6. **Can be amended** by Parliament, but not so as to destroy the basic structure (*Kesavananda Bharati*, 1973).
7. **Suspension during emergency:** Art 19 is suspended in a National Emergency declared on the ground of war or external aggression (Art 358), and enforcement of other rights may be suspended (Art 359), except Arts 20 and 21.

8. **Limitations for armed forces** (Art 33) and during martial law (Art 34).
9. **Protection of certain laws** (Arts 31A, 31B, 31C).

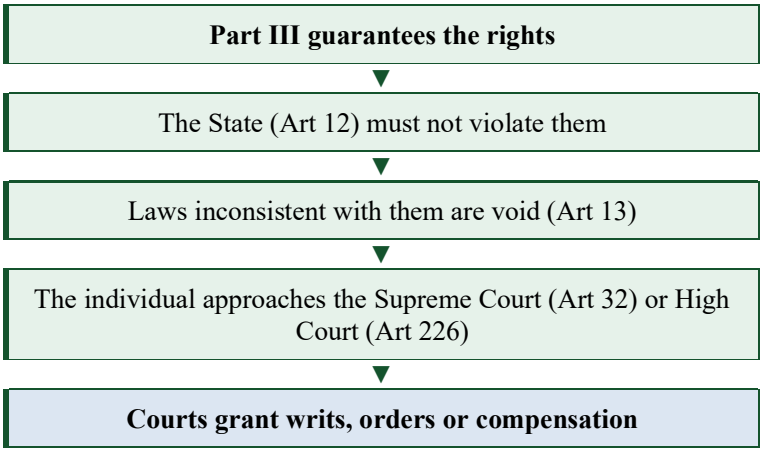
3. Fundamental Rights as Natural and Inalienable Rights

Modern judicial thinking treats fundamental rights not as gifts of the State but as recognitions of rights inherent in human beings. Life and personal liberty, in particular, exist independently of the Constitution, which only recognises and protects them.

4. Fundamental Rights and Human Rights

Fundamental Rights correspond to many rights in the Universal Declaration of Human Rights, the ICCPR and the ICESCR. The Protection of Human Rights Act, 1993 defines "human rights" as rights relating to life, liberty, equality and dignity guaranteed by the Constitution or embodied in international covenants and enforceable by Indian courts.

Flowchart: How Fundamental Rights work



Examples

- If a State government bans a newspaper for criticising it, the editor can approach the Supreme Court under Article 32 for violation of Article 19(1)(a).
- If the police detain a person without producing him before a magistrate within 24 hours, Article 22(2) is violated, and a writ of habeas corpus can be filed.

Case Laws

Case Law: Justice K.S. Puttaswamy (Retd.) v Union of India (on the nature of fundamental rights)

Year: 2017 **Court:** Supreme Court of India (nine-judge bench)

Facts / Background: The Aadhaar scheme required collection of biometric and demographic data of residents. Its validity was challenged on the ground that it violated the right to privacy. The Union argued, relying on earlier decisions (*M.P. Sharma*, 1954;

Kharak Singh, 1963), that privacy was not a fundamental right. A nine-judge bench was constituted to decide whether privacy is a fundamental right.

Legal Issue: Is the right to privacy a fundamental right, and what is the nature of fundamental rights under the Constitution?

Court's Decision / What the Court Held: The Court unanimously held that the right to privacy is a fundamental right, protected as an intrinsic part of Article 21 and of the freedoms in Part III. The Court explained that life and personal liberty are inalienable rights inherent in human existence; they are not created by the Constitution but recognised by it. The Court also declared that the majority view in *ADM Jabalpur v Shivkant Shukla* (1976), which held that the right to move courts for enforcement of Article 21 could be suspended during the Emergency, was seriously flawed and stood overruled.

Relevance to the Topic: The case is the leading modern statement on the nature of fundamental rights as inalienable rights recognised, not granted, by the Constitution.

Important Points

- Part III (Arts 12–35) contains Fundamental Rights.
- They are justiciable, not absolute, and mostly limit State action.
- Some are available only to citizens; others to all persons.
- They can be amended, subject to the basic structure.
- Life and liberty are inalienable rights recognised by the Constitution (*Puttaswamy*, 2017).

Remember: Arts 20 and 21 cannot be suspended even during an emergency (44th Amendment, 1978).

Topic 2.2: Classification of Fundamental Rights

Introduction

The Constitution originally contained seven categories of fundamental rights. After the 44th Amendment (1978) removed the right to property from Part III, there are now **six categories**. Understanding this classification helps students organise the large number of Articles in Part III and see how different rights are connected.

Definition

> The **classification of Fundamental Rights** is the grouping of the rights in Part III into six categories according to their nature: equality, freedom, protection against exploitation, freedom of religion, cultural and educational rights, and constitutional remedies.

Detailed Explanation

1. Six Categories of Fundamental Rights

Category	Articles	Main rights
1. Right to Equality	14–18	Equality before law and equal protection (14); prohibition of discrimination (15); equality of opportunity in public employment (16); abolition of untouchability (17); abolition of titles (18)
2. Right to Freedom	19–22	Six freedoms (19); protection in respect of conviction for offences (20); life and personal liberty (21); right to education (21A); protection against arrest and detention (22)
3. Right against Exploitation	23–24	Prohibition of traffic in human beings and forced labour (23); prohibition of employment of children in hazardous work (24)
4. Right to Freedom of Religion	25–28	Freedom of conscience and religion (25); freedom to manage religious affairs (26); freedom from taxes for promotion of religion (27); freedom as to religious instruction (28)
5. Cultural and Educational Rights	29–30	Protection of interests of minorities (29); right of minorities to establish and administer educational institutions (30)
6. Right to Constitutional Remedies	32	Right to move the Supreme Court for enforcement of fundamental rights

2. Other Provisions in Part III

Article	Subject
12	Definition of "State"
13	Laws inconsistent with or in derogation of fundamental rights

Article	Subject
31A, 31B, 31C	Saving of certain laws (agrarian reform, Ninth Schedule, DPSP laws)
33	Power of Parliament to modify rights for armed forces, police, etc.
34	Restriction of rights while martial law is in force
35	Legislation to give effect to certain provisions

3. Classification by Beneficiary

Available only to citizens	Available to all persons (citizens and non-citizens)
Art 15, 16, 19, 29, 30	Art 14, 20, 21, 21A, 22, 23, 24, 25–28

4. Classification by Nature of Obligation

1. **Negative rights:** restrain the State from acting (e.g. Art 14, Art 19).
2. **Positive rights:** require the State to act (e.g. Art 21A, free and compulsory education; Art 17, abolition of untouchability).

5. Rights Are Not Water-Tight Compartments

Earlier, in *A.K. Gopalan* (1950), the Court treated each Article as a separate code. This view was rejected in *R.C. Cooper* (1970) and *Maneka Gandhi* (1978): the rights overlap, and a law affecting personal liberty must satisfy Articles 14, 19 and 21 together.

Flowchart: Six categories of Fundamental Rights



Examples

- A foreign tourist arrested in India can claim protection under Articles 21 and 22, but cannot claim the freedoms in Article 19, which are only for citizens.

- A law that restricts a person's movement may need to satisfy Article 19(1)(d), Article 21 and Article 14 together.

Case Laws

Case Law: Rustom Cavasjee Cooper v Union of India (Bank Nationalisation Case)

Year: 1970 **Court:** Supreme Court of India (eleven-judge bench)

Facts / Background: The Banking Companies (Acquisition and Transfer of Undertakings) Ordinance, 1969 and the corresponding Act nationalised fourteen major banks. R.C. Cooper, a shareholder and director of one bank, challenged the law under Articles 14, 19(1)(f), 19(1)(g) and 31.

Legal Issue: Are the fundamental rights mutually exclusive, so that a law relating to acquisition of property need be tested only under Article 31 and not under Article 19?

Court's Decision / What the Court Held: The Court struck down the Act, holding that it violated Article 31(2) because the compensation principles were not relevant, and that it was discriminatory under Article 14 as it prohibited the nationalised banks from carrying on banking business while other banks could. Importantly, it rejected the view in *A.K. Gopalan* that fundamental rights are mutually exclusive. It held that the fundamental rights are not distinct and separate compartments; the effect of State action on fundamental rights must be examined, and a law may have to satisfy more than one Article.

Relevance to the Topic: The case shows that the categories of fundamental rights are interlinked, which is essential for understanding their classification.

Important Points

- There are six categories of fundamental rights after the 44th Amendment.
- The right to property (Arts 19(1)(f) and 31) was removed in 1978 and is now in Art 300A.
- Some rights are only for citizens; others for all persons.
- Rights are not water-tight compartments (*R.C. Cooper*, 1970; *Maneka Gandhi*, 1978).

Remember: The right to constitutional remedies (Art 32) makes all other rights enforceable.

Topic 2.3: Definition of State under Article 12, 13 - Inviolability of Fundamental Rights

Introduction

Fundamental rights are mainly enforceable against the "State". So it is important to know what bodies fall within the meaning of "State". Article 12 defines the term, and the courts have expanded it to cover many public bodies. Article 13 then declares that laws inconsistent with fundamental rights are void, making the rights inviolable against the State.

Definition

> **Article 12:** "In this Part, unless the context otherwise requires, 'the State' includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India."

> **Article 13(1):** "All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void."

> **Article 13(2):** "The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void."

Detailed Explanation

1. Components of "State" under Article 12

1. The Government and Parliament of India.
2. The Government and Legislature of each State.
3. **Local authorities:** municipalities, panchayats, district boards, port trusts, improvement trusts.
4. **Other authorities:** bodies that are instrumentalities or agencies of the Government.

2. Development of "Other Authorities"

Case	Year	Test laid down
University of Madras v Shanta Bai	1954 (Madras HC)	Ejusdem generis: only authorities performing governmental functions (narrow view, later rejected)

Case	Year	Test laid down
Rajasthan State Electricity Board v Mohan Lal	1967	Any authority created by the Constitution or statute and having power to make binding rules or orders is "State"
Sukhdev Singh v Bhagatram	1975	Statutory corporations (ONGC, LIC, IFC) are "State"
R.D. Shetty v International Airport Authority	1979	Agency or instrumentality of the Government is "State"
Ajay Hasia v Khalid Mujib Sehravardi	1981	Six tests (see below); a registered society can be "State"
Pradeep Kumar Biswas v Indian Institute of Chemical Biology	2002	Body financially, functionally and administratively dominated by Government is "State"
Zee Telefilms Ltd. v Union of India	2005	BCCI is not "State" under Art 12, but is amenable to writ jurisdiction under Art 226 for public functions

3. The Ajay Hasia Tests

1. Entire share capital held by the Government.
2. Financial assistance from the Government meeting almost the entire expenditure.
3. Enjoyment of monopoly status conferred or protected by the State.
4. Deep and pervasive State control.
5. Functions of public importance closely related to governmental functions.
6. Transfer of a Government department to the corporation.

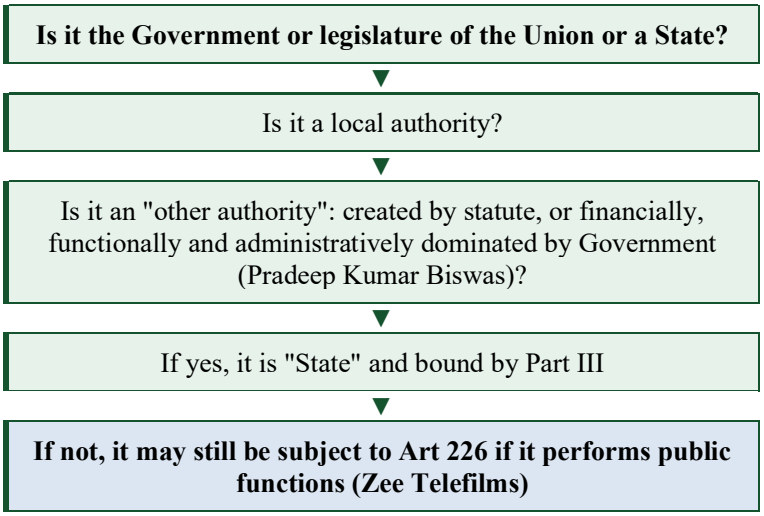
4. Is the Judiciary "State"?

1. When acting judicially, courts are not "State" for the purpose of Art 12 (*Naresh Shridhar Mirajkar v State of Maharashtra*, 1966; *Rupa Ashok Hurra v Ashok Hurra*, 2002).
2. In administrative and rule-making functions, the judiciary may be treated as "State".

5. Article 13: Inviolability of Fundamental Rights

1. **Art 13(1):** pre-Constitution laws inconsistent with Part III are void to the extent of inconsistency (doctrine of eclipse applies).
2. **Art 13(2):** the State shall not make laws taking away or abridging fundamental rights; such laws are void (doctrine of severability applies).
3. **Art 13(3)(a): "Law"** includes any ordinance, order, bye-law, rule, regulation, notification, custom or usage having the force of law.
4. **Art 13(3)(b): "Laws in force"** includes laws passed before the commencement of the Constitution and not repealed.
5. **Art 13(4) (24th Amendment, 1971):** nothing in Art 13 applies to amendments made under Art 368. (But amendments are subject to the basic structure test.)

Flowchart: Is the body "State" under Article 12?



Examples

- The Life Insurance Corporation of India is "State", so its employment decisions must comply with Articles 14 and 16.
- A private company owned entirely by individuals, with no Government control, is not "State", so a fundamental rights petition generally does not lie against it (except for rights enforceable against private persons).

Case Laws

Case Law: Ajay Hasia v Khalid Mujib Sehravardi

Year: 1981 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Regional Engineering College, Srinagar was run by a society registered under the Jammu and Kashmir Registration of Societies Act. Admissions were made on the basis of a written test and an oral interview, with a high percentage of marks for the interview. Students who were denied admission challenged the process as arbitrary under Article 14.

Legal Issue: Is a society registered under the Societies Registration Act, controlled and funded by the Government, "State" under Article 12?

Court's Decision / What the Court Held: The Court held that the society was an instrumentality or agency of the Government and therefore "State". It laid down six tests to determine whether a body is an instrumentality of the State. It also held that allocation of an excessive percentage of marks for the interview was arbitrary and violated Article 14.

Relevance to the Topic: The leading case on the meaning of "other authorities" under Article 12.

Case Law: Pradeep Kumar Biswas v Indian Institute of Chemical Biology

Year: 2002 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: An employee of the Indian Institute of Chemical Biology, a unit of the Council of Scientific and Industrial Research (CSIR), challenged the termination of his services. The question was whether CSIR, a registered society, was "State" under Article 12. An earlier decision (*Sabhajit Tewary*, 1975) had held it was not.

Legal Issue: Is CSIR "State" under Article 12?

Court's Decision / What the Court Held: Overruling *Sabhajit Tewary*, the Court held that CSIR is "State". The test is whether the body is financially, functionally and administratively dominated by or under the control of the Government. The control must be particular to the body and pervasive. Mere regulatory control is not enough.

Relevance to the Topic: The case gives the current test for "other authorities" under Article 12.

Important Points

- Art 12 defines "State" to include Government, legislatures, local authorities and other authorities.
- "Other authorities" include agencies and instrumentalities of the Government (*Ajay Hasia*, 1981; *Pradeep Kumar Biswas*, 2002).
- BCCI is not "State" but is subject to Art 226 (*Zee Telefilms*, 2005).
- Art 13 makes laws inconsistent with fundamental rights void; "law" includes ordinances, rules and customs.
- Art 13(4): constitutional amendments are not "law" under Art 13, but are subject to the basic structure.

Remember: The judiciary acting judicially is not "State" under Art 12.

Topic 2.4: Enforceability of Fundamental Rights

Introduction

A right is meaningful only if it can be enforced. The Constitution makes fundamental rights enforceable through the Supreme Court (Art 32) and High Courts (Art 226). But against whom can these rights be enforced? Generally, they are enforceable against the State ("vertical" application). Some rights, however, can be enforced against private persons as well ("horizontal" application). This topic explains how and against whom fundamental rights are enforced.

Definition

> **Enforceability** of fundamental rights means the ability of a person whose fundamental right has been violated to approach the courts and obtain an appropriate remedy (writs, directions, orders or compensation) against the violator.

Detailed Explanation

1. Constitutional Basis of Enforcement

1. **Art 32:** the right to move the Supreme Court for enforcement of fundamental rights is itself a fundamental right.
2. **Art 226:** High Courts can issue writs for enforcement of fundamental rights and "for any other purpose".
3. **Art 13:** laws inconsistent with fundamental rights are void.
4. **Art 35:** Parliament makes laws prescribing punishment for acts declared offences under Part III (e.g. untouchability).

2. Vertical Application (Against the State)

Most fundamental rights are enforceable only against the "State" as defined in Article 12, e.g. Arts 14, 16, 19, 21 (in their traditional application).

3. Horizontal Application (Against Private Persons)

Article	Right enforceable against private persons
15(2)	No citizen shall be denied access to shops, public restaurants, hotels, places of public entertainment, wells, tanks, etc.
17	Abolition of untouchability
23	Prohibition of traffic in human beings and forced labour
24	Prohibition of child labour in hazardous employment
21 (expanded)	Courts have enforced aspects of Art 21 against private parties (e.g. environment, sexual harassment through *Vishaka* guidelines)

In *Kaushal Kishor v State of Uttar Pradesh* (2023), the majority of a Constitution Bench held that fundamental rights under Articles 19 and 21 can be enforced even against persons other than the State or its instrumentalities.

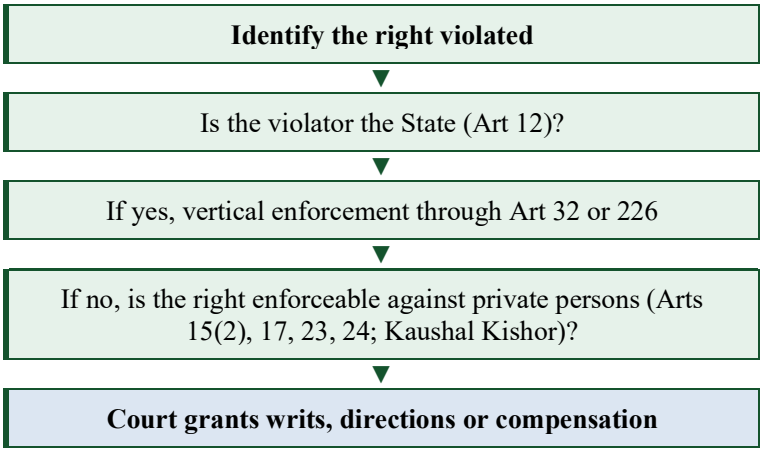
4. Who Can Enforce?

1. The person whose right is violated.
2. In PIL, any public-spirited person on behalf of those who cannot approach the court (relaxed *locus standi*).
3. Citizens alone for citizen-only rights; non-citizens for other rights.
4. Companies may not claim citizen-only rights, but shareholders may (*R.C. Cooper*, 1970).

5. Remedies

1. Writs: habeas corpus, mandamus, prohibition, certiorari, quo warranto.
2. Declarations that a law is void.
3. Directions and guidelines (e.g. *Vishaka v State of Rajasthan*, 1997).
4. Compensation for violation of fundamental rights (*Rudul Sah*, 1983; *Nilabati Behera*, 1993).

Flowchart: Enforcing a fundamental right



Examples

- A hotel owner refuses entry to a person because of his caste. Article 15(2) and Article 17 are violated, and action can be taken against the private hotel owner.
- A private contractor employs workers without paying minimum wages on a Government project. This violates Article 23, which can be enforced against the contractor and the State.

Case Laws

Case Law: Kaushal Kishor v State of Uttar Pradesh

Year: 2023 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: A minister in the Uttar Pradesh Government made statements about a gang-rape victim suggesting that the case was a political conspiracy. Questions were referred to a Constitution Bench about additional restrictions on free speech of public functionaries and whether fundamental rights could be enforced against non-State actors.

Legal Issue: (i) Can restrictions beyond those in Article 19(2) be imposed on free speech? (ii) Can fundamental rights under Articles 19 and 21 be enforced against persons other than the State?

Court's Decision / What the Court Held: The majority held that (i) the grounds in Article 19(2) are exhaustive, and no additional restrictions can be imposed on free speech; (ii) fundamental rights under Articles 19 and 21 can be enforced even against persons other than the State or its instrumentalities. A statement by a minister cannot be attributed vicariously to the Government merely by invoking collective responsibility.

Relevance to the Topic: The case extends the horizontal application of fundamental rights.

Case Law: People's Union for Democratic Rights v Union of India (Asiad Workers' Case)

Year: 1982 **Court:** Supreme Court of India

Facts / Background: For construction work related to the 1982 Asian Games in Delhi, workers were employed through contractors and were paid less than the minimum wage. Labour laws were not being followed. The PUDR wrote a letter to the Supreme Court, which was treated as a writ petition.

Legal Issue: Can fundamental rights such as Articles 23 and 24 be enforced against private contractors, and does non-payment of minimum wages amount to forced labour?

Court's Decision / What the Court Held: The Court held that Articles 17, 23 and 24 are enforceable against private persons as well as the State, and the State has a duty to ensure their observance. Paying less than the minimum wage amounts to "forced labour" under Article 23, because a person compelled by economic necessity to work for less than the minimum wage is not working voluntarily.

Relevance to the Topic: The case is a landmark on the horizontal application of certain fundamental rights and on PIL.

Important Points

- Fundamental rights are enforced through Arts 32 and 226.
- Most rights are enforceable against the State (vertical).
- Arts 15(2), 17, 23 and 24 are enforceable against private persons (horizontal).
- *Kaushal Kishor* (2023): Arts 19 and 21 also enforceable against non-State actors.
- *PUDR v Union of India* (1982): Art 23 enforceable against private contractors.

Remember: Compensation is a public law remedy for violation of fundamental rights.

Topic 2.5: Distinctions between pre and post Constitutional laws

Introduction

When the Constitution came into force on 26 January 1950, many laws already existed (pre-Constitutional laws). After that date, the legislatures made new laws (post-Constitutional laws). Article 13 treats these two categories differently. This distinction is important because it decides whether the doctrine of eclipse applies and what the effect of inconsistency with fundamental rights is.

Definition

> **Pre-Constitutional laws** are laws in force in India immediately before 26 January 1950 (Art 13(1)). **Post-Constitutional laws** are laws made by the State on or after 26 January 1950 (Art 13(2)).

Detailed Explanation

1. Article 13(1): Pre-Constitutional Laws

1. Existing laws inconsistent with fundamental rights become void "to the extent of such inconsistency" from 26 January 1950.
2. They are not void *ab initio* (from the beginning): they were valid when made and remain valid for the period before the Constitution.
3. Rights and liabilities that accrued before 26 January 1950 are not affected.
4. They are only eclipsed (overshadowed) by the fundamental rights, and they revive if the inconsistency is removed by a constitutional amendment (*Bhikaji Narain Dhakras*, 1955).

2. Article 13(2): Post-Constitutional Laws

1. The State shall not make any law that takes away or abridges fundamental rights.
2. Such laws are void from the beginning (void *ab initio*) to the extent of the contravention.
3. They do not revive if the Constitution is later amended; the law must be re-enacted (*Deep Chand v State of UP*, 1959).
4. However, in the case of rights available only to citizens (like Art 19), a post-Constitutional law is void only as against citizens and may operate against non-citizens (*State of Gujarat v Ambica Mills*, 1974).

3. Comparison

Point	Pre-Constitutional law (Art 13(1))	Post-Constitutional law (Art 13(2))
When made	Before 26 January 1950	On or after 26 January 1950

Point	Pre-Constitutional law (Art 13(1))	Post-Constitutional law (Art 13(2))
Effect of inconsistency	Void from 26 January 1950, to the extent of inconsistency	Void from inception, to the extent of contravention
Past transactions	Not affected	No valid past operation
Doctrine of eclipse	Applies	Generally does not apply (except partially for citizen-only rights: *Ambica Mills*)
Revival after amendment	Revives automatically	Does not revive; must be re-enacted
Leading case	*Keshavan Madhava Menon* (1951); *Bhikaji* (1955)	*Deep Chand* (1959)

Flowchart: Effect of inconsistency with fundamental rights



Examples

- A press law passed in 1931 that permitted pre-censorship became void from 26 January 1950 to the extent that it violated Article 19(1)(a), but prosecutions for offences committed under it before 1950 could continue.
- A State law passed in 1955 that violates Article 14 is void from the date it was passed.

Case Laws

Case Law: Keshavan Madhava Menon v State of Bombay

Year: 1951 **Court:** Supreme Court of India

Facts / Background: The petitioner published a pamphlet in 1949 without the permission required by the Indian Press (Emergency Powers) Act, 1931. He was prosecuted in 1949. During the proceedings, the Constitution came into force, and he argued that the Act was inconsistent with Article 19(1)(a) and that the prosecution could not continue.

Legal Issue: Does a pre-Constitutional law inconsistent with fundamental rights become void from the beginning, so that pending prosecutions for offences committed before 26 January 1950 must fail?

Court's Decision / What the Court Held: The Supreme Court held that Article 13(1) is not retrospective. A pre-Constitutional law that is inconsistent with fundamental rights becomes void only from 26 January 1950. It remains valid for past transactions, and a prosecution started before the Constitution for an offence committed before it can continue.

Relevance to the Topic: The case is the leading authority on the prospective effect of Article 13(1) on pre-Constitutional laws.

Important Points

- Art 13(1) applies to pre-Constitutional laws; Art 13(2) to post-Constitutional laws.
- Pre-Constitutional laws become void prospectively from 26 January 1950 (*Keshavan Madhava Menon*, 1951).
- Post-Constitutional laws violating fundamental rights are void from inception (*Deep Chand*, 1959).
- The doctrine of eclipse applies to pre-Constitutional laws (and partially to post-Constitutional laws for citizen-only rights: *Ambica Mills*, 1974).

Remember: Article 13(1) is not retrospective.

Topic 2.6: Doctrine of eclipse

Introduction

When a pre-Constitutional law becomes inconsistent with a fundamental right, it is not wiped out completely. It is only overshadowed, like the moon during an eclipse. If the fundamental right is later amended so that the inconsistency disappears, the "shadow" is removed, and the law becomes active again. This is the doctrine of eclipse, developed by the Supreme Court under Article 13(1).

Definition

> The **doctrine of eclipse** states that a pre-Constitutional law that is inconsistent with a fundamental right is not void *ab initio* but is only eclipsed (made unenforceable) by the fundamental right. It remains valid for past transactions and for persons who cannot claim that right, and it revives automatically if the inconsistency is removed by a constitutional amendment.

Detailed Explanation

1. Elements of the Doctrine

1. **Pre-Constitutional law:** the doctrine applies mainly to laws existing before 26 January 1950.
2. **Inconsistency with a fundamental right:** from 26 January 1950, the law becomes unenforceable to the extent of inconsistency.
3. **Not dead, but dormant:** the law remains on the statute book.
4. **Revival:** if the Constitution is amended to remove the inconsistency, the law revives without re-enactment.

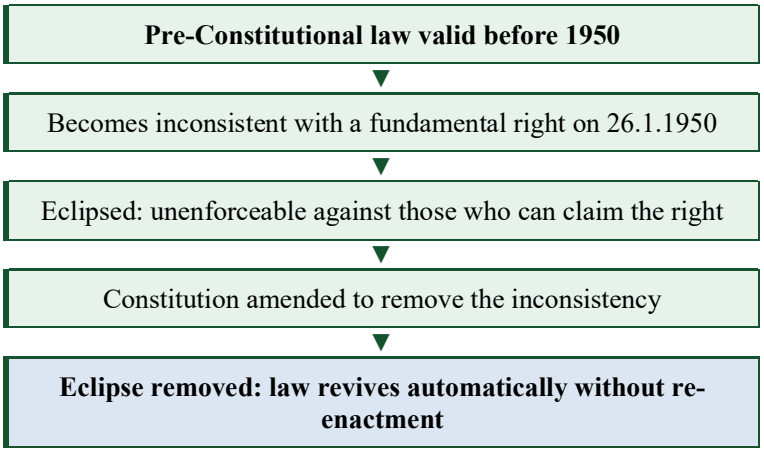
2. Application to Post-Constitutional Laws

1. *Deep Chand v State of UP* (1959): a post-Constitutional law violating a fundamental right is still-born (void ab initio) and cannot be revived by amendment.
2. *State of Gujarat v Ambica Mills* (1974): a post-Constitutional law that violates a fundamental right available only to citizens (e.g. Art 19) is void only as against citizens; it continues to operate against non-citizens (including companies). To that extent the doctrine of eclipse applies to post-Constitutional laws as well.

3. Rationale

1. Article 13(1) uses the words "to the extent of such inconsistency, be void", which suggests partial and relative invalidity.
2. The law was valid when it was made; the Constitution should not affect past transactions.

Flowchart: Operation of the doctrine of eclipse



Examples

- A 1947 State law allowed the State to take over the motor transport business. In 1950 it became inconsistent with Article 19(1)(g). In 1951, the First Amendment amended Article 19(6) to allow State monopolies. The 1947 law revived automatically (*Bhikaji Narain Dhakras*).

Case Laws

Case Law: Bhikaji Narain Dhakras v State of Madhya Pradesh

Year: 1955 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The C.P. and Berar Motor Vehicles (Amendment) Act, 1947 empowered the provincial Government to take over the entire motor transport business in the province, excluding private operators. After the Constitution came into force, this law was inconsistent with Article 19(1)(g). In 1951, the Constitution (First Amendment) Act amended Article 19(6) to permit the State to carry on any trade or business to the exclusion of citizens. The State then sought to enforce the 1947 Act.

Legal Issue: Does a pre-Constitutional law that became inconsistent with a fundamental right revive when the inconsistency is removed by a constitutional amendment?

Court's Decision / What the Court Held: The Court held that the 1947 Act was not void for all purposes; it was only eclipsed by the fundamental right in Article 19(1)(g). Once the First Amendment removed the shadow, the Act became free from all infirmity and operative from the date of the amendment, without any need for re-enactment.

Relevance to the Topic: The leading case establishing the doctrine of eclipse.

Case Law: State of Gujarat v Shri Ambica Mills Ltd.

Year: 1974 **Court:** Supreme Court of India

Facts / Background: The Bombay Labour Welfare Fund Act, a post-Constitutional law, required employers to transfer unpaid wages to a welfare fund. Ambica Mills, a company, challenged the law as violating Article 19(1)(f) (the right to property, then a fundamental right available to citizens).

Legal Issue: Is a post-Constitutional law that violates a citizen-only fundamental right void against everyone, including non-citizens such as companies?

Court's Decision / What the Court Held: The Court held that a post-Constitutional law that takes away or abridges a fundamental right conferred only on citizens is void only as against citizens; it is valid and operative against non-citizens, including companies. So the company could not challenge the law on the basis of Article 19.

Relevance to the Topic: The case extends the doctrine of eclipse in a limited way to post-Constitutional laws affecting citizen-only rights.

Important Points

- The doctrine of eclipse applies to pre-Constitutional laws under Art 13(1).
- Such laws are eclipsed, not dead, and revive when the inconsistency is removed (*Bhikaji Narain Dhakras*, 1955).
- Post-Constitutional laws violating fundamental rights are void ab initio (*Deep Chand*, 1959).
- But post-Constitutional laws violating citizen-only rights operate against non-citizens (*Ambica Mills*, 1974).

Remember: Revival under the doctrine of eclipse requires no re-enactment.

Topic 2.7: Doctrine of Severability

Introduction

A statute may contain many provisions, and only some of them may violate fundamental rights. Should the entire statute be struck down, or only the offending parts? Article 13 uses the words "to the extent of such inconsistency" and "to the extent of the contravention". From these words, the courts have developed the **doctrine of severability** (also called the doctrine of separability), under which only the invalid part is struck down, provided the remaining part can stand on its own.

Definition

> The **doctrine of severability** states that when a part of a statute is unconstitutional, only that part is declared void, and the rest of the statute continues to operate, provided the valid part is separable from the invalid part and can stand independently, and the legislature would have enacted the valid part without the invalid part.

Detailed Explanation

1. Basis

1. Art 13(1) and 13(2): laws are void "to the extent of" inconsistency or contravention.
2. Courts presume that the legislature intended its law to operate as far as constitutionally possible.

2. Tests of Severability (from *R.M.D. Chamarbaugwalla*, 1957)

1. **Legislative intention:** would the legislature have enacted the valid part if it had known that the rest was invalid?
2. **Independent existence:** if the valid and invalid parts are so inextricably mixed that they cannot be separated, the whole statute is invalid.
3. **Workability:** if the valid part, after removing the invalid part, is so thin and truncated that it is different from what the legislature intended, the whole statute fails.
4. **Different objects:** if the valid and invalid provisions form a single scheme, the whole may fail; if they are independent, the valid part survives.
5. **Substance, not form:** the court looks at the substance of the law, not merely its arrangement into sections.

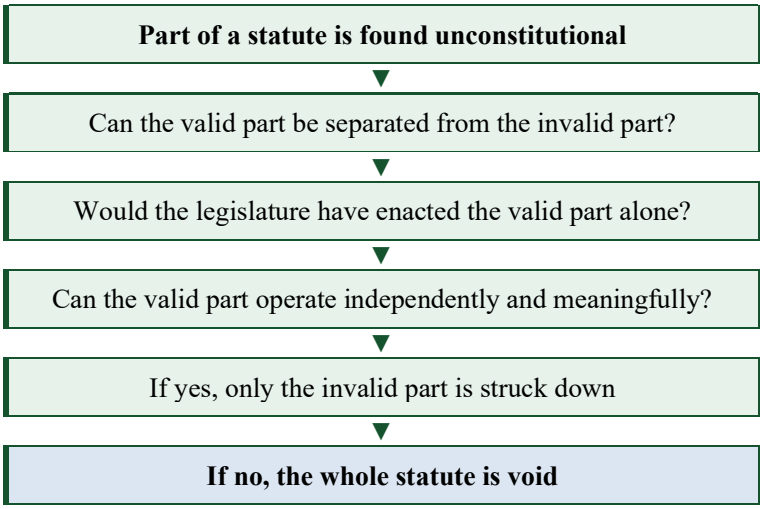
3. Doctrine of Severability and Constitutional Amendments

The doctrine has also been applied to constitutional amendments: e.g. in *Kihoto Hollohan v Zachillhu* (1992), paragraph 7 of the Tenth Schedule (barring judicial review of the Speaker's decision on disqualification) was struck down, while the rest of the Schedule was upheld.

4. Reading Down

Closely related to severability is the technique of "reading down": where a provision is capable of two interpretations, the court adopts the one that keeps it within constitutional limits (e.g. *Kedar Nath Singh v State of Bihar*, 1962, reading down the sedition provision).

Flowchart: Applying the doctrine of severability



Examples

- If a section of a Press Act prohibits criticism of the Government and also prohibits incitement to violence, the court may strike down the part prohibiting criticism and retain the part prohibiting incitement, if they are separable.
- In *A.K. Gopalan v State of Madras* (1950), only section 14 of the Preventive Detention Act, 1950 (which prevented a detenu from disclosing the grounds of detention to the court) was struck down; the rest of the Act was upheld.

Case Laws

Case Law: R.M.D. Chamarbaugwalla v Union of India

Year: 1957 **Court:** Supreme Court of India

Facts / Background: The Prize Competitions Act, 1955 defined "prize competition" widely, so as to include both competitions involving gambling and those involving substantial skill. The petitioners, who ran prize competitions, challenged the Act under Article 19(1)(g).

Legal Issue: Can the provisions of the Act be applied only to gambling competitions and saved, or must the whole Act be struck down because its definition also covered competitions of skill?

Court's Decision / What the Court Held: The Court held that the Act was intended to apply to gambling competitions. Competitions involving substantial skill are severable from

those of a gambling nature. The Act was valid as applied to gambling competitions, and the invalid application could be severed. The Court laid down detailed rules for determining severability.

Relevance to the Topic: The leading case on the tests of the doctrine of severability.

Important Points

- Severability is based on the words "to the extent of" in Art 13.
- Only the invalid part is struck down if it is separable and the remainder can stand.
- Tests were laid down in *R.M.D. Chamarbaugwalla* (1957).
- Applied in *A.K. Gopalan* (1950) (s.14 PD Act) and *Kihoto Hollohan* (1992) (para 7, Tenth Schedule).

Remember: Severability saves a law; eclipse suspends it.

Topic 2.8: Doctrine of waiver

Introduction

In private law, a person can usually waive (give up) a right that exists for his own benefit. Can a person also waive a fundamental right, for example by agreeing not to claim equality or by accepting an unconstitutional condition? The Supreme Court has answered this question in the negative: fundamental rights cannot be waived, because they are not only for the individual's benefit but are also based on public policy.

Definition

> The **doctrine of waiver** is the principle that a person may voluntarily give up a right that he possesses. In constitutional law, the Supreme Court has held that a person **cannot waive** his fundamental rights, because they are founded on public policy and impose obligations on the State.

Detailed Explanation

1. Meaning of Waiver

1. Waiver means intentional relinquishment of a known right.
2. In contract law, a party may waive rights under a contract (s.63, Indian Contract Act).
3. In constitutional law, the question is whether a citizen can give up his fundamental rights by agreement or conduct.

2. The Rule: No Waiver of Fundamental Rights

1. In *Basheshar Nath v Commissioner of Income Tax* (1959), the Supreme Court held that a person cannot waive fundamental rights.
2. The Court explained that fundamental rights are not merely for the benefit of individuals; they are also based on public policy, imposing an obligation on the State.
3. The majority held that at least the right under Article 14 cannot be waived; some judges held more broadly that no fundamental right can be waived.

3. Reasons for the Rule

1. **Public policy:** fundamental rights are limits on State power in the public interest.
2. **Inequality of bargaining power:** citizens, especially the poor and illiterate, may be pressured into giving up rights.
3. **Constitutional supremacy:** private agreements cannot override the Constitution.
4. **No estoppel against the Constitution:** a person who made a statement or concession earlier cannot be prevented from claiming his fundamental right later.

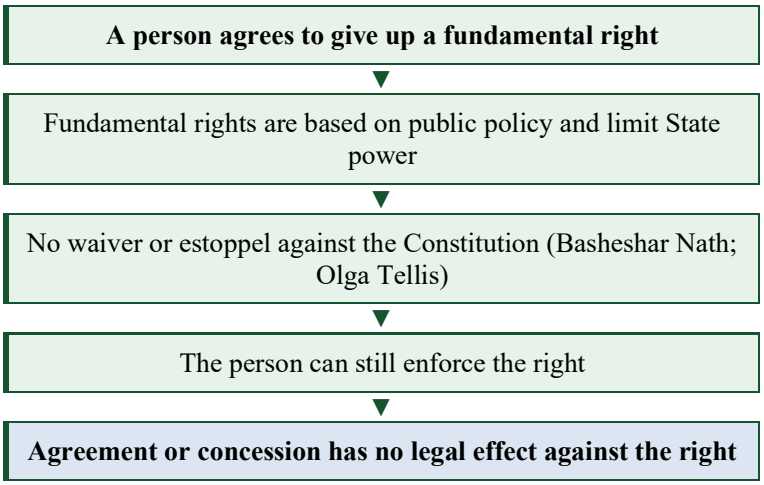
4. Later Applications

1. *Olga Tellis v Bombay Municipal Corporation* (1985): pavement dwellers had given an undertaking in an earlier proceeding that they would not resist demolition. The Court held that there can be no estoppel against the Constitution, and they could still claim their fundamental right to livelihood under Article 21.

5. Limited Waiver in Practice

1. A person may choose not to exercise a right (e.g. not to speak), but that is not waiver of the right itself.
2. Procedural rights, such as the right to be produced before a magistrate, cannot be waived by private arrangement with the police.

Flowchart: Can a fundamental right be waived?



Examples

- A Government employee signs an undertaking that he will not challenge any discriminatory transfer. He can still challenge a discriminatory transfer under Article 14.
- A slum dweller who agreed in court to vacate can still claim the protection of Article 21 in later proceedings.

Case Laws

Case Law: Basheshar Nath v Commissioner of Income Tax, Delhi and Rajasthan

Year: 1959 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The petitioner's case was referred to the Income Tax Investigation Commission under section 5(1) of the Taxation on Income (Investigation Commission) Act, 1947. He entered into a settlement and agreed to pay a large sum by instalments. Later, in another case (*Muthiah v CIT*), section 5(1) was declared void as violating Article 14. The

petitioner then challenged the settlement, while the Revenue argued that he had waived his rights by agreeing to the settlement.

Legal Issue: Can a person waive his fundamental rights?

Court's Decision / What the Court Held: The Court held that the petitioner could not waive his fundamental right under Article 14. Article 14 is a command to the State, founded on public policy, and the State cannot be released from it by the consent of an individual. The majority held that fundamental rights cannot be waived; at least Article 14 cannot.

Relevance to the Topic: The leading case on the doctrine of waiver in constitutional law.

Case Law: Olga Tellis v Bombay Municipal Corporation

Year: 1985 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Pavement dwellers in Bombay faced eviction and demolition of their huts. In earlier proceedings, they had given an undertaking that they would not claim any fundamental right to put up huts on pavements and would not obstruct demolition after a certain date. (The case is also discussed under Topic 2.25 on the right to livelihood.)

Legal Issue: Does an undertaking given by the petitioners estop them from claiming their fundamental rights?

Court's Decision / What the Court Held: The Court held that there can be no estoppel against the Constitution. Fundamental rights are conferred not only for the benefit of individuals but also as a matter of public policy, so they cannot be waived. The petitioners could still claim the protection of Article 21.

Relevance to the Topic: The case confirms that fundamental rights cannot be waived and that there is no estoppel against the Constitution.

Important Points

- Fundamental rights cannot be waived (*Basheshar Nath*, 1959).
- They are based on public policy and impose obligations on the State.
- There is no estoppel against the Constitution (*Olga Tellis*, 1985).
- Not exercising a right is different from waiving it.

Remember: Waiver is permitted in private law but not for fundamental rights.

Topic 2.9: Doctrine of Judicial Review

Introduction

A constitution that limits the powers of government needs someone to enforce those limits. In India, this role is performed by the courts through **judicial review**. Courts can examine whether a law or executive action is consistent with the Constitution and declare it void if it is not. Judicial review is the guardian of fundamental rights, federalism and the rule of law, and it is part of the basic structure of the Constitution.

Definition

> **Judicial review** is the power of the Supreme Court and High Courts to examine the constitutional validity of legislative and executive actions (and constitutional amendments) and to declare them void if they violate the Constitution.

Detailed Explanation

1. Origin

1. *Marbury v Madison* (USA, 1803): Chief Justice Marshall held that courts have the power to declare unconstitutional laws void.
2. In India, judicial review is expressly provided by the Constitution itself.

2. Constitutional Basis in India

Article	Role in judicial review
13	Laws inconsistent with fundamental rights are void
32	Supreme Court's power to enforce fundamental rights
131	Original jurisdiction in Centre-State disputes
132–136	Appellate jurisdiction, including special leave
143	Advisory jurisdiction
226, 227	High Courts' writ jurisdiction and superintendence
245, 246, 254	Legislative competence and repugnancy
372	Existing laws continue subject to the Constitution

3. Grounds of Judicial Review of Legislation

1. **Violation of fundamental rights** (Art 13).
2. **Lack of legislative competence** (outside the relevant List in the Seventh Schedule).
3. **Violation of other constitutional provisions** (e.g. Art 301, freedom of trade).
4. **Violation of the basic structure** (for constitutional amendments).

5. **Manifest arbitrariness** (*Shayara Bano*, 2017).

4. Judicial Review of Administrative Action

Grounds (as summarised in *Tata Cellular v Union of India*, 1994, drawing on English law): illegality, irrationality (Wednesbury unreasonableness), procedural impropriety, and proportionality.

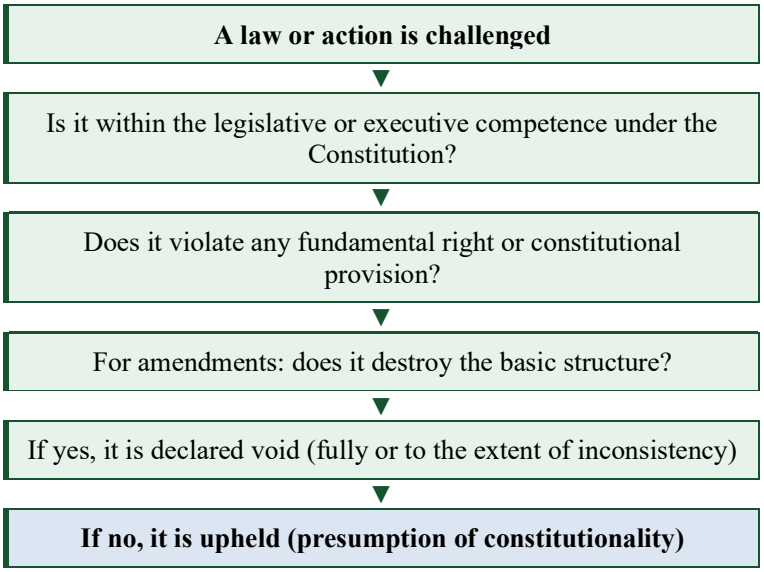
5. Judicial Review of Constitutional Amendments

1. *Shankari Prasad* (1951) and *Sajjan Singh* (1965): amendments are not "law" under Art 13.
2. *Golaknath* (1967): amendments are "law" and cannot abridge fundamental rights.
3. *Kesavananda Bharati* (1973): amendments are valid unless they destroy the basic structure.
4. *Indira Gandhi v Raj Narain* (1975), *Minerva Mills* (1980): judicial review is part of the basic structure.

6. Limits on Judicial Review

1. Courts do not examine the wisdom or policy of laws.
2. Presumption of constitutionality: the burden is on the person challenging the law.
3. Doctrine of separation of powers and judicial restraint.
4. Certain matters are not justiciable (e.g. internal proceedings of Parliament, Art 122).

Flowchart: Judicial review of a law



Examples

- A State law on banking would be struck down for lack of competence, since banking is in the Union List.

- A constitutional amendment that removes the power of High Courts under Article 226 entirely would be struck down as violating the basic structure.

Case Laws

Case Law: L. Chandra Kumar v Union of India

Year: 1997 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: Articles 323A and 323B, inserted by the 42nd Amendment (1976), allowed Parliament and State legislatures to set up administrative and other tribunals and to exclude the jurisdiction of all courts except the Supreme Court under Article 136. The Administrative Tribunals Act, 1985 excluded the jurisdiction of High Courts over service matters. This was challenged.

Legal Issue: Can the power of judicial review of the High Courts under Articles 226 and 227 and of the Supreme Court under Article 32 be excluded by a constitutional amendment or law?

Court's Decision / What the Court Held: The Court held that the power of judicial review vested in the High Courts under Articles 226 and 227 and in the Supreme Court under Article 32 is part of the basic structure of the Constitution and cannot be excluded. Clauses of Articles 323A and 323B that excluded the jurisdiction of High Courts were struck down. Tribunals can function as courts of first instance, but their decisions are subject to the writ jurisdiction of the High Court (before a Division Bench).

Relevance to the Topic: The case confirms that judicial review is an essential and unamendable feature of the Constitution.

Important Points

- Judicial review began with *Marbury v Madison* (1803).
- In India, it is based on Arts 13, 32, 131–136, 143, 226, 227 and 245–254.
- Laws are reviewed for fundamental rights, competence, other constitutional provisions and basic structure.
- Judicial review is part of the basic structure (*Indira Gandhi*, 1975; *Minerva Mills*, 1980; *L. Chandra Kumar*, 1997).

Remember: Courts review the legality, not the wisdom, of laws.

Topic 2.10: Right to Equality (Article 14 to 18)

Introduction

Equality is one of the central promises of the Preamble ("equality of status and of opportunity"). Articles 14 to 18 together make up the **Right to Equality**. They prohibit arbitrary and discriminatory State action, abolish untouchability and titles, and at the same time permit special measures to uplift disadvantaged groups. This topic gives an overview of these Articles; each concept is explained in detail in the topics that follow.

Definition

> The **Right to Equality** is the group of fundamental rights in Articles 14 to 18 that guarantee equality before law and equal protection of laws, prohibit discrimination on specified grounds, ensure equality of opportunity in public employment, abolish untouchability, and abolish titles.

Detailed Explanation

1. Overview of Articles 14 to 18

Article	Content	Available to
14	Equality before law and equal protection of the laws	All persons
15	Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth; special provisions for women, children, backward classes, SCs/STs and EWS (Art 15(3)–(6))	Citizens
16	Equality of opportunity in public employment; reservation for backward classes (Art 16(4)), promotions (16(4A)), carry forward (16(4B)), EWS (16(6))	Citizens
17	Abolition of untouchability; its practice in any form is forbidden and punishable	All (enforceable against private persons too)
18	Abolition of titles, except military and academic distinctions	Citizens and certain non-citizens in State service

2. Two Dimensions of Equality

1. **Formal equality:** treating everyone the same; no privileges (equality before law).
2. **Substantive equality:** treating unequals differently to achieve real equality (protective discrimination, reservation).

3. Development of the Equality Doctrine

1. **Reasonable classification test:** *State of West Bengal v Anwar Ali Sarkar* (1952); *Budhan Choudhry* (1955).

2. **New doctrine of equality (non-arbitrariness):** *E.P. Royappa* (1974); *Maneka Gandhi* (1978).
3. **Manifest arbitrariness for legislation:** *Shayara Bano* (2017).
4. **Substantive equality and reservation:** *N.M. Thomas* (1976); *Indra Sawhney* (1992).
5. **Transformative equality and dignity:** *Navtej Singh Johar* (2018); *Joseph Shine* (2018).

Flowchart: Structure of the Right to Equality



Examples

- A law that gives special benefits only to persons of one religion would violate Articles 14 and 15.
- Reservation of seats in educational institutions for Scheduled Castes is permitted by Article 15(4) and does not violate equality.

Case Laws

This is an overview topic. The leading cases on each part of the Right to Equality are explained in detail in Topics 2.11 to 2.21, including *Anwar Ali Sarkar* (1952), *Budhan Choudhry* (1955), *E.P. Royappa* (1974), *Shayara Bano* (2017), *Champakam Dorairajan* (1951), *N.M. Thomas* (1976), *Indra Sawhney* (1992), *State of Karnataka v Appa Balu Ingale* (1993) and *Balaji Raghavan* (1996).

Important Points

- Articles 14–18 form the Right to Equality.
- Art 14 applies to all persons; Arts 15, 16 and 18 mainly to citizens; Art 17 applies against everyone.
- Equality includes both formal and substantive equality.
- The doctrine has developed from reasonable classification to non-arbitrariness and substantive equality.

Remember: Equality does not mean identical treatment for all; it means equal treatment of equals and different treatment of unequals.

Topic 2.11: Equality before law and equal protection of laws

Introduction

Article 14 is the foundation of the Right to Equality. It uses two expressions: "equality before the law" and "equal protection of the laws". The first comes from English law and the second from American law. Together, they ensure that the State treats everyone fairly and does not discriminate arbitrarily. Article 14 applies to all persons, including foreigners and companies.

Definition

> **Article 14:** "The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India."

Detailed Explanation

1. Equality Before Law

1. A **negative** concept, taken from Dicey's rule of law in English law.
2. No person is above the law; everyone, whatever his rank, is subject to the ordinary law and the jurisdiction of ordinary courts.
3. There are no special privileges for any person or class.

2. Equal Protection of Laws

1. A **positive** concept, taken from the Fourteenth Amendment of the US Constitution.
2. Equal treatment in equal circumstances: "like should be treated alike".
3. It does not require that the same law apply to everyone; it permits **reasonable classification**, i.e. different treatment of different classes.
4. It also requires the State to take positive steps to secure equality for disadvantaged persons.

3. Comparison

Point	Equality before law	Equal protection of laws
Source	British Constitution (Dicey)	US Constitution (14th Amendment)
Nature	Negative: no special privileges	Positive: equal treatment in equal circumstances
Meaning	All are subject to the same law	Equals must be treated alike; unequals may be treated differently
Classification	Not directly relevant	Reasonable classification permitted

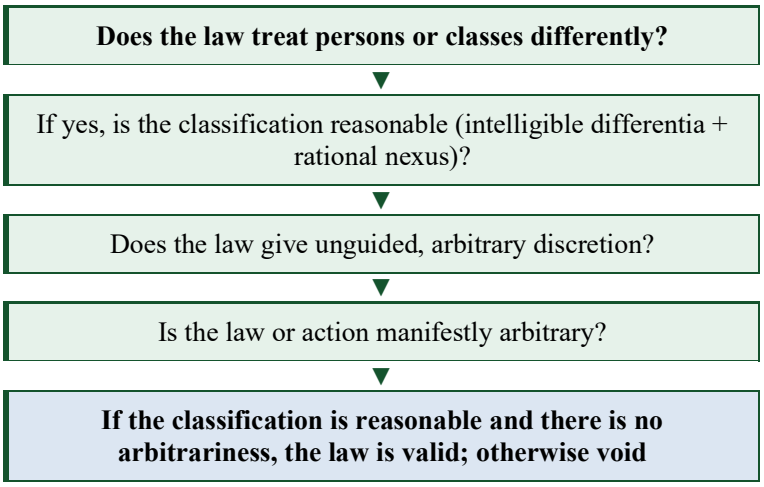
4. Exceptions to Article 14

1. **Art 361:** the President and Governors are not answerable to any court for the exercise of their powers, and no criminal proceedings can be instituted against them during their term.
2. **Art 105 and 194:** immunities of members of Parliament and State legislatures for what they say or vote in the House.
3. **Art 31A, 31B and 31C:** saving of certain laws.
4. **Foreign sovereigns and diplomats** enjoy immunity under international law.
5. **Special provisions** under Arts 15(3)–(6) and 16(4)–(6).

5. Article 14 and Unguided Discretion

A law that confers unguided, arbitrary discretion on an authority to treat similarly placed persons differently violates Article 14, because it allows unequal treatment without any principle.

Flowchart: Testing a law under Article 14



Examples

- A Minister is accused of a crime. He must be tried by an ordinary criminal court like any other person (equality before law).
- Income tax at different rates for different income groups is valid; it is a reasonable classification (equal protection of laws).

Case Laws

Case Law: State of West Bengal v Anwar Ali Sarkar

Year: 1952 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: Section 5(1) of the West Bengal Special Courts Act, 1950 allowed the State Government to direct any "case" or "class of cases" or "offences" to be tried by a

Special Court, which followed a procedure less favourable to the accused than the ordinary criminal procedure. Anwar Ali Sarkar's case was sent to a Special Court and he was convicted. He challenged the law under Article 14.

Legal Issue: Does a law that gives the Government unguided discretion to choose which cases will be tried by a Special Court, under a less favourable procedure, violate Article 14?

Court's Decision / What the Court Held: The majority held that section 5(1) was void to the extent it allowed the Government to refer any individual "case" to a Special Court, because it laid down no policy or principle for selecting cases. It allowed arbitrary discrimination between persons similarly situated and violated the equal protection of laws.

Relevance to the Topic: The case shows that unguided, arbitrary discretion violates the equal protection of laws under Article 14.

Important Points

- Article 14 guarantees equality before law (negative) and equal protection of laws (positive).
- It applies to all persons, citizens and non-citizens.
- It permits reasonable classification but prohibits class legislation and arbitrariness.
- Exceptions include Arts 361, 105, 194 and diplomatic immunity.
- *Anwar Ali Sarkar* (1952): unguided discretion violates Art 14.

Remember: Equality before law comes from Dicey; equal protection of laws from the US Constitution.

Topic 2.12: Doctrine of Rule of law

Introduction

The rule of law is one of the most important principles of constitutional government. It means that the country is governed by law, not by the arbitrary will of rulers. The principle is closely linked with Article 14, because "equality before the law" is one of its key elements. The Supreme Court has declared the rule of law to be a part of the basic structure of the Constitution.

Definition

> The **rule of law** is the principle that all persons and authorities, including the Government, are subject to and accountable under law that is publicly made, equally enforced, independently adjudicated and consistent with fundamental rights.

Detailed Explanation

1. Dicey's Three Principles (1885)

Professor A.V. Dicey, in *Introduction to the Study of the Law of the Constitution*, explained the rule of law through three principles:

1. **Supremacy of law:** no person can be punished except for a distinct breach of law established in the ordinary courts. There is no arbitrary power.
2. **Equality before law:** every person, whatever his rank, is subject to the ordinary law and the jurisdiction of ordinary courts.
3. **Predominance of the legal spirit:** in England, rights were secured through judicial decisions rather than a written constitution.

2. Application in India

1. **Supremacy of law:** Art 13 and judicial review; no one is above the Constitution.
2. **Equality before law:** Art 14.
3. **Third principle:** not fully applicable, since Indian rights are written in the Constitution; but the Constitution itself is the supreme law.

3. Modern Understanding

1. **Formal rule of law:** laws must be clear, public, prospective and applied equally.
2. **Substantive rule of law:** laws must also respect human rights and dignity.
3. **Elements:** independent judiciary, access to justice, fair procedure, accountability of the Government, protection of fundamental rights.

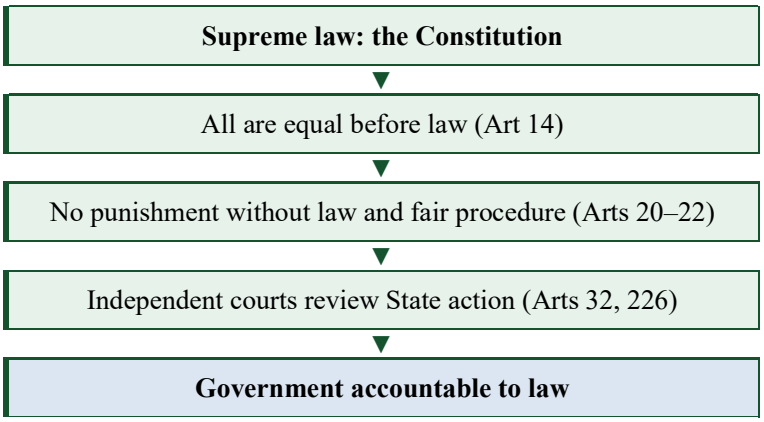
4. Rule of Law and Indian Constitutional Provisions

Element	Provision
Supremacy of the Constitution	Arts 13, 245
Equality before law	Art 14
Fair procedure	Arts 20, 21, 22
Judicial review	Arts 32, 226
Independent judiciary	Arts 124, 217, 50
Accountability of Government	Arts 75, 164, 300 (suits against the Government)

5. Exceptions and Limits

1. Immunities under Arts 361, 105 and 194.
2. Discretionary powers of the executive (which must still be exercised reasonably).
3. Emergency provisions (now subject to safeguards).

Flowchart: Elements of the rule of law in India



Examples

- A police officer who tortures a suspect can be prosecuted and made to pay compensation, because he is not above the law.
- The Government cannot detain a person merely because it dislikes his political views; it must act under a valid law and procedure.

Case Laws

Case Law: Additional District Magistrate, Jabalpur v Shivkant Shukla (Habeas Corpus Case)

Year: 1976 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: During the Emergency proclaimed in 1975, the President, under Article 359, suspended the right to move any court for enforcement of Articles 14, 21 and 22. Many persons were detained under the Maintenance of Internal Security Act (MISA). Several High Courts entertained habeas corpus petitions and held that detenus could challenge detention orders as illegal or mala fide. The State appealed.

Legal Issue: During an Emergency, when the right to move courts for enforcement of Article 21 is suspended, can a detenu challenge his detention on the ground that it is illegal or mala fide?

Court's Decision / What the Court Held: By a 4:1 majority, the Supreme Court held that no person could move a court for habeas corpus to challenge detention during the Emergency, because Article 21 was the sole repository of the right to life and liberty and its enforcement was suspended. Justice H.R. Khanna, in a famous dissent, held that the rule of law and the right to life exist independently, and that even during an Emergency the State cannot deprive a person of life and liberty without the authority of law. The majority view was later declared wrong: the 44th Amendment (1978) provided that Articles 20 and 21 cannot be suspended, and in *K.S. Puttaswamy v Union of India* (2017), the Supreme Court expressly overruled the majority in *ADM Jabalpur*.

Relevance to the Topic: The case and its later overruling show the importance of the rule of law; Justice Khanna's dissent is regarded as a classic defence of the rule of law.

Important Points

- Dicey's three principles: supremacy of law, equality before law, predominance of legal spirit.
- In India, the rule of law is secured by Arts 13, 14, 20–22, 32 and 226.
- The rule of law is part of the basic structure (*Indira Gandhi v Raj Narain*, 1975).
- *ADM Jabalpur* (1976) was overruled in *Puttaswamy* (2017); Khanna J.'s dissent upheld the rule of law.

Remember: The rule of law means that power must be exercised according to law, not personal will.

Topic 2.13: Doctrine of Reasonable Classification

Introduction

Article 14 does not require that all persons be treated in exactly the same way. Different groups have different needs, and laws often have to treat them differently, for example taxing the rich more than the poor, or giving special protection to children. Article 14 allows such differences if they are based on a **reasonable classification**. This doctrine is the traditional test for deciding whether a law violates equal protection.

Definition

> The **doctrine of reasonable classification** states that Article 14 forbids class legislation but permits reasonable classification for the purposes of legislation, provided the classification (i) is founded on an intelligible differentia that distinguishes those grouped together from others left out, and (ii) has a rational nexus with the object sought to be achieved by the law.

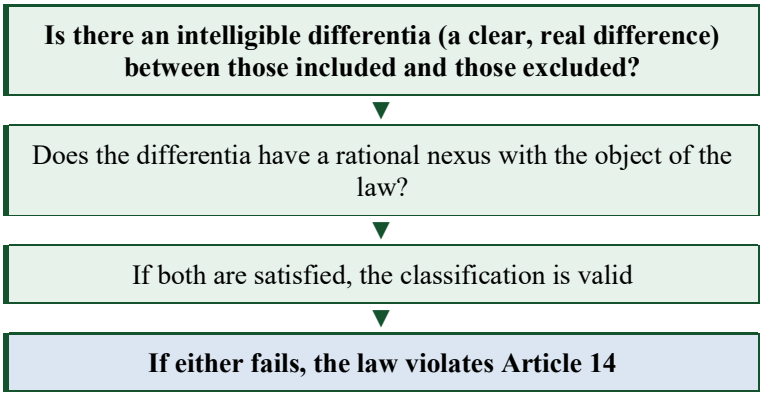
Detailed Explanation

1. Class Legislation versus Reasonable Classification

Class legislation (prohibited)	Reasonable classification (permitted)
Arbitrarily selects a group for special privileges or burdens	Groups persons on real differences
No reasonable basis	Based on intelligible differentia
No connection with the object of the law	Rational nexus with the object

2. The Twin Test

Flowchart: Twin test of reasonable classification



1. **Intelligible differentia:** the basis of classification must be real and understandable, e.g. age, sex, income, geography, nature of business, type of offence.

2. **Rational nexus:** the difference must be connected with the purpose of the law.

3. Principles Laid Down in Ram Krishna Dalmia (1958)

1. A law may be constitutional even if it applies to a single person, if there are special circumstances applicable to him not applicable to others (*Chiranjit Lal Chowdhury v Union of India*, 1950).
2. There is a presumption in favour of the constitutionality of a law; the burden is on the person who challenges it.
3. The legislature understands the needs of the people; it can recognise degrees of harm.
4. The classification may be based on geography, objects, occupations, etc.
5. The courts may consider matters of common knowledge, history and surrounding circumstances.
6. If there is nothing on the face of the law or in the surrounding circumstances to support the classification, the presumption of constitutionality may not be sustained.

4. Bases of Classification Upheld by Courts

1. Geographical: special laws for particular areas.
2. Age: special treatment of juveniles.
3. Sex: special provisions for women (Art 15(3)).
4. Nature of business: different taxes for different trades.
5. Time: different rules for cases before and after a date, if reasonable.
6. Type of offence: special courts for certain grave offences, if guided by policy.

5. Limitations of the Doctrine

The classification test is useful but can become a mechanical exercise. Courts later developed the new doctrine of equality (non-arbitrariness) to supplement it (Topic 2.15).

Examples

- A law providing for separate courts for juvenile offenders is valid: the differentia (age) has a rational nexus with the object (reform of young offenders).
- A law providing a higher pension only for those who retired after a certain date, without any reasonable basis, may be invalid (*D.S. Nakara v Union of India*, 1983).

Case Laws

Case Law: Budhan Choudhry v State of Bihar

Year: 1955 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The appellants were convicted by a magistrate who had been specially empowered under section 30 of the Code of Criminal Procedure, 1898 to try certain

offences. They argued that section 30 violated Article 14, because it allowed the Government to confer special powers on some magistrates and not others, resulting in different procedures for similar offences.

Legal Issue: Does section 30 CrPC violate Article 14, and what are the tests of a valid classification?

Court's Decision / What the Court Held: The Court upheld section 30. It laid down the twin test: Article 14 forbids class legislation but permits reasonable classification, provided the classification is based on an intelligible differentia and the differentia has a rational relation to the object of the statute. The judicial discretion vested in courts under section 30 was not arbitrary.

Relevance to the Topic: The leading case stating the twin test of reasonable classification.

Case Law: Ram Krishna Dalmia v Justice S.R. Tendolkar

Year: 1958 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Central Government, under the Commissions of Inquiry Act, 1952, appointed a Commission to inquire into the affairs of certain companies associated with the Dalmia group. The petitioners argued that the notification singled them out for hostile treatment and violated Article 14.

Legal Issue: Can a law or notification that applies to a single person or group be valid under Article 14?

Court's Decision / What the Court Held: The Court upheld the Act and the notification. It explained that a law may be valid even if it applies to one person or a group, if there are special circumstances. It laid down detailed principles on reasonable classification, including the presumption of constitutionality and the classification of statutes into categories.

Relevance to the Topic: The case provides the most detailed guidelines on the doctrine of reasonable classification.

Important Points

- Art 14 forbids class legislation but permits reasonable classification.
- Twin test: intelligible differentia + rational nexus (*Budhan Choudhry*, 1955).
- A law may apply to a single person if there are special circumstances (*Chiranjit Lal*, 1950; *Ram Krishna Dalmia*, 1958).
- There is a presumption of constitutionality.

Remember: The classification must be reasonable, not arbitrary, artificial or evasive.

Topic 2.14: Right against arbitrariness

Introduction

Equality is violated not only by unreasonable classification but also by arbitrary action. If the State acts without reason, on whim or caprice, or in a way that is unfair and unjust, it denies equality. The Supreme Court has held that arbitrariness is the very opposite of equality, so Article 14 gives every person a right against arbitrary State action. In *Shayara Bano* (2017), the Court held that even legislation can be struck down if it is "manifestly arbitrary".

Definition

> The **right against arbitrariness** is the guarantee, derived from Article 14, that State action, whether executive or legislative, must be fair, reasonable and based on relevant principles, and not capricious, irrational or without adequate determining principle.

Detailed Explanation

1. Meaning of Arbitrariness

1. Action taken without any principle, reason or relevant consideration.
2. Action based on whim, caprice, bias or irrelevant factors.
3. Action that is irrational, disproportionate or excessive.
4. "Manifest arbitrariness" means something done capriciously, irrationally and/or without adequate determining principle, or which is excessive and disproportionate (*Shayara Bano*).

2. Application to Executive Action

1. Government contracts, licences and jobs must be given fairly (*R.D. Shetty*, 1979).
2. Admissions to State institutions must be fair (*Ajay Hasia*, 1981).
3. Transfers, dismissals and other service decisions must not be arbitrary.
4. Discretion must be exercised reasonably and for relevant purposes.

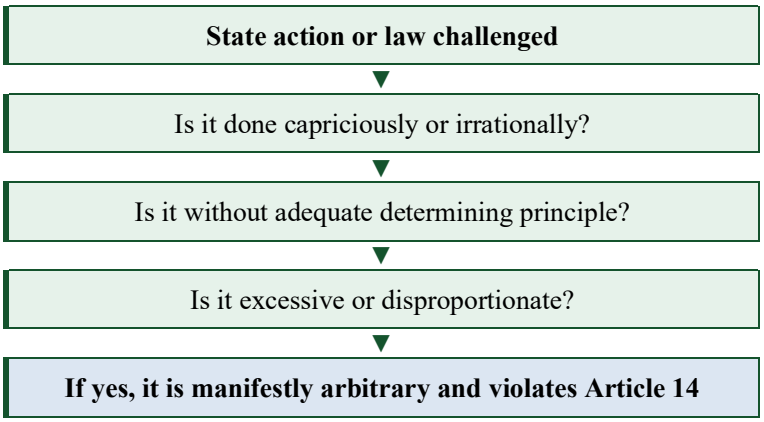
3. Application to Legislation

1. Earlier, some judgments (e.g. *State of Andhra Pradesh v McDowell & Co.*, 1996) suggested that legislation could not be struck down merely for arbitrariness.
2. In *Shayara Bano v Union of India* (2017), the majority held that the doctrine of manifest arbitrariness applies to legislation also. Instant triple talaq, recognised by section 2 of the Muslim Personal Law (Shariat) Application Act, 1937, was struck down as manifestly arbitrary.
3. Later cases applied the doctrine: *Navtej Singh Johar* (2018) (section 377 IPC partly struck down) and *Joseph Shine* (2018) (section 497 IPC, adultery, struck down).

4. Relationship with Classification

Point	Classification test	Arbitrariness test
Focus	Comparison between groups	Fairness of the action itself
Question	Is the grouping reasonable?	Is the action rational and fair?
Origin	*Anwar Ali Sarkar*, *Budhan Choudhry*	*E.P. Royappa*, *Maneka Gandhi*, *Shayara Bano*

Flowchart: Test of manifest arbitrariness



Examples

- A State university fixes 50% of marks for an oral interview in an admission test. This gives scope for arbitrary selection and violates Article 14 (*Ajay Hasia*).
- A husband can end a marriage instantly and irrevocably by pronouncing talaq three times at once, with no attempt at reconciliation. The Supreme Court held this to be manifestly arbitrary.

Case Laws

Case Law: Shayara Bano v Union of India

Year: 2017 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Shayara Bano's husband divorced her by pronouncing talaq three times at once (talaq-e-biddat or instant triple talaq). She challenged the practice as violating Articles 14, 15, 21 and 25.

Legal Issue: Is instant triple talaq constitutionally valid?

Court's Decision / What the Court Held: By a 3:2 majority, the Court set aside instant triple talaq. Justices Nariman and Lalit held that it was manifestly arbitrary and violated Article 14, because it allowed a marriage to be broken capriciously and whimsically without any attempt at reconciliation; and that the doctrine of manifest arbitrariness applies to

legislation. Justice Kurian Joseph held that it was not part of Islamic law. Parliament later enacted the Muslim Women (Protection of Rights on Marriage) Act, 2019, making instant triple talaq void and an offence.

Relevance to the Topic: The leading case establishing that legislation can be struck down for manifest arbitrariness under Article 14.

Case Law: Ajay Hasia v Khalid Mujib Sehravardi (on arbitrariness)

Year: 1981 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Admission to the Regional Engineering College, Srinagar was based on a written test and an interview, with one-third of the total marks allotted to the interview (facts in Topic 2.3).

Legal Issue: Does allotting a high percentage of marks for interviews in admissions violate Article 14?

Court's Decision / What the Court Held: The Court held that Article 14 strikes at arbitrariness in State action. Allotting such a high percentage of marks for the interview was arbitrary, as it gave scope for manipulation, and violated Article 14. The Court suggested that interview marks should not exceed 15% for admissions.

Relevance to the Topic: The case applies the right against arbitrariness to executive action.

Important Points

- Arbitrariness is the antithesis of equality.
- Art 14 protects against arbitrary executive and legislative action.
- Manifest arbitrariness: capricious, irrational, without adequate principle, or disproportionate (*Shayara Bano*, 2017).
- Applied in *Navtej Singh Johar* (2018) and *Joseph Shine* (2018).

Remember: Even a statute can be struck down if it is manifestly arbitrary.

Topic 2.15: New doctrine of Equality

Introduction

For many years, the Supreme Court applied Article 14 mainly through the reasonable classification test. In 1974, in *E.P. Royappa v State of Tamil Nadu*, Justice P.N. Bhagwati gave Article 14 a new dimension: equality is not just about classification; it is a dynamic concept that strikes at all forms of arbitrariness. This "new doctrine of equality" was further developed in *Maneka Gandhi* (1978) and later cases, and it has made Article 14 one of the most powerful tools for controlling State action.

Definition

> The **new doctrine of equality** holds that equality is a dynamic concept which cannot be confined within traditional limits, and that Article 14 strikes at arbitrariness in State action and ensures fairness and equality of treatment. Equality and arbitrariness are "sworn enemies": an arbitrary act is necessarily unequal.

Detailed Explanation

1. Traditional Doctrine versus New Doctrine

Point	Traditional doctrine	New doctrine
Approach	Reasonable classification (twin test)	Non-arbitrariness, fairness and reasonableness
Key cases	*Anwar Ali Sarkar* (1952), *Budhan Choudhry* (1955)	*E.P. Royappa* (1974), *Maneka Gandhi* (1978), *R.D. Shetty* (1979), *Ajay Hasia* (1981)
Nature	Comparative (between groups)	Substantive (fairness of State action)
Scope	Classification in laws	All State action, including contracts and administrative decisions

2. Main Features of the New Doctrine

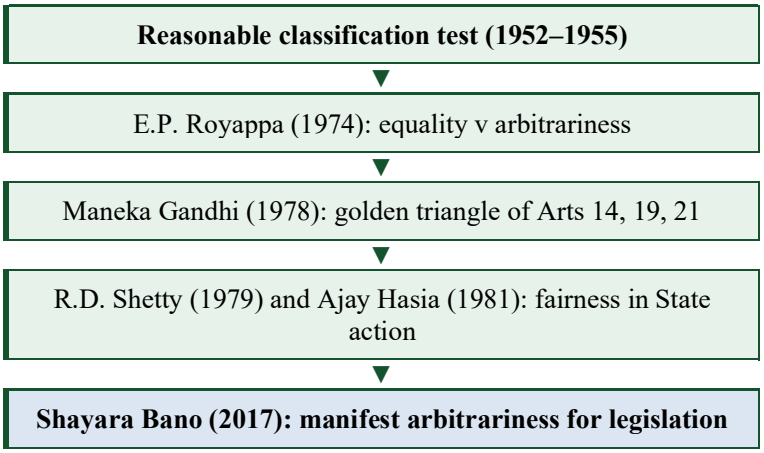
1. **Equality as a dynamic concept:** it cannot be "cribbed, cabined and confined" within traditional limits.
2. **Arbitrariness violates equality:** an arbitrary act is unequal both according to political logic and constitutional law.
3. **Golden triangle:** Articles 14, 19 and 21 are interlinked; any procedure depriving liberty must be fair, just and reasonable (*Maneka Gandhi*).
4. **State largesse:** the Government must act fairly when granting contracts, licences, jobs or other benefits (*R.D. Shetty*).
5. **Natural justice:** fairness in procedure is part of Article 14.

6. **Proportionality:** later cases added proportionality as a test of reasonableness.

3. Significance

1. It widened the scope of judicial review of administrative action.
2. It brought State contracts and public employment under constitutional scrutiny.
3. It prepared the ground for the manifest arbitrariness doctrine for legislation (*Shayara Bano*, 2017).

Flowchart: Development of the new doctrine of equality



Examples

- A Government department awards a contract to a firm that did not meet the tender conditions, without giving reasons. Under the new doctrine, the decision is arbitrary and violates Article 14.
- A rule allows the authorities to cancel any licence at their pleasure without reasons. It is arbitrary and invalid.

Case Laws

Case Law: E.P. Royappa v State of Tamil Nadu

Year: 1974 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: E.P. Royappa, a senior IAS officer, was Chief Secretary of Tamil Nadu. He was transferred to a newly created post of Deputy Chairman of the State Planning Commission, which he argued was not equivalent in status to the post of Chief Secretary. He alleged that the transfer was mala fide and violated Articles 14 and 16.

Legal Issue: Did the transfer violate Articles 14 and 16, and what is the scope of the guarantee of equality?

Court's Decision / What the Court Held: On the facts, the Court did not find mala fides proved and dismissed the petition. But Justice Bhagwati (for himself, Chandrachud and

Krishna Iyer JJ.) gave the new meaning of Article 14: "Equality is a dynamic concept with many aspects and dimensions and it cannot be cribbed, cabined and confined within traditional and doctrinaire limits... equality and arbitrariness are sworn enemies... where an act is arbitrary it is implicit in it that it is unequal both according to political logic and constitutional law and is therefore violative of Article 14."

Relevance to the Topic: The case is the origin of the new doctrine of equality.

Case Law: Ramana Dayaram Shetty v International Airport Authority of India

Year: 1979 **Court:** Supreme Court of India

Facts / Background: The International Airport Authority invited tenders for running a restaurant and snack bars at Bombay airport, requiring that tenderers be registered second-class hoteliers. It accepted the tender of a person who did not satisfy this condition. Another tenderer challenged the award.

Legal Issue: Can the State or its instrumentality depart from the standards it has laid down while awarding contracts?

Court's Decision / What the Court Held: The Court held that the Authority was an instrumentality of the State under Article 12, and that it was bound by Article 14 in awarding contracts. It could not arbitrarily depart from the standard it had set, as this excluded others who could have competed. The State's action must be fair, reasonable and non-discriminatory. (Relief was moulded on the facts, as the contract had been running for some time.)

Relevance to the Topic: The case applies the new doctrine of equality to the distribution of State largesse (contracts).

Important Points

- The new doctrine of equality originated in *E.P. Royappa* (1974).
- Arbitrariness and equality are "sworn enemies".
- *Maneka Gandhi* (1978) linked Arts 14, 19 and 21.
- *R.D. Shetty* (1979): fairness in State contracts.
- The doctrine led to the manifest arbitrariness test for legislation (*Shayara Bano*, 2017).

Remember: The new doctrine supplements, not replaces, the reasonable classification test.

Topic 2.16: Right against discrimination

Introduction

Article 15 prohibits the State from discriminating against citizens on certain grounds: religion, race, caste, sex and place of birth. It also prohibits discrimination in access to public places, even by private persons. At the same time, it allows the State to make special provisions for women, children, and socially and educationally backward classes. Related provisions are Article 16(2) (public employment) and Article 29(2) (admission to State-aided institutions).

Definition

> **Article 15(1):** "The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them."

> **Article 15(2):** "No citizen shall, on grounds only of religion, race, caste, sex, place of birth or any of them, be subject to any disability, liability, restriction or condition with regard to (a) access to shops, public restaurants, hotels and places of public entertainment; or (b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public."

Detailed Explanation

1. Meaning of "Discrimination" and "Only"

1. **Discrimination** means making an adverse distinction or treating a person less favourably than others.
2. **"Only"** means that discrimination on the specified grounds alone is prohibited. If there are other relevant grounds as well (e.g. residence, which is different from place of birth), the classification may be valid.

2. Prohibited Grounds

1. Religion.
2. Race.
3. Caste.
4. Sex (including, after *NALSA v Union of India* (2014), gender identity; and after *Navtej Singh Johar* (2018), sexual orientation as an analogous ground).
5. Place of birth.

3. Exceptions (Special Provisions)

Clause	Special provision permitted for
15(3)	Women and children
15(4)	Socially and educationally backward classes (SEBCs), SCs and STs (1st Amendment, 1951)
15(5)	SEBCs, SCs and STs in admission to educational institutions, including private unaided institutions (except minority institutions) (93rd Amendment, 2005)
15(6)	Economically weaker sections (EWS), up to 10% in admissions (103rd Amendment, 2019)

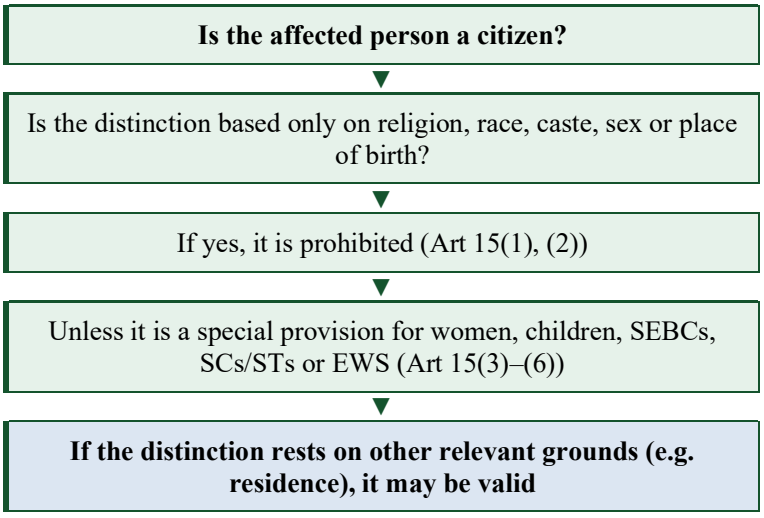
4. Related Provisions

1. **Art 16(2):** no discrimination in public employment on grounds of religion, race, caste, sex, descent, place of birth or residence.
2. **Art 29(2):** no citizen shall be denied admission to any educational institution maintained by the State or receiving State aid on grounds only of religion, race, caste, language or any of them.
3. **Art 17:** abolition of untouchability.

5. Indirect Discrimination and Stereotypes

1. Courts now recognise **indirect discrimination**, where a neutral rule disproportionately affects a protected group.
2. Laws based on **gender stereotypes** violate Article 15 (*Anuj Garg v Hotel Association of India*, 2008; *Secretary, Ministry of Defence v Babita Puniya*, 2020).

Flowchart: Testing a discrimination claim under Article 15



Examples

- A State medical college reserves seats only for students of a particular religion. This violates Articles 15(1) and 29(2).
- A State provides free bus travel only for women. This is a special provision under Article 15(3) and is valid.

Case Laws

Case Law: State of Madras v Champakam Dorairajan

Year: 1951 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: The Madras Government issued a "Communal G.O." which allotted seats in medical and engineering colleges to different communities (non-Brahmin Hindus, Brahmins, Harijans, Anglo-Indians and Indian Christians, Muslims) in fixed proportions. Champakam Dorairajan, a Brahmin, was denied admission although she had high marks. She challenged the G.O.

Legal Issue: Does reservation of seats in State educational institutions on the basis of religion and caste violate Article 29(2)?

Court's Decision / What the Court Held: The Court struck down the Communal G.O., holding that it violated Article 29(2) because it denied admission on grounds of religion and caste. The Court held that the Directive Principles cannot override the fundamental rights. As a result, Parliament passed the First Amendment (1951), inserting Article 15(4) to allow special provisions for backward classes and SCs/STs.

Relevance to the Topic: The leading case on the prohibition of discrimination in admissions; it led to Article 15(4).

Case Law: Anuj Garg v Hotel Association of India

Year: 2008 **Court:** Supreme Court of India

Facts / Background: Section 30 of the Punjab Excise Act, 1914 (applicable in Delhi) prohibited employment of any man under 25 years or any woman in any part of premises where liquor or intoxicating drugs were consumed by the public. The Hotel Association challenged it.

Legal Issue: Does a law that prohibits women from employment in bars, ostensibly for their protection, violate Articles 14, 15 and 21?

Court's Decision / What the Court Held: The Court struck down section 30 as far as it prohibited the employment of women. It held that "protective" legislation based on gender stereotypes about women's roles is discriminatory. The State must ensure security for

women at work rather than excluding them from employment. A law that discriminates on the basis of sex must be strictly scrutinised.

Relevance to the Topic: The case shows that Article 15 prohibits laws based on gender stereotypes, even if they claim to protect women.

Important Points

- Art 15 prohibits discrimination only on grounds of religion, race, caste, sex or place of birth.
- Art 15(2) applies to private shops, restaurants and public places as well.
- Special provisions are allowed for women, children, SEBCs, SCs/STs and EWS (Art 15(3)–(6)).
- *Champakam Dorairajan* (1951) led to the 1st Amendment (Art 15(4)).
- Laws based on gender stereotypes violate Art 15 (*Anuj Garg*, 2008).

Remember: "Place of birth" is a prohibited ground, but "residence" is not (for Art 15), though Art 16(2) mentions residence.

Topic 2.17: Doctrine of Protective Discrimination

Introduction

Formal equality (treating everyone alike) can perpetuate inequality when people start from very different positions. The Constitution therefore allows the State to make **special provisions** for disadvantaged groups. This is called **protective discrimination** (or positive discrimination or affirmative action). It is not a violation of equality; rather, it is a means of achieving real equality.

Definition

> **Protective discrimination** means the policy of giving preferential treatment, through special provisions and reservations, to disadvantaged sections of society, such as women, children, Scheduled Castes, Scheduled Tribes and backward classes, in order to protect them and bring them on par with others.

Detailed Explanation

1. Constitutional Provisions

Provision	Content
Art 15(3)	Special provisions for women and children
Art 15(4)	Special provisions for SEBCs, SCs and STs
Art 15(5)	Reservation in admission to educational institutions, including private unaided ones (except minority institutions)
Art 15(6), 16(6)	Up to 10% for economically weaker sections
Art 16(4)	Reservation in appointments for backward classes not adequately represented
Art 16(4A), (4B)	Reservation in promotions for SCs/STs; carry forward of unfilled vacancies
Art 46	DPSP: promote educational and economic interests of weaker sections
Arts 330, 332	Reservation of seats for SCs/STs in the Lok Sabha and State Assemblies
Arts 243D, 243T	Reservation for SCs/STs and women in panchayats and municipalities
Art 335	Claims of SCs/STs to be considered consistently with efficiency of administration
Arts 338, 338A, 338B	National Commissions for SCs, STs and Backward Classes

2. Rationale

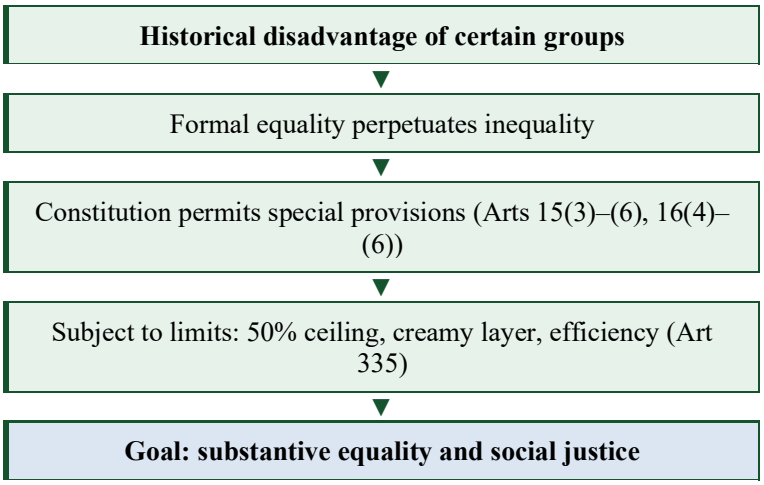
1. **Historical injustice:** caste-based discrimination and exclusion over centuries.

2. **Substantive equality:** equal treatment of unequals is unequal.
3. **Representation:** adequate representation in education, employment and public life.
4. **Social justice:** a goal set by the Preamble and DPSP (Arts 38, 46).

3. Limits on Protective Discrimination

1. **50% ceiling:** reservations should not ordinarily exceed 50% (*M.R. Balaji*, 1963; *Indra Sawhney*, 1992), except in extraordinary circumstances (EWS has been treated separately: *Janhit Abhiyan*, 2022).
2. **Creamy layer exclusion** for OBCs (*Indra Sawhney*).
3. **Efficiency of administration** (Art 335).
4. **Identification by relevant criteria**, not caste alone, though caste may be a relevant factor.
5. **Periodic review.**

Flowchart: Protective discrimination as a means of equality



Examples

- Reservation of seats for SC/ST students in Government medical colleges.
- Reservation of one-third of seats for women in panchayats (Art 243D).

Case Laws

Case Law: M.R. Balaji v State of Mysore

Year: 1963 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The State of Mysore issued an order reserving 68% of seats in engineering and medical colleges for backward classes, SCs and STs. Backward classes were identified mainly on the basis of caste. The order was challenged under Articles 15(1) and 29(2).

Legal Issue: What are the limits of special provisions under Article 15(4)?

Court's Decision / What the Court Held: The Court struck down the order. It held that (i) Article 15(4) is an exception to Article 15(1) and must be used reasonably; (ii) caste can be a relevant factor but cannot be the sole basis for determining backwardness; (iii) reservation should generally be less than 50%, as 68% was excessive and defeated the guarantee of equality.

Relevance to the Topic: The case laid down the 50% ceiling and the principle that caste alone cannot determine backwardness, later developed in *Indra Sawhney*.

Case Law: Ashoka Kumar Thakur v Union of India

Year: 2008 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Central Educational Institutions (Reservation in Admission) Act, 2006, enacted under Article 15(5) (93rd Amendment, 2005), provided 27% reservation for OBCs in central educational institutions such as IITs and IIMs. Its validity and that of the 93rd Amendment were challenged.

Legal Issue: Is the 93rd Amendment and the OBC reservation in central educational institutions valid?

Court's Decision / What the Court Held: The Court upheld the 93rd Amendment so far as it related to State-maintained and aided institutions, and upheld the 27% OBC reservation, but held that the creamy layer must be excluded from OBC reservation. (The question of private unaided institutions was left open, and was later decided in *Pramati Educational and Cultural Trust v Union of India*, 2014, which upheld Article 15(5) for private unaided institutions.)

Relevance to the Topic: The case upheld protective discrimination in higher education with the safeguard of creamy layer exclusion.

Important Points

- Protective discrimination is permitted by Arts 15(3)–(6), 16(4)–(6), 46 and others.
- It is a means to achieve substantive equality.
- Limits: 50% ceiling (*M.R. Balaji*, 1963), creamy layer, efficiency (Art 335).
- *Ashoka Kumar Thakur* (2008): OBC reservation in central institutions upheld, creamy layer excluded.

Remember: Protective discrimination is not an exception to equality but a facet of it.

Topic 2.18: Doctrine of Compensatory Discrimination

Introduction

Protective discrimination describes what the State does (special provisions); compensatory discrimination explains why it is justified. The doctrine of **compensatory discrimination** holds that preferential treatment of historically disadvantaged groups is a form of compensation for past injustice and present disadvantage. The debate on this doctrine concerns the tension between merit and social justice, and whether reservation is an exception to equality or a facet of it.

Definition

> **Compensatory discrimination** is the principle that special preferences given to historically disadvantaged groups are justified as compensation for past and continuing discrimination, and are necessary to achieve genuine equality of opportunity.

Detailed Explanation

1. Meaning and Basis

1. Certain groups (SCs, STs and backward classes) suffered centuries of discrimination through the caste system and untouchability.
2. Their present disadvantage is the result of past wrongs; preferential treatment compensates for these disadvantages.
3. The doctrine is linked with "distributive justice": distributing opportunities fairly among all sections.

2. Two Views of Reservation

View	Explanation	Case
Exception view	Arts 15(4) and 16(4) are exceptions to Arts 15(1) and 16(1); they must be construed narrowly	*M.R. Balaji* (1963); *T. Devadasan* (1964, majority)
Facet view	Arts 15(4) and 16(4) are facets or emphatic restatements of equality; equality itself requires compensatory measures	*State of Kerala v N.M. Thomas* (1976); *Indra Sawhney* (1992)

3. Justifications

1. **Corrective justice:** remedying past wrongs.
2. **Distributive justice:** ensuring a fair share of resources and opportunities.
3. **Representation and diversity:** making institutions reflect society.
4. **Social integration:** reducing caste barriers.

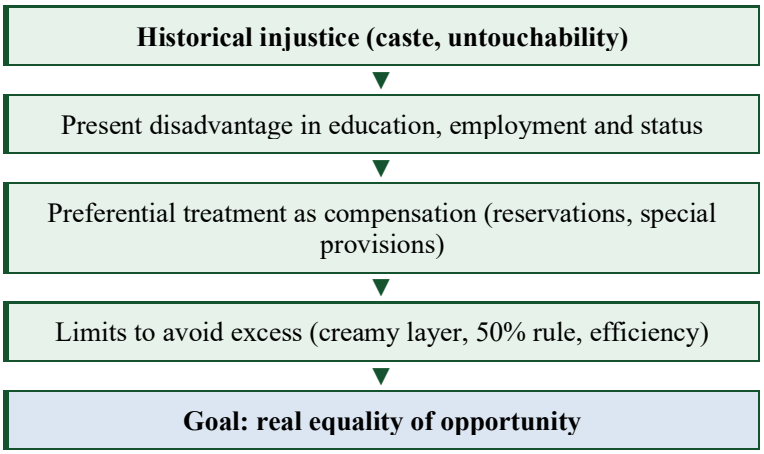
4. Criticisms and Responses

Criticism	Response
It compromises merit	Merit must be measured in context; opportunities shape merit; Art 335 protects efficiency
Benefits go to the better-off within groups	Creamy layer exclusion; sub-classification (*Davinder Singh*, 2024)
It perpetuates caste consciousness	It is a transitional measure; periodic review is required
It discriminates against the general category	Equality requires treating unequals differently

5. Safeguards

1. Identification of beneficiaries on objective criteria.
2. Exclusion of the creamy layer.
3. 50% ceiling (in general).
4. Quantifiable data for promotions (*M. Nagaraj*, 2006).
5. Periodic review of lists of backward classes.

Flowchart: Logic of compensatory discrimination



Examples

- A Scheduled Caste student from a family that has been denied education for generations is given a reserved seat with a lower cut-off. This compensates for the disadvantages he has inherited.
- A child of a senior officer from a backward class (creamy layer) is not given OBC reservation, as he does not need compensation.

Case Laws

Case Law: State of Kerala v N.M. Thomas

Year: 1976 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: Rule 13AA of the Kerala State and Subordinate Services Rules gave SC/ST employees a further period of two years to pass the departmental tests required for promotion, while others did not get this exemption. N.M. Thomas, an employee who was not an SC/ST, challenged the rule as violating Article 16(1), arguing that it was not covered by Article 16(4) (which then dealt only with appointments).

Legal Issue: Is preferential treatment of SCs/STs in matters of promotion permissible under Article 16(1), apart from Article 16(4)?

Court's Decision / What the Court Held: The majority upheld the rule. It held that Article 16(4) is not an exception to Article 16(1); it is a facet of the equality guaranteed by Article 16(1). Equality of opportunity allows reasonable classification, and SCs/STs can be classified as a separate group for preferential treatment to achieve real equality. The majority emphasised that compensatory measures are part of the concept of equality.

Relevance to the Topic: The leading case establishing that compensatory discrimination is a facet of equality, later affirmed in *Indra Sawhney* (1992).

Important Points

- Compensatory discrimination justifies preferential treatment as compensation for historical injustice.
- Early view: reservation is an exception to equality (*M.R. Balaji*, 1963).
- Modern view: reservation is a facet of equality (*N.M. Thomas*, 1976; *Indra Sawhney*, 1992).
- Safeguards include creamy layer exclusion, the 50% rule and quantifiable data.

Remember: Compensatory discrimination aims at equality of results, not merely equality of opportunity on paper.

Topic 2.19: Equality in Public Employment : Reservation

Introduction

Government jobs are a major source of security, status and power. Article 16 guarantees equality of opportunity for all citizens in public employment, while allowing reservation for backward classes that are not adequately represented in State services. The law on reservation has developed through many important Supreme Court judgments and several constitutional amendments.

Definition

> **Article 16(1):** "There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State."

> **Article 16(4):** "Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State."

Detailed Explanation

1. Clauses of Article 16

Clause	Content
16(1)	Equality of opportunity in public employment
16(2)	No discrimination on grounds of religion, race, caste, sex, descent, place of birth, residence
16(3)	Parliament may prescribe residence requirements for certain employments
16(4)	Reservation for backward classes not adequately represented
16(4A)	Reservation in promotion for SCs/STs, with consequential seniority (77th and 85th Amendments)
16(4B)	Carry forward of unfilled reserved vacancies, not counted for the 50% ceiling (81st Amendment, 2000)
16(5)	Posts connected with religious or denominational institutions may be reserved for members of that religion
16(6)	Up to 10% reservation for EWS (103rd Amendment, 2019)

2. Key Principles from Indra Sawhney (1992)

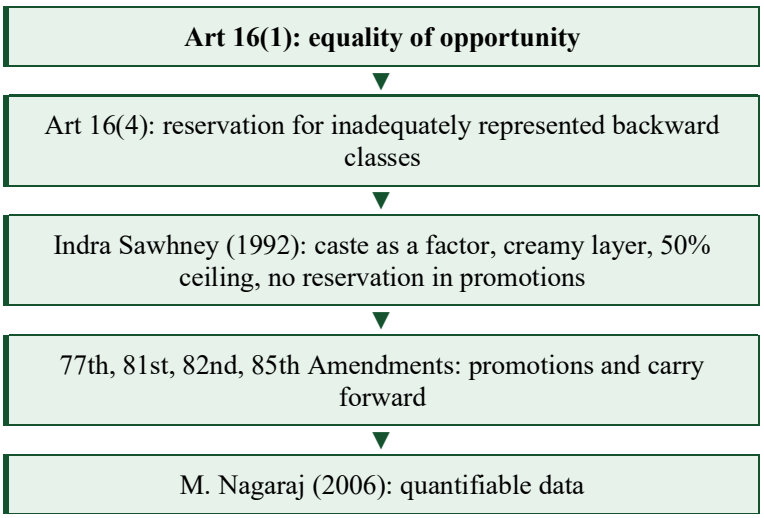
1. Art 16(4) is not an exception but a facet of Art 16(1).
2. "Backward class" can be identified by caste, along with other criteria.

3. Backwardness under Art 16(4) means social backwardness; economic criteria alone are not sufficient.
4. The **creamy layer** must be excluded from OBC reservation.
5. Total reservation should not exceed **50%**, except in extraordinary situations.
6. Reservation is not permissible in **promotions** under Art 16(4) (this was overruled by the 77th Amendment).
7. Sub-classification of backward classes is permissible.
8. A permanent body should be set up to examine inclusion and exclusion (later the National Commission for Backward Classes).

3. Later Developments

Case / Amendment	Holding
77th Amendment (1995)	Art 16(4A): reservation in promotion for SCs/STs
81st Amendment (2000)	Art 16(4B): carry forward of vacancies
82nd Amendment (2000)	Proviso to Art 335: relaxation in qualifying marks for SCs/STs
85th Amendment (2001)	Consequential seniority in promotions
M. Nagaraj v Union of India (2006)	Upheld these amendments, but the State must show quantifiable data on backwardness, inadequate representation and efficiency before giving reservation in promotions
Jarnail Singh v Lachhmi Narain Gupta (2018)	No need to show backwardness of SCs/STs; creamy layer principle applies to SC/ST promotions
Janhit Abhiyan v Union of India (2022)	Upheld the 103rd Amendment (EWS reservation) by 3:2
State of Punjab v Davinder Singh (2024)	Sub-classification of SCs and STs is permissible (overruling *E.V. Chinnaiah*, 2005)

Flowchart: Reservation in public employment



▼

Davinder Singh (2024): sub-classification of SCs/STs

Examples

- A State reserves 27% of Government posts for OBCs, excluding the creamy layer. This is valid.
- A State reserves 65% of posts without any extraordinary circumstance. This breaches the 50% ceiling.

Case Laws

Case Law: Indra Sawhney v Union of India (Mandal Commission Case)

Year: 1992 **Court:** Supreme Court of India (nine-judge bench)

Facts / Background: The Second Backward Classes Commission (Mandal Commission) recommended 27% reservation for OBCs in central government jobs. In 1990, the Government issued an Office Memorandum implementing it, and in 1991 another memorandum added a preference for poorer sections among OBCs and 10% reservation for economically backward persons not covered by other schemes. These were challenged.

Legal Issue: Is 27% reservation for OBCs valid? Can caste be the basis? Is the 10% economic reservation valid? What are the limits on reservation?

Court's Decision / What the Court Held: The majority upheld 27% OBC reservation, subject to exclusion of the creamy layer. It held that caste can be a criterion for identifying backward classes; that reservation should not exceed 50% except in extraordinary situations; that there should be no reservation in promotions under Art 16(4) (prospectively); and that the 10% reservation on purely economic grounds was invalid. Art 16(4) is a facet of Art 16(1).

Relevance to the Topic: The most important case on reservation in public employment.

Case Law: Janhit Abhiyan v Union of India

Year: 2022 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The 103rd Amendment (2019) inserted Articles 15(6) and 16(6), allowing up to 10% reservation for economically weaker sections (EWS) not covered by existing reservations for SCs, STs and OBCs. It was challenged as violating the basic structure.

Legal Issue: Is reservation based solely on economic criteria, excluding SCs, STs and OBCs, consistent with the basic structure?

Court's Decision / What the Court Held: By a 3:2 majority, the Court upheld the 103rd Amendment. The majority held that reservation based on economic criteria does not violate the basic structure; the exclusion of SCs, STs and OBCs (who already have reservations) is not discriminatory; and the 50% ceiling is not inflexible and applies to reservations under Articles 15(4), 15(5) and 16(4), not to the new EWS category. The minority held that the exclusion of SCs, STs and OBCs violated the equality code.

Relevance to the Topic: The case upholds economic criteria as a basis for reservation.

Case Law: State of Punjab v Davinder Singh

Year: 2024 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: Punjab and other States enacted laws giving preference to certain sub-groups (such as Balmikis and Mazhabi Sikhs) within the Scheduled Castes for a part of the SC quota. These laws were challenged relying on *E.V. Chinnaiah v State of AP* (2005), which held that SCs form a homogeneous class that cannot be sub-classified.

Legal Issue: Can the States sub-classify Scheduled Castes and Scheduled Tribes for the purpose of reservation?

Court's Decision / What the Court Held: By a 6:1 majority, the Court overruled *E.V. Chinnaiah* and held that the States can sub-classify SCs (and STs) to give greater benefit to the more backward groups among them, based on quantifiable and demonstrable data. Several judges also said that the creamy layer principle should be applied to SCs and STs.

Relevance to the Topic: The case is the latest major development in the law of reservation.

Important Points

- Art 16(1): equality of opportunity in public employment; Art 16(4): reservation for backward classes.
- *Indra Sawhney* (1992): creamy layer, 50% ceiling, caste as a factor, no reservation in promotions under Art 16(4).
- Arts 16(4A) and 16(4B) were added for promotions and carry forward.
- *M. Nagaraj* (2006): quantifiable data required for promotions.
- *Janhit Abhiyan* (2022): EWS reservation upheld.
- *Davinder Singh* (2024): sub-classification of SCs/STs permitted.

Remember: The 50% ceiling is the general rule, but it is not absolute (*Indra Sawhney*; *Janhit Abhiyan*).

Topic 2.20: Abolition of Untouchability

Introduction

Untouchability was one of the worst forms of social discrimination in India, under which certain castes were treated as "polluting" and excluded from social life, temples, wells and schools. The framers of the Constitution, led by Dr. B.R. Ambedkar, regarded its abolition as essential for a just society. Article 17 abolishes untouchability and makes its practice in any form an offence.

Definition

> **Article 17:** "'Untouchability' is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of 'Untouchability' shall be an offence punishable in accordance with law."

Detailed Explanation

1. Features of Article 17

1. **Absolute right:** no exceptions or reasonable restrictions.
2. **Enforceable against everyone:** the State and private persons.
3. **Offence:** enforcement of any disability arising from untouchability is punishable by law (Art 35 empowers Parliament to make such laws).
4. **"Untouchability" is not defined** in the Constitution; it refers to the historical practice based on caste, not to ordinary social exclusion.

2. Legislation Enforcing Article 17

Law	Content
Untouchability (Offences) Act, 1955	Punished the practice of untouchability
Protection of Civil Rights Act, 1955	The 1955 Act was renamed and strengthened in 1976; punishes enforcing religious, social and other disabilities
Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989	Punishes atrocities against SCs/STs; special courts; amended in 2015 and 2018

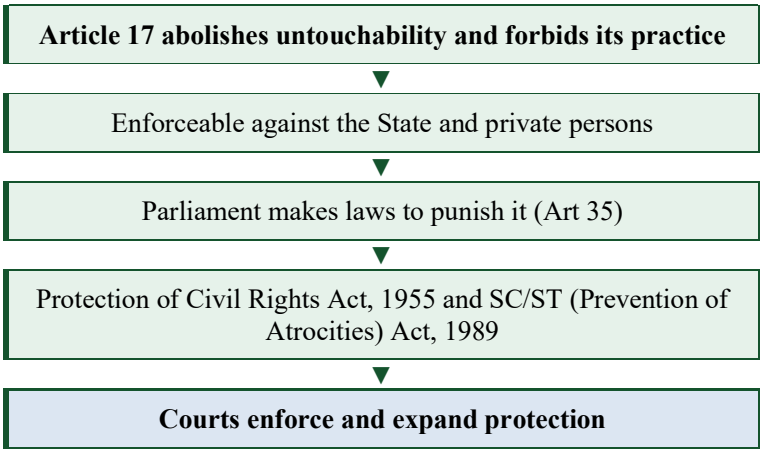
3. Related Provisions

1. Art 15(2): access to public places.
2. Art 25(2)(b): throwing open Hindu religious institutions to all classes.
3. Art 46: promotion of the interests of weaker sections.
4. Art 338: National Commission for Scheduled Castes.

4. Judicial Interpretation

1. *State of Karnataka v Appa Balu Ingale* (1993): the Court upheld convictions under the PCR Act and emphasised the need to eradicate untouchability.
2. *PUDR v Union of India* (1982): Article 17 is enforceable against private persons.
3. In *Indian Young Lawyers Association v State of Kerala* (2018) (Sabarimala case), Justice D.Y. Chandrachud's concurring opinion suggested that excluding women on the basis of notions of purity and pollution is a form of untouchability under Art 17. (This was not the view of the majority as a whole, and the matter is pending before a larger bench.)
5. *Subhash Kashinath Mahajan v State of Maharashtra* (2018) diluted certain provisions of the Atrocities Act, but Parliament restored them by the 2018 amendment, which was upheld in *Prathvi Raj Chauhan v Union of India* (2020).

Flowchart: Abolition of untouchability



Examples

- A shopkeeper refuses to sell goods to a Dalit customer because of his caste. This is an offence under the Protection of Civil Rights Act.
- Villagers prevent Dalits from drawing water from a public well. This violates Articles 15(2) and 17.

Case Laws

Case Law: State of Karnataka v Appa Balu Ingale

Year: 1993 **Court:** Supreme Court of India

Facts / Background: The respondents prevented members of the Scheduled Castes from taking water from a newly dug borewell in a village, on the basis of their caste. They were convicted under the Protection of Civil Rights Act, 1955, but the High Court acquitted them.

Legal Issue: Does preventing Scheduled Caste members from taking water from a public source on the basis of caste amount to practising untouchability under the PCR Act?

Court's Decision / What the Court Held: The Supreme Court restored the convictions. It held that untouchability is an indirect form of slavery and that the PCR Act must be interpreted to achieve the constitutional goal of abolishing untouchability in all its forms. Judges must be sensitive to the social realities of caste discrimination.

Relevance to the Topic: The case shows the strict enforcement of Article 17 and the laws made under it.

Important Points

- Art 17 abolishes untouchability; its practice in any form is forbidden and punishable.
- It is an absolute right, enforceable against private persons.
- Enforced through the PCR Act, 1955 and the SC/ST (PoA) Act, 1989.
- *Appa Balu Ingale* (1993): convictions for denying access to water upheld.

Remember: "Untouchability" in Art 17 refers to caste-based practices, not every kind of social exclusion.

Topic 2.21: Abolition of Titles

Introduction

During British rule, titles such as "Rai Bahadur", "Khan Bahadur" and "Sir" were conferred on persons, creating an artificial class of privileged people. To promote equality, the Constitution abolished such titles. Article 18 prohibits the State from conferring titles (except military and academic distinctions) and prohibits citizens from accepting titles from foreign States.

Definition

> **Article 18(1):** "No title, not being a military or academic distinction, shall be conferred by the State."

> **Article 18(2):** "No citizen of India shall accept any title from any foreign State."

Detailed Explanation

1. Clauses of Article 18

Clause	Prohibition
18(1)	The State shall not confer titles, except military or academic distinctions
18(2)	No citizen shall accept a title from a foreign State
18(3)	A non-citizen holding an office of profit or trust under the State shall not accept a foreign title without the President's consent
18(4)	No person holding an office of profit or trust under the State shall accept any present, emolument or office from or under a foreign State without the President's consent

2. Purpose

1. To abolish hereditary or artificial distinctions that create inequality.
2. To prevent foreign States from creating loyalties among Indian officials.
3. To promote the dignity of all citizens equally.

3. National Awards

The Government confers civilian awards such as the Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Shri. Are these "titles"? The Supreme Court in *Balaji Raghavan v Union of India* (1996) held that they are not titles under Article 18, but they cannot be used as prefixes or suffixes to the recipient's name.

4. Enforcement

Article 18 does not prescribe a penalty. Parliament may make laws (no such general law has been made). Misuse of national awards as titles may lead to forfeiture under the rules governing the awards.

Flowchart: Article 18 at a glance



Examples

- A university confers a doctorate (Ph.D.) on a scholar. This is an academic distinction and is permitted.
- An Indian citizen is offered a knighthood by the British monarch. He cannot accept it under Article 18(2).

Case Laws

Case Law: Balaji Raghavan v Union of India

Year: 1996 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Petitions were filed challenging the validity of national awards such as the Bharat Ratna and Padma awards, arguing that they were titles prohibited by Article 18 and that they were being conferred arbitrarily.

Legal Issue: Are national awards such as the Bharat Ratna and Padma awards "titles" within Article 18?

Court's Decision / What the Court Held: The Court held that these national awards are not titles within the meaning of Article 18; they are recognitions of merit and exceptional service. However, they should not be used as prefixes or suffixes to the names of recipients; if they are, the recipient may forfeit the award. The Court also suggested that the selection process should be made fair and transparent.

Relevance to the Topic: The leading case on the meaning of "titles" under Article 18 and the status of national awards.

Important Points

- Art 18 abolishes titles, except military and academic distinctions.
- Citizens cannot accept foreign titles.
- Non-citizens holding State office need the President's consent for foreign titles or gifts.
- National awards are not titles but cannot be used as prefixes or suffixes (*Balaji Raghavan*, 1996).

Remember: Article 18 promotes social equality by abolishing artificial distinctions.

Topic 2.22: Right to Freedom (Article 19 to 22 and 21A)

Introduction

Liberty is one of the central values of the Preamble ("liberty of thought, expression, belief, faith and worship"). Articles 19 to 22 (including Article 21A) make up the **Right to Freedom**. They guarantee the basic freedoms of citizens, protect persons accused of crimes, secure the right to life and personal liberty, guarantee free education for children, and provide safeguards against arbitrary arrest and detention. This topic gives an overview; each part is explained in the following topics.

Definition

> The **Right to Freedom** is the group of fundamental rights in Articles 19, 20, 21, 21A and 22 that protect individual liberty against unreasonable State interference.

Detailed Explanation

1. Overview of Articles 19 to 22

Article	Content	Available to
19	Six freedoms: speech and expression; assembly; association; movement; residence; profession, occupation, trade or business (subject to reasonable restrictions in clauses (2) to (6))	Citizens
20	Protection in respect of conviction for offences: no ex post facto criminal law, no double jeopardy, no compelled self-incrimination	All persons
21	Protection of life and personal liberty	All persons
21A	Right to free and compulsory education for children aged 6 to 14 (86th Amendment, 2002)	All children
22	Protection against arrest and detention; safeguards in preventive detention	All persons (except enemy aliens for some clauses)

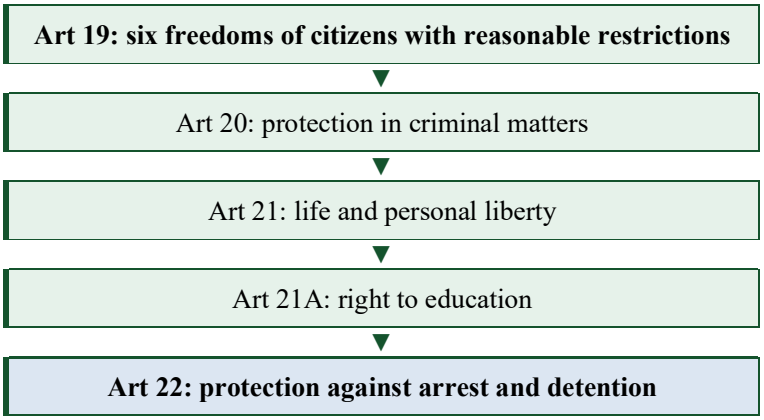
2. Interrelationship

1. After *Maneka Gandhi* (1978), Arts 14, 19 and 21 form a "golden triangle": a law depriving a person of liberty must be fair, just and reasonable, and must satisfy all three.
2. Art 21 is the most expanded right and includes many unenumerated rights (privacy, dignity, livelihood, health, environment, speedy trial).
3. Arts 20 and 21 cannot be suspended even during an Emergency (Art 359, as amended by the 44th Amendment).

3. The Original Seventh Freedom

Originally Art 19(1)(f) guaranteed the right to acquire, hold and dispose of property. It was deleted by the 44th Amendment (1978) (see Topic 2.37).

Flowchart: Structure of the Right to Freedom



Examples

- A journalist's right to publish news is protected by Art 19(1)(a).
- An accused person's right not to be forced to confess is protected by Art 20(3).

Case Laws

This is an overview topic. The leading cases on each right are explained in Topics 2.23 to 2.27, including *Shreya Singhal* (2015), *Maneka Gandhi* (1978), *Selvi* (2010), *Unni Krishnan* (1993), *D.K. Basu* (1997) and *A.K. Roy* (1982).

Important Points

- Arts 19–22 (with 21A) form the Right to Freedom.
- Art 19 is for citizens; Arts 20, 21, 21A and 22 are for all persons.
- Arts 14, 19 and 21 form a golden triangle (*Maneka Gandhi*, 1978).
- Arts 20 and 21 cannot be suspended during Emergency.

Remember: The right to property was originally Art 19(1)(f) but was removed in 1978.

Topic 2.23: Six freedoms and the reasonable restriction on the exercise of those freedoms under Article 19

Introduction

Article 19 is the charter of the basic freedoms of Indian citizens. It guarantees six freedoms that are essential for a democratic society. But no freedom can be absolute, because unlimited freedom for one person may harm others or the society. Therefore, clauses (2) to (6) of Article 19 allow the State to impose **reasonable restrictions** on each freedom, on specified grounds.

Definition

> **Article 19(1):** "All citizens shall have the right (a) to freedom of speech and expression; (b) to assemble peaceably and without arms; (c) to form associations or unions or co-operative societies; (d) to move freely throughout the territory of India; (e) to reside and settle in any part of the territory of India; and (g) to practise any profession, or to carry on any occupation, trade or business."

Detailed Explanation

1. The Six Freedoms and Their Restrictions

Freedom	Clause	Grounds of reasonable restriction
(a) Speech and expression	19(2)	Sovereignty and integrity of India; security of the State; friendly relations with foreign States; public order; decency or morality; contempt of court; defamation; incitement to an offence
(b) Assembly (peaceably and without arms)	19(3)	Sovereignty and integrity of India; public order
(c) Associations, unions, co-operative societies	19(4)	Sovereignty and integrity of India; public order; morality
(d) Movement throughout India	19(5)	Interests of the general public; protection of the interests of Scheduled Tribes
(e) Residence and settlement	19(5)	Interests of the general public; protection of the interests of Scheduled Tribes
(g) Profession, occupation, trade or business	19(6)	Interests of the general public; professional or technical qualifications; State monopoly or trade by the State

2. Freedom of Speech and Expression: Scope

1. **Freedom of the press** (*Romesh Thappar*, 1950; *Sakal Papers*, 1962; *Bennett Coleman*, 1973).

2. **Right to information and right to know** (*State of UP v Raj Narain*, 1975; *ADR v Union of India*, 2024 on electoral bonds).
3. **Commercial speech** (*Tata Press v MTNL*, 1995).
4. **Right to silence** (*Bijoe Emmanuel*, 1986).
5. **Right to fly the national flag** (*Naveen Jindal*, 2004).
6. **Broadcasting** (*Cricket Association of Bengal*, 1995).
7. **Expression on the internet** (*Shreya Singhal*, 2015; *Anuradha Bhasin*, 2020).

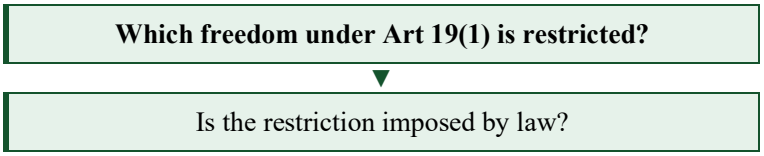
3. Other Freedoms: Key Points

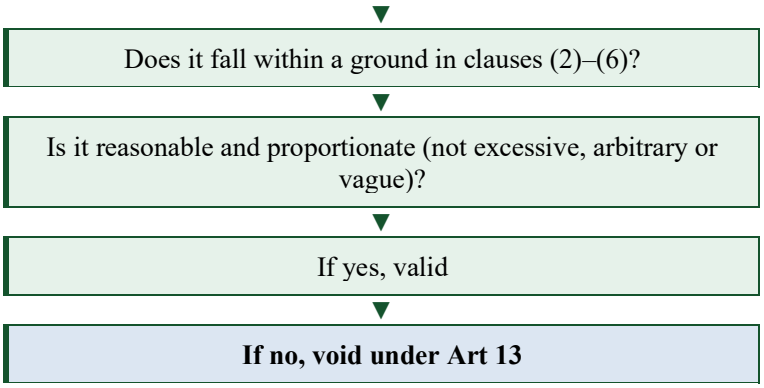
1. **Assembly:** includes peaceful demonstrations and meetings; no right to strike or to occupy public roads indefinitely (*Kameshwar Prasad v State of Bihar*, 1962; *Amit Sahni v Commissioner of Police*, 2020).
2. **Association:** includes the right to form unions; no fundamental right to strike or to collective bargaining (*All India Bank Employees' Association*, 1962; *T.K. Rangarajan*, 2003).
3. **Movement and residence:** subject to restrictions such as externment orders for public safety.
4. **Profession, trade, business:** no right to carry on trade in noxious or dangerous goods such as liquor (*Khoday Distilleries*, 1995).

4. Tests of "Reasonable Restriction"

1. The restriction must be imposed by **law**, not by executive order alone.
2. It must relate to one of the **grounds** in the relevant clause.
3. It must be **reasonable** in both substance and procedure.
4. It must not be **excessive** or **arbitrary**; it must strike a balance between freedom and social control (*Chintaman Rao*, 1951).
5. Courts consider the nature of the right, the purpose of the restriction, the extent of the evil, and the urgency (*State of Madras v V.G. Row*, 1952).
6. **Proportionality:** the restriction must be the least restrictive measure necessary (*Modern Dental College*, 2016; *Anuradha Bhasin*, 2020).
7. The grounds are **exhaustive**; no additional restrictions can be imposed (*Kaushal Kishor*, 2023).

Flowchart: Testing a restriction under Article 19





Examples

- A law punishing hate speech that incites violence against a community is a reasonable restriction on the ground of public order.
- A law requiring a licence to practise medicine is a reasonable restriction under Art 19(6) (professional qualifications).

Case Laws

Case Law: Shreya Singhal v Union of India

Year: 2015 **Court:** Supreme Court of India

Facts / Background: Section 66A of the Information Technology Act, 2000 made it an offence to send, by means of a computer or communication device, any information that was "grossly offensive" or had a "menacing character", or false information sent for the purpose of causing "annoyance, inconvenience, danger, obstruction, insult..." Many persons were arrested for social media posts. Its validity was challenged.

Legal Issue: Does section 66A violate Article 19(1)(a), and is it saved by Article 19(2)?

Court's Decision / What the Court Held: The Court struck down section 66A as unconstitutional. It held that the provision was vague and over-broad, and did not fall within any of the grounds in Article 19(2). The Court distinguished between discussion, advocacy and incitement: only incitement that has a proximate connection with public disorder can be restricted. Mere annoyance or offence is not a ground for restriction.

Relevance to the Topic: The leading modern case on free speech and the limits of reasonable restrictions.

Case Law: Chintaman Rao v State of Madhya Pradesh

Year: 1951 **Court:** Supreme Court of India

Facts / Background: A law in Madhya Pradesh empowered the Deputy Commissioner to prohibit all persons in certain villages from engaging in the manufacture of bidis during the agricultural season, to ensure that labour was available for agriculture.

Legal Issue: Is a total prohibition of a business during a season a reasonable restriction under Article 19(6)?

Court's Decision / What the Court Held: The Court struck down the law. It held that a reasonable restriction must not be arbitrary or excessive; it must strike a proper balance between the freedom under Article 19(1)(g) and social control. A total prohibition affecting even persons not engaged in agriculture was excessive and unreasonable.

Relevance to the Topic: The case explains the meaning of "reasonable" restriction and the principle against excessive restrictions.

Important Points

- Art 19(1) guarantees six freedoms to citizens (Art 19(1)(f) was deleted in 1978).
- Clauses (2)–(6) allow reasonable restrictions on specified grounds.
- Restrictions must be by law, on stated grounds, reasonable and proportionate.
- *Shreya Singhal* (2015): s.66A IT Act struck down for vagueness.
- *Chintaman Rao* (1951): excessive restrictions are unreasonable.
- The grounds are exhaustive (*Kaushal Kishor*, 2023).

Remember: Freedom of the press is not mentioned expressly but is part of Art 19(1)(a).

Topic 2.24: Protection against Ex-post Facto Laws; Double Jeopardy; Compelled self incrimination

Introduction

Article 20 protects persons accused of crimes from three kinds of injustice: being punished under laws made after the act was done, being punished twice for the same offence, and being forced to give evidence against themselves. These protections are available to all persons, including companies, and cannot be suspended even during an Emergency.

Definition

> **Article 20(1):** "No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence."

> **Article 20(2):** "No person shall be prosecuted and punished for the same offence more than once."

> **Article 20(3):** "No person accused of any offence shall be compelled to be a witness against himself."

Detailed Explanation

A. Protection against Ex Post Facto Laws (Art 20(1))

1. An **ex post facto law** is a law that makes an act criminal retrospectively or increases the punishment for an act already done.
2. Art 20(1) prohibits only **conviction or punishment** under such laws; it does not prohibit retrospective civil laws or retrospective procedural laws.
3. It also prohibits a **greater penalty** than the one in force at the time of the offence.
4. A retrospective law that **reduces** punishment can benefit the accused (*Rattan Lal v State of Punjab*, 1965).
5. It does not prevent trial by a new court or procedure (*Kedar Nath Bajoria v State of WB*, 1953, on retrospective special courts).

B. Protection against Double Jeopardy (Art 20(2))

1. Based on the maxim *nemo debet bis vexari*.
2. Requirements: (i) the person must have been **prosecuted**; (ii) **punished**; (iii) for the **same offence**; (iv) before a **court or judicial tribunal**.

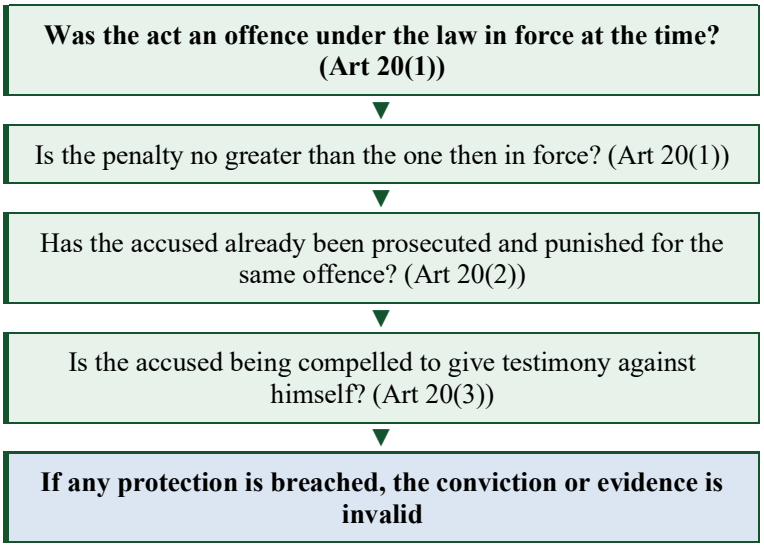
3. Departmental proceedings or proceedings before administrative authorities are not "prosecution" (*Maqbool Hussain*, 1953; *S.A. Venkataraman*, 1954).
4. Different offences arising from the same facts may be tried separately (*Leo Roy Frey v Superintendent, District Jail*, 1958).
5. Section 337 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (old s.300 CrPC) gives wider protection (also covering prior acquittal).

C. Protection against Compelled Self-Incrimination (Art 20(3))

1. Based on the maxim *nemo tenetur se ipsum accusare*.
2. Requirements: (i) the person must be **accused of an offence**; (ii) there must be **compulsion**; (iii) to be a **witness against himself** (testimonial compulsion).
3. "To be a witness" means to give oral or written personal testimony based on personal knowledge. It does not include fingerprints, specimen signatures, handwriting or physical identification (*Kathi Kalu Oghad*, 1961).
4. It applies at the stage of police interrogation (*Nandini Satpathy v P.L. Dani*, 1978).
5. Involuntary narco-analysis, polygraph and brain mapping violate Art 20(3) and 21 (*Selvi*, 2010).
6. A voice sample can be taken for investigation (*Ritesh Sinha v State of UP*, 2019).

Clause	Protection	Key case
20(1)	No retrospective criminal law or greater penalty	*Rattan Lal* (1965)
20(2)	No double punishment for the same offence	*Maqbool Hussain* (1953)
20(3)	No compelled testimony against oneself	*Kathi Kalu Oghad* (1961); *Selvi* (2010)

Flowchart: Article 20 protections in a criminal case



Examples

- A law passed in 2026 makes a certain act a crime. A person who did that act in 2025 cannot be punished under the 2026 law.
- A person is fined by customs authorities for smuggling and later prosecuted in a criminal court for the same act. The second prosecution is not barred by Art 20(2), because the customs proceeding was not a "prosecution" before a court.

Case Laws

Case Law: Maqbool Hussain v State of Bombay

Year: 1953 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The appellant brought gold into India without declaring it, in violation of a notification. Customs authorities confiscated the gold under the Sea Customs Act. Later, he was prosecuted before a criminal court under the Foreign Exchange Regulation Act. He pleaded double jeopardy.

Legal Issue: Does confiscation by customs authorities amount to "prosecution and punishment" so as to bar a later criminal prosecution?

Court's Decision / What the Court Held: The Court held that the customs authorities were not a court or judicial tribunal, and the proceedings before them were not a "prosecution". So Article 20(2) did not bar the criminal prosecution.

Relevance to the Topic: The case explains the meaning of "prosecuted and punished" under Article 20(2).

Case Law: Selvi v State of Karnataka

Year: 2010 **Court:** Supreme Court of India

Facts / Background: Several accused persons were subjected to narco-analysis, polygraph and Brain Electrical Activation Profile (BEAP) tests during investigation, without their consent. They challenged the involuntary administration of these tests.

Legal Issue: Does the involuntary administration of narco-analysis, polygraph and BEAP tests violate Article 20(3) and Article 21?

Court's Decision / What the Court Held: The Court held that the involuntary administration of these tests amounts to testimonial compulsion and violates Article 20(3), as well as the right to privacy and the right against cruel and degrading treatment under Article 21. The tests can be conducted only with the free consent of the person, under safeguards, and the results by themselves cannot be admitted as evidence (though information discovered as a result may be admissible under the law of evidence).

Relevance to the Topic: The leading case on the scope of the right against self-incrimination in relation to modern scientific techniques.

Important Points

- Art 20(1): no retrospective criminal law or enhanced penalty; beneficial retrospective laws are allowed (*Rattan Lal*, 1965).
- Art 20(2): no double prosecution and punishment for the same offence before a court (*Maqbool Hussain*, 1953).
- Art 20(3): no compelled testimony; physical evidence such as fingerprints is not testimony (*Kathi Kalu Oghad*, 1961).
- Involuntary narco-analysis is unconstitutional (*Selvi*, 2010).
- Art 20 cannot be suspended during an Emergency.

Remember: Art 20(3) protects only an "accused" person, but the protection extends to the investigation stage (*Nandini Satpathy*, 1978).

Topic 2.25: Right to life and personal liberty

Introduction

Article 21 is short, but it has become the most important and expansive fundamental right in the Constitution. It says that no person shall be deprived of life or personal liberty except according to procedure established by law. Through judicial interpretation, especially after *Maneka Gandhi* (1978), the words "life" and "personal liberty" have been given a very wide meaning, covering dignity, livelihood, health, privacy, education, environment, and many other rights.

Definition

> **Article 21:** "No person shall be deprived of his life or personal liberty except according to procedure established by law."

Detailed Explanation

1. Evolution of Interpretation

Case	Year	Holding
A.K. Gopalan v State of Madras	1950	"Procedure established by law" means any procedure enacted by the legislature; Arts 19 and 21 are separate; narrow view
Kharak Singh v State of UP	1963	Domiciliary visits at night violated personal liberty; Subba Rao J. (dissent) recognised privacy
Maneka Gandhi v Union of India	1978	Procedure must be "fair, just and reasonable"; Arts 14, 19 and 21 are interlinked; overruled the narrow Gopalan approach
K.S. Puttaswamy v Union of India	2017	Privacy is a fundamental right under Art 21

2. "Procedure Established by Law" and "Due Process"

1. The framers deliberately used "procedure established by law" (from the Japanese Constitution) instead of the American "due process of law".
2. After *Maneka Gandhi*, the procedure must be fair, just and reasonable, not arbitrary, fanciful or oppressive. In effect, Indian law now incorporates substantive due process.

3. Rights Recognised under Article 21

Right	Case
Right to live with human dignity	*Francis Coralie Mullin v UT of Delhi* (1981)
Right to livelihood	*Olga Tellis v Bombay Municipal Corporation* (1985)
Right to privacy	*K.S. Puttaswamy* (2017)

Right	Case
Right to speedy trial	*Hussainara Khatoon v State of Bihar* (1979)
Right to free legal aid	*M.H. Hoskot v State of Maharashtra* (1978)
Right against custodial torture	*D.K. Basu v State of WB* (1997)
Right to health and medical care	*Parmanand Katara v Union of India* (1989); *Paschim Banga Khet Mazdoor Samity* (1996)
Right to a clean environment	*Subhash Kumar v State of Bihar* (1991); *M.C. Mehta* cases
Right against the adverse effects of climate change	*M.K. Ranjitsinh v Union of India* (2024)
Right to shelter	*Chameli Singh v State of UP* (1996)
Right to travel abroad	*Satwant Singh Sawhney* (1967); *Maneka Gandhi* (1978)
Right to die with dignity (passive euthanasia)	*Common Cause v Union of India* (2018)
Right to choose a partner and sexual autonomy	*Shafin Jahan* (2018); *Navtej Singh Johar* (2018)
Rights of prisoners	*Sunil Batra* (1978, 1980)
Right to reputation	*Subramanian Swamy v Union of India* (2016)
Right to sleep	*Re Ramlila Maidan Incident* (2012)
Right to food	*PUCL v Union of India* (2001, interim orders)

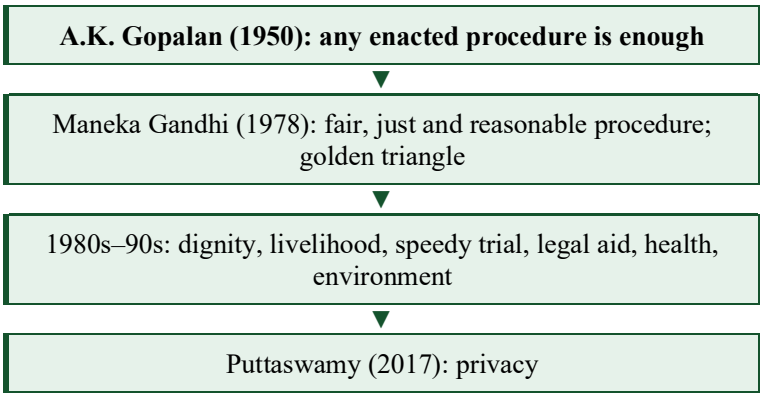
4. Right to Life Does Not Include the Right to Die

In *Gian Kaur v State of Punjab* (1996), the Court held that Art 21 does not include the right to die (overruling *P. Rathinam*, 1994), but in *Common Cause* (2018) it recognised the right to die with dignity through passive euthanasia and living wills.

5. Death Penalty

The death penalty is constitutional, but only in the "rarest of rare" cases (*Bachan Singh v State of Punjab*, 1980).

Flowchart: Expansion of Article 21



▼

Present: Art 21 as the source of many unenumerated rights

Examples

- The passport of a person is impounded without giving him a hearing or reasons. This violates Art 21 (*Maneka Gandhi*).
- Pavement dwellers are evicted without notice or alternative arrangements. This affects their right to livelihood under Art 21 (*Olga Tellis*).

Case Laws

Case Law: Maneka Gandhi v Union of India

Year: 1978 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: Maneka Gandhi's passport was impounded by the Government under section 10(3)(c) of the Passports Act, 1967 "in the interests of the general public". No reasons were given, and she was not given a hearing. She challenged the order under Articles 14, 19 and 21.

Legal Issue: Does Article 21 require only a procedure enacted by law, or must the procedure also be fair, just and reasonable? Are Articles 14, 19 and 21 interconnected?

Court's Decision / What the Court Held: The Court held that the "procedure established by law" under Article 21 must be "right, just and fair" and not arbitrary, fanciful or oppressive. Articles 14, 19 and 21 are not mutually exclusive; a law depriving a person of personal liberty must satisfy all of them. The right to travel abroad is part of personal liberty. The principles of natural justice (the right to be heard) apply. (The Government gave an undertaking to reconsider, so the order was not formally quashed.)

Relevance to the Topic: The most important case on Article 21, which transformed its interpretation.

Case Law: Olga Tellis v Bombay Municipal Corporation

Year: 1985 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Bombay Municipal Corporation decided to evict pavement and slum dwellers and demolish their huts. The petitioners argued that eviction would deprive them of their livelihood, as they lived near their places of work.

Legal Issue: Does the right to life under Article 21 include the right to livelihood?

Court's Decision / What the Court Held: The Court held that the right to life includes the right to livelihood, because no person can live without the means of living. However, the right to livelihood is not absolute; eviction can be done by a fair, just and reasonable

procedure. The Court allowed eviction after the monsoon, with notice and a hearing, and directed that those who had been enumerated in the census be given alternative sites.

Relevance to the Topic: The case recognises the right to livelihood as part of Article 21.

Important Points

- Art 21 applies to all persons.
- *A.K. Gopalan* (1950): narrow view; *Maneka Gandhi* (1978): fair, just and reasonable procedure.
- Art 21 includes dignity, livelihood, privacy, speedy trial, legal aid, health, environment, shelter and more.
- Right to die is not included, but dying with dignity is (*Gian Kaur*, 1996; *Common Cause*, 2018).
- Art 21 cannot be suspended during an Emergency.

Remember: Art 21 has become the "heart" of the fundamental rights.

Topic 2.26: Right to Education (86th amendment, 2002)

Introduction

Education is essential for personal development and for meaningful exercise of other rights. Originally, free and compulsory education for children was only a Directive Principle (old Art 45). The Supreme Court held in the 1990s that the right to education flows from the right to life. Parliament then made it an express fundamental right by the **86th Constitutional Amendment, 2002**, inserting Article 21A. The Right of Children to Free and Compulsory Education Act, 2009 (RTE Act) implements it.

Definition

> **Article 21A:** "The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine."

Detailed Explanation

1. Background

1. **Old Art 45 (DPSP):** the State shall endeavour to provide, within ten years, free and compulsory education for all children until they complete 14 years.
2. *Mohini Jain v State of Karnataka* (1992): the right to education is part of Art 21.
3. *Unni Krishnan v State of AP* (1993): every child has a right to free education up to 14 years; beyond that, it is subject to the State's economic capacity.

2. Changes Made by the 86th Amendment (2002)

1. **Art 21A** inserted: right to free and compulsory education for children aged 6–14.
2. **Art 45** substituted: the State shall endeavour to provide early childhood care and education for all children until they complete six years.
3. **Art 51A(k)** inserted: a fundamental duty of parents or guardians to provide opportunities for education to their children aged 6–14.

3. Right of Children to Free and Compulsory Education Act, 2009

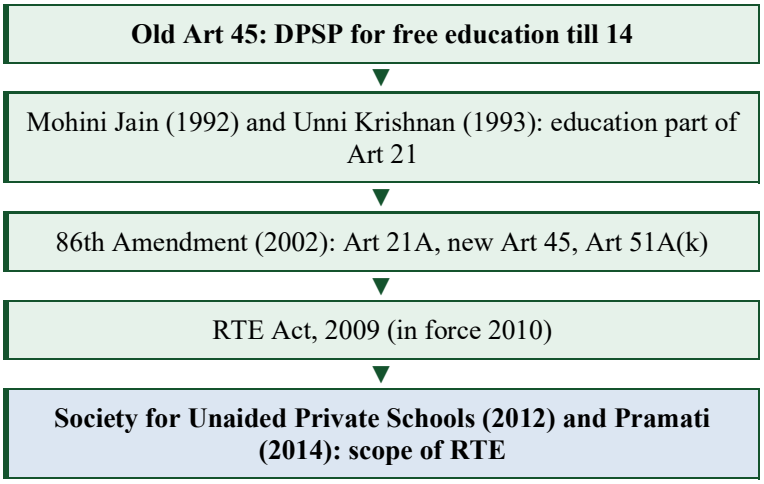
1. Came into force on 1 April 2010.
2. Free education: no fees, charges or expenses that would prevent a child from completing elementary education.
3. Compulsory: the Government must ensure admission, attendance and completion.
4. **25% reservation** in private unaided schools for children from weaker sections and disadvantaged groups (s.12(1)(c)), with reimbursement by the State.
5. Norms for pupil-teacher ratio, infrastructure and teacher qualifications.

6. Prohibition of capitation fees, screening procedures, physical punishment and mental harassment.
7. No child to be held back or expelled until completion of elementary education (later amended in 2019 to allow detention after examinations in classes 5 and 8 at the State's option).

4. Judicial Decisions on RTE

1. *Society for Unaided Private Schools of Rajasthan v Union of India* (2012): the RTE Act, including 25% reservation, was upheld for private unaided schools, but not for unaided minority schools.
2. *Pramati Educational and Cultural Trust v Union of India* (2014): the RTE Act does not apply to minority schools, whether aided or unaided, as that would violate Art 30.

Flowchart: Development of the right to education



Examples

- A Government school cannot charge fees from a child aged 10, as this would violate Art 21A and the RTE Act.
- A private unaided (non-minority) school must admit 25% of children from weaker sections in the entry class.

Case Laws

Case Law: Unni Krishnan J.P. v State of Andhra Pradesh

Year: 1993 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Private medical and engineering colleges challenged State laws regulating capitation fees and admissions. The Court reconsidered *Mohini Jain* (1992), which had held that the right to education at all levels is a fundamental right.

Legal Issue: Is the right to education a fundamental right under Article 21, and if so, to what extent?

Court's Decision / What the Court Held: The Court held that the right to education flows from Article 21. Every child has a fundamental right to free education until he completes the age of 14 years. Beyond that, the right is subject to the economic capacity and development of the State (Art 41). The Court also framed a scheme regulating admissions and fees in private professional colleges (later overruled on that aspect in *T.M.A. Pai*, 2002).

Relevance to the Topic: The case laid the foundation for Article 21A.

Case Law: Society for Unaided Private Schools of Rajasthan v Union of India

Year: 2012 **Court:** Supreme Court of India

Facts / Background: Private unaided schools challenged section 12(1)(c) of the RTE Act, which requires them to admit at least 25% of children in the entry class from weaker sections and disadvantaged groups, with reimbursement by the State. They argued that it violated their rights under Articles 19(1)(g) and 30.

Legal Issue: Is the 25% reservation under the RTE Act valid for private unaided schools?

Court's Decision / What the Court Held: By majority, the Court upheld the RTE Act and section 12(1)(c) for Government, aided and private unaided non-minority schools. The obligation is a reasonable restriction under Article 19(6) in the interest of the general public. However, the Act does not apply to unaided minority schools.

Relevance to the Topic: The case upholds the RTE Act as implementing Article 21A.

Important Points

- Art 21A: free and compulsory education for children aged 6–14 (86th Amendment, 2002).
- New Art 45: early childhood care and education until 6 years.
- Art 51A(k): duty of parents.
- RTE Act, 2009: 25% reservation in private unaided schools.
- *Unni Krishnan* (1993) recognised the right; *Society for Unaided Private Schools* (2012) upheld the RTE Act.
- RTE does not apply to minority schools (*Pramati*, 2014).

Remember: Art 21A is available to all children, not only citizens.

Topic 2.27: Protection against Arrest and Detention in Certain cases

Introduction

Arrest and detention directly affect personal liberty. Article 22 provides important safeguards for persons who are arrested. It deals with two kinds of detention: **punitive detention** (arrest for an offence) and **preventive detention** (detention to prevent a person from doing something harmful in future, without trial). The safeguards for preventive detention are weaker, which has made it one of the most debated provisions of the Constitution.

Definition

> **Article 22(1):** "No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult, and to be defended by, a legal practitioner of his choice."

> **Article 22(2):** "Every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the magistrate and no such person shall be detained in custody beyond the said period without the authority of a magistrate."

Detailed Explanation

A. Safeguards in Ordinary (Punitive) Arrest: Art 22(1) and (2)

1. **Right to be informed of the grounds of arrest** as soon as possible.
2. **Right to consult and be defended by a lawyer** of one's choice.
3. **Right to be produced before the nearest magistrate within 24 hours** (excluding journey time).
4. **No detention beyond 24 hours** without the magistrate's authority.

Statutory safeguards (BNSS, 2023): s.35 (when police may arrest without warrant; old s.41 CrPC); s.36 (arrest memo; old s.41B); s.38 (right to meet an advocate during interrogation; old s.41D); s.47 (grounds of arrest and right to bail; old s.50); s.48 (intimation to a relative or friend; old s.50A); s.58 (no detention beyond 24 hours; old s.57).

Judicial safeguards: *Joginder Kumar v State of UP* (1994); *D.K. Basu v State of WB* (1997) guidelines; *Arnesh Kumar v State of Bihar* (2014) (no automatic arrest for offences punishable up to 7 years); *Vihaan Kumar v State of Haryana* (2025) (failure to inform the grounds of arrest makes the arrest illegal).

B. Exceptions: Art 22(3)

Clauses (1) and (2) do not apply to (a) an enemy alien, or (b) a person arrested or detained under a law providing for preventive detention.

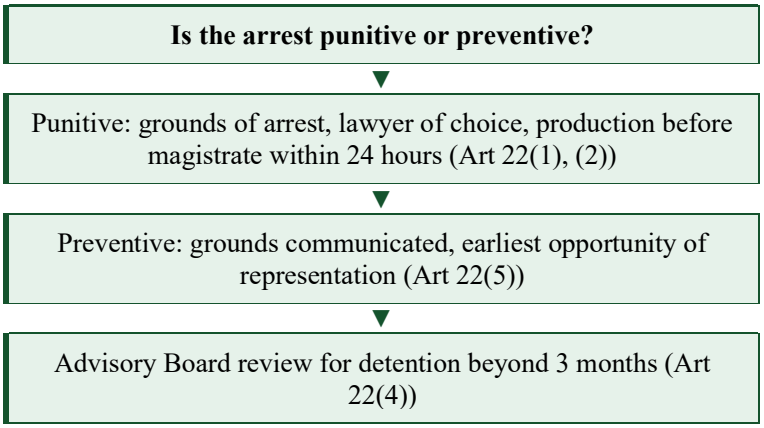
C. Preventive Detention: Art 22(4) to (7)

1. **Meaning:** detention without trial, to prevent a person from acting in a manner prejudicial to the security of the State, public order, maintenance of supplies and services, defence or foreign affairs.
2. **Art 22(4):** no detention beyond **three months** unless an **Advisory Board** (of persons qualified to be High Court judges) reports that there is sufficient cause, or the detention is under a law made by Parliament under Art 22(7).
3. **Art 22(5):** the detaining authority must communicate the **grounds of detention** as soon as may be and give the detenu the **earliest opportunity to make a representation**.
4. **Art 22(6):** facts considered against the public interest need not be disclosed.
5. **Art 22(7):** Parliament may prescribe the circumstances and classes of cases for detention beyond three months without an Advisory Board, and the maximum period of detention and procedure.

Preventive detention laws: National Security Act, 1980; COFEPOSA, 1974; Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic Substances Act, 1988; State laws (e.g. the Andhra Pradesh and Telangana Prevention of Dangerous Activities Acts).

Point	Punitive detention	Preventive detention
Purpose	Punish for an offence already committed	Prevent future harmful acts
Trial	Yes	No trial
Safeguards	Art 22(1), (2); BNSS	Art 22(4)–(7)
Grounds	Must be informed of grounds of arrest	Grounds communicated; representation; Advisory Board

Flowchart: Safeguards under Article 22



▼

Violation: release by habeas corpus and possible compensation

Examples

- A person is arrested for theft and kept in a police station for three days without being produced before a magistrate. This violates Art 22(2).
- A person is detained under the National Security Act, but the grounds are given in a language he does not understand. This violates Art 22(5) (*Harikisan v State of Maharashtra*, 1962).

Case Laws

Case Law: D.K. Basu v State of West Bengal

Year: 1997 **Court:** Supreme Court of India

Facts / Background: D.K. Basu, the Executive Chairman of Legal Aid Services, West Bengal, wrote a letter to the Chief Justice of India about deaths in police custody and lock-ups, reported in newspapers. The letter was treated as a writ petition.

Legal Issue: What safeguards must be followed during arrest and detention to prevent custodial violence and protect Article 21 and Article 22?

Court's Decision / What the Court Held: The Court laid down eleven guidelines to be followed in all cases of arrest and detention, including: police personnel making the arrest must wear accurate, visible identification; an arrest memo must be prepared, attested by a witness and countersigned by the arrestee; a friend or relative must be informed of the arrest and place of detention; the arrestee must be informed of this right; medical examination every 48 hours; copies of documents to be sent to the magistrate; the arrestee may meet his lawyer during interrogation; and a police control room must display information about arrests. Violation would attract departmental action and contempt of court, and the State is liable to pay compensation for custodial violence.

Relevance to the Topic: The leading case on safeguards against custodial violence, many of which are now part of the BNSS.

Case Law: A.K. Roy v Union of India

Year: 1982 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The National Security Ordinance, 1980 and the National Security Act, 1980 were challenged as violating Articles 14, 19, 21 and 22. The petitioners argued

that preventive detention is inconsistent with democracy and that the grounds of detention in the Act were vague.

Legal Issue: Is the National Security Act, 1980 constitutional, and what safeguards apply to preventive detention?

Court's Decision / What the Court Held: The Court upheld the validity of the NSA, as preventive detention is expressly permitted by Article 22. But it held that the law must be construed strictly; vague expressions must be read narrowly; the detenu must be given the grounds of detention promptly; he must be allowed to make a representation; he may be assisted by a friend (but not necessarily a lawyer) before the Advisory Board; and the procedure must be fair, just and reasonable under Article 21.

Relevance to the Topic: The leading case on the constitutional validity and safeguards of preventive detention.

Important Points

- Art 22(1), (2): grounds of arrest, lawyer of choice, production within 24 hours.
- Art 22(3): these safeguards do not apply to enemy aliens and preventive detention.
- Art 22(4)–(7): Advisory Board, grounds and representation in preventive detention.
- *D.K. Basu* (1997): guidelines on arrest; *A.K. Roy* (1982): NSA upheld with safeguards.
- Grounds must be in a language the detenu understands (*Harikisan*, 1962).

Remember: The 44th Amendment's proposal to reduce the Advisory Board period to two months has not been brought into force.

Topic 2.28: Right against exploitation (Article 23 and 24)

Introduction

Exploitation of the weak, through slavery, bonded labour, trafficking, and child labour, was widespread in India and around the world. The Constitution, in Articles 23 and 24, prohibits such exploitation. These rights are special because they are enforceable not only against the State but also against private persons, who are often the exploiters. This topic gives an overview of the right against exploitation; forced labour and child labour are explained separately in the next two topics.

Definition

> **Article 23(1):** "Traffic in human beings and begar and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law."

> **Article 23(2):** "Nothing in this article shall prevent the State from imposing compulsory service for public purposes, and in imposing such service the State shall not make any discrimination on grounds only of religion, race, caste or class or any of them."

> **Article 24:** "No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment."

Detailed Explanation

1. Scope of Article 23

1. **Traffic in human beings:** buying and selling of human beings, including trafficking of women and children for prostitution or labour.
2. **Begar:** compulsory work without payment, historically extracted by landlords.
3. **Other similar forms of forced labour:** bonded labour, labour at less than the minimum wage due to economic compulsion (*PUDR*, 1982).
4. **Exception:** the State may impose compulsory service for public purposes (e.g. military service, social service), without discrimination.

2. Scope of Article 24

1. Prohibits employment of children below 14 in factories, mines and hazardous employment.
2. Supplemented by Art 39(e), (f) (DPSP), Art 21A (education) and Art 45.

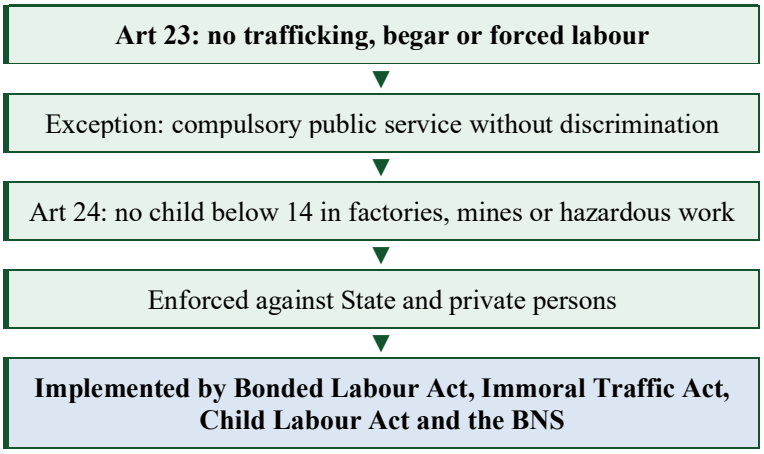
3. Laws Enforcing Articles 23 and 24

Law	Purpose
Immoral Traffic (Prevention) Act, 1956	Prevents trafficking for prostitution
Bonded Labour System (Abolition) Act, 1976	Abolishes bonded labour
Minimum Wages Act, 1948 (now Code on Wages, 2019)	Minimum wages
Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 (amended in 2016)	Prohibits child labour
Bharatiya Nyaya Sanhita, 2023	Offences of trafficking (s.143), buying or selling minors for prostitution, and unlawful compulsory labour (s.146)

4. Enforcement against Private Persons

Articles 23 and 24 are enforceable against private persons as well as the State (*PUDR v Union of India*, 1982; *Bandhua Mukti Morcha*, 1984).

Flowchart: Right against exploitation



Examples

- A brick kiln owner forces workers to work until they repay an advance, with no freedom to leave. This is bonded labour prohibited by Art 23.
- A firecracker factory employs children aged 12. This violates Art 24.

Case Laws

Case Law: Bandhua Mukti Morcha v Union of India

Year: 1984 **Court:** Supreme Court of India

Facts / Background: Bandhua Mukti Morcha, an organisation working for the release of bonded labourers, wrote a letter to the Supreme Court stating that many workers in stone quarries in Faridabad (Haryana) were working as bonded labourers in inhuman conditions. The letter was treated as a writ petition.

Legal Issue: Can a public-spirited organisation approach the Court on behalf of bonded labourers, and what are the obligations of the State under Articles 21 and 23?

Court's Decision / What the Court Held: The Court held that the petition was maintainable as public interest litigation. It held that the right to live with human dignity under Article 21, read with the Directive Principles, includes protection of health and strength of workers and just and humane conditions of work. The State has a duty to identify, release and rehabilitate bonded labourers under the Bonded Labour System (Abolition) Act, 1976. The Court issued detailed directions.

Relevance to the Topic: The case is a landmark on the right against exploitation and on PIL.

Important Points

- Art 23 prohibits trafficking, begar and forced labour; Art 24 prohibits child labour in hazardous employment.
- The State may impose compulsory public service without discrimination (Art 23(2)).
- These rights are enforceable against private persons.
- *Bandhua Mukti Morcha* (1984): directions for release of bonded labourers.

Remember: Payment below the minimum wage can amount to forced labour (*PUDR*, 1982).

Topic 2.29: Prohibition against Forced Labour

Introduction

Forced labour is work that a person is compelled to do against his will, by force, threat, or economic compulsion. It was a widespread practice in India in the form of begar and bonded labour. Article 23 prohibits forced labour, and the Supreme Court has given the term a broad meaning that covers not only physical force but also economic compulsion, such as paying less than the minimum wage.

Definition

> **Forced labour** is any work or service that a person is compelled to render against his will, by physical force, legal compulsion, or compulsion arising from hunger, poverty or want, including work for less than the minimum wage. It is prohibited by Article 23.

Detailed Explanation

1. Forms of Forced Labour

1. **Begar:** forced work without payment, traditionally for landlords or officials.
2. **Bonded labour:** a person (and often his family) works for a creditor to repay a loan, usually for very low wages or none, and cannot leave until the debt is repaid.
3. **Labour at less than minimum wages:** where a person accepts work below the minimum wage because of economic necessity.
4. **Trafficking for labour:** recruitment and transport of persons through force or deception for labour.

2. Meaning of "Force"

In *PUDR v Union of India* (1982), the Court explained that "force" includes not only physical force or legal force, but also compulsion arising from economic circumstances, which leaves a person with no choice but to accept work at less than the minimum wage.

3. Exception: Compulsory Public Service (Art 23(2))

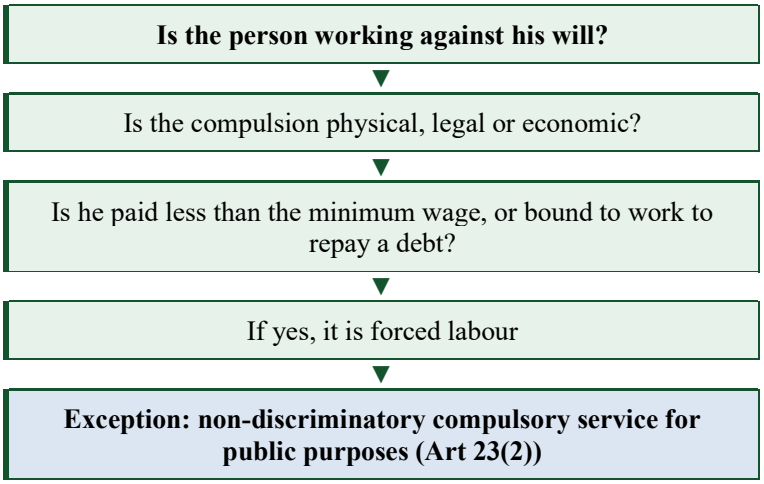
The State may impose compulsory service for public purposes, such as military service, firefighting or famine relief work, provided there is no discrimination on grounds only of religion, race, caste or class. For example, a law requiring graduates to do social service for a period would be valid if it is non-discriminatory.

4. Bonded Labour System (Abolition) Act, 1976

1. Abolished the bonded labour system and freed all bonded labourers.
2. Extinguished liability to repay bonded debt.
3. Prohibited any suit or proceeding for recovery of bonded debt.

4. Made compelling a person to render bonded labour a punishable offence.
5. Required the District Magistrate to ensure release and rehabilitation.

Flowchart: Is it forced labour under Article 23?



Examples

- Workers on a Government construction project are paid less than the minimum wage by a contractor. This is forced labour (*PUDR*).
- A person borrows Rs. 10,000 from a landlord and is made to work on his farm without wages until the loan is repaid. This is bonded labour.

Case Laws

Case Law: People's Union for Democratic Rights v Union of India (on forced labour)

Year: 1982 **Court:** Supreme Court of India

Facts / Background: Workers employed through contractors for constructing stadiums and flyovers for the 1982 Asian Games were paid less than the minimum wage, and labour laws were being violated (facts in Topic 2.4).

Legal Issue: Does payment of less than the minimum wage amount to "forced labour" under Article 23?

Court's Decision / What the Court Held: The Court held that where a person provides labour or service for less than the minimum wage, it is forced labour under Article 23, because the compulsion of economic circumstances leaves him no choice. The word "force" must be understood broadly. The Government was directed to ensure payment of minimum wages.

Relevance to the Topic: The case gives the widest meaning to "forced labour".

Case Law: Sanjit Roy v State of Rajasthan

Year: 1983 **Court:** Supreme Court of India

Facts / Background: The Rajasthan Famine Relief Works Employees (Exemption from Labour Laws) Act, 1964 exempted famine relief works from the Minimum Wages Act, so persons employed in road construction as famine relief were paid less than the minimum wage.

Legal Issue: Does payment of less than the minimum wage to persons employed in famine relief work violate Article 23?

Court's Decision / What the Court Held: The Court held that payment of wages below the minimum wage to workers in famine relief works is forced labour and violates Article 23. The State cannot take advantage of the helplessness of drought-affected persons. The Act was struck down to the extent it excluded the minimum wage.

Relevance to the Topic: The case confirms the *PUDR* principle and applies it to State employment in relief works.

Important Points

- Art 23 prohibits begar, bonded labour and other forms of forced labour.
- "Force" includes economic compulsion; work below minimum wage is forced labour (*PUDR*, 1982; *Sanjit Roy*, 1983).
- Compulsory public service is permitted without discrimination (Art 23(2)).
- Bonded Labour System (Abolition) Act, 1976 abolishes bonded labour.

Remember: The State itself cannot pay less than the minimum wage, even in relief work.

Topic 2.30: Prohibition against Child Labour

Introduction

Children who work in factories, mines and hazardous occupations lose their childhood, health and education. Article 24 prohibits the employment of children below 14 years in factories, mines and other hazardous employment. This right is reinforced by the Directive Principles (Art 39(e), (f)), the right to education (Art 21A) and the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986.

Definition

> **Article 24:** "No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment."

Detailed Explanation

1. Scope of Article 24

1. Absolute prohibition of employing children below 14 in factories, mines and hazardous employment.
2. Enforceable against private employers and the State.
3. It does not, by itself, prohibit all child work (e.g. helping in family work), but laws have widened the prohibition.

2. Related Constitutional Provisions

Provision	Content
Art 21A	Free and compulsory education for children aged 6–14
Art 39(e)	Tender age of children not to be abused; citizens not forced by economic necessity to enter avocations unsuited to their age
Art 39(f)	Children to be given opportunities to develop in a healthy manner and in conditions of freedom and dignity
Art 45	Early childhood care and education until 6 years
Art 51A(k)	Duty of parents to provide education

3. Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 (amended 2016)

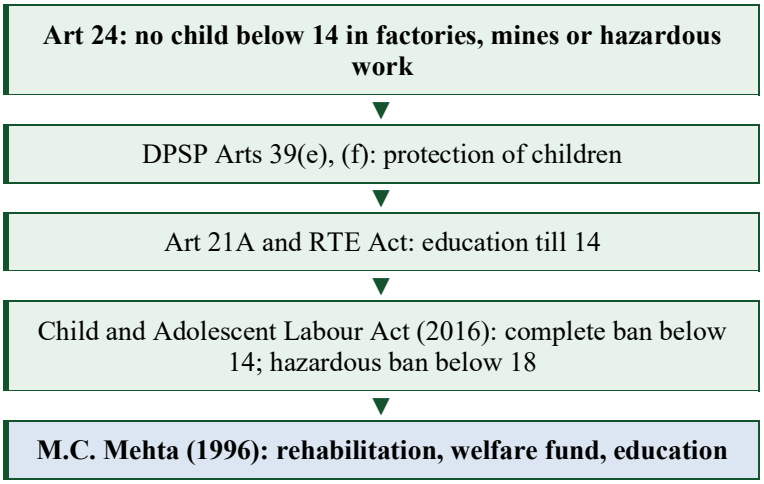
1. Originally called the Child Labour (Prohibition and Regulation) Act, 1986; renamed and strengthened in 2016.

2. **Complete prohibition** of employment of children (below 14) in all occupations and processes, except helping the family or family enterprises after school hours (in non-hazardous work) and working as artists in the entertainment industry (with safeguards).
3. **Adolescents (14–18)** cannot be employed in hazardous occupations and processes.
4. Higher penalties for employers; parents punished only for repeat offences.
5. Child and Adolescent Labour Rehabilitation Fund.

4. Other Laws

1. Factories Act, 1948; Mines Act, 1952 (now under the Occupational Safety, Health and Working Conditions Code, 2020).
2. Juvenile Justice (Care and Protection of Children) Act, 2015.
3. Right of Children to Free and Compulsory Education Act, 2009.

Flowchart: Elimination of child labour



Examples

- A carpet factory employs children aged 10. This violates Art 24 and the Child Labour Act.
- A 15-year-old is employed in a chemical factory. This violates the Act, which prohibits employment of adolescents in hazardous processes.

Case Laws

Case Law: M.C. Mehta v State of Tamil Nadu

Year: 1996 **Court:** Supreme Court of India

Facts / Background: M.C. Mehta filed a PIL about the employment of children in the match and fireworks factories of Sivakasi (Tamil Nadu), a hazardous industry where accidents were frequent.

Legal Issue: What measures must the State and employers take to eliminate child labour in hazardous industries and rehabilitate child workers?

Court's Decision / What the Court Held: The Court held that children cannot be employed in hazardous industries under Article 24. It gave detailed directions: (i) a survey of child labour; (ii) withdrawal of children from hazardous jobs; (iii) the offending employer to pay compensation of Rs. 20,000 per child into a Child Labour Rehabilitation-cum-Welfare Fund; (iv) the State to provide employment to an adult member of the family or contribute Rs. 5,000 per child to the fund; (v) the children to be given education; and (vi) regulation of non-hazardous work.

Relevance to the Topic: The leading case on enforcing Article 24 and rehabilitating child labour.

Important Points

- Art 24 prohibits employment of children below 14 in factories, mines and hazardous work.
- Supported by Arts 21A, 39(e), (f), 45 and 51A(k).
- The 2016 amendment banned employment of children below 14 in all occupations (with limited exceptions) and of adolescents in hazardous work.
- *M.C. Mehta v State of TN* (1996): compensation and rehabilitation fund for child labour.

Remember: Art 24 is enforceable against private employers as well as the State.

Topic 2.31: Right to freedom of Religion (Article 25 to 28)

Introduction

India is a land of many religions. The Constitution guarantees every person the freedom to follow, practise and spread his religion, and allows religious communities to manage their own affairs. At the same time, the State can regulate secular activities connected with religion and can introduce social reforms. Articles 25 to 28 together form the **Right to Freedom of Religion**. This topic gives an overview; secularism, individual and denominational freedom, and restrictions are explained in the next three topics.

Definition

> **Article 25(1):** "Subject to public order, morality and health and to the other provisions of this Part, all persons are equally entitled to freedom of conscience and the right freely to profess, practise and propagate religion."

Detailed Explanation

1. Overview of Articles 25 to 28

Article	Content
25	Freedom of conscience and free profession, practice and propagation of religion; State may regulate secular activities and provide for social reform (25(2))
26	Freedom of religious denominations to manage religious affairs, establish institutions, own and administer property
27	No person shall be compelled to pay taxes for the promotion or maintenance of any particular religion
28	No religious instruction in wholly State-funded institutions; voluntary participation in State-recognised or aided institutions

2. Article 25 in Detail

1. **Freedom of conscience:** inner freedom to hold any belief or no belief.
2. **Profess:** declare one's faith openly.
3. **Practise:** perform religious rites, rituals and observances.
4. **Propagate:** spread or transmit one's religion by exposition of its tenets; this does not include the right to convert another person (*Rev. Stainislaus v State of MP*, 1977).
5. **Restrictions:** public order, morality, health and the other provisions of Part III.
6. **Art 25(2)(a):** the State may regulate or restrict economic, financial, political or other secular activities associated with religious practice.

7. **Art 25(2)(b):** the State may provide for social welfare and reform and throw open Hindu religious institutions of a public character to all classes and sections of Hindus.
8. **Explanation I:** wearing and carrying kirpans is included in the profession of the Sikh religion.
9. **Explanation II:** "Hindus" includes persons professing the Sikh, Jaina or Buddhist religion.

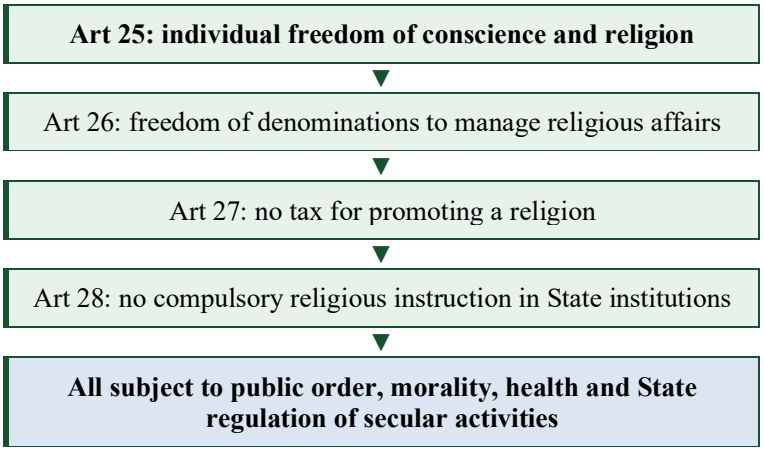
3. Article 27: Freedom from Taxes for Promotion of Religion

The State cannot levy a tax whose proceeds are specifically used for the promotion of a particular religion. A fee for services (e.g. for administration of temples) is not a tax for this purpose.

4. Article 28: Religious Instruction

1. **28(1):** no religious instruction in institutions wholly maintained out of State funds.
2. **28(2):** this does not apply to institutions administered by the State but established under a trust or endowment requiring religious instruction.
3. **28(3):** in State-recognised or aided institutions, no person shall be required to take part in religious instruction or worship without his (or, for a minor, his guardian's) consent.

Flowchart: Framework of religious freedom



Examples

- A Sikh student can carry a kirpan to school as part of his religion (Explanation I to Art 25).
- A Government school cannot make students attend a religious prayer of a particular faith as compulsory religious instruction.

Case Laws

Case Law: Rev. Stainislaus v State of Madhya Pradesh

Year: 1977 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Madhya Pradesh Dharma Swatantraya Adhiniyam, 1968 and the Orissa Freedom of Religion Act, 1967 prohibited conversion from one religion to another by force, fraud or allurement, and required intimation of conversions to the authorities. They were challenged as violating the right to "propagate" religion under Article 25.

Legal Issue: Does the right to "propagate" religion under Article 25 include the right to convert another person?

Court's Decision / What the Court Held: The Court held that the right to propagate means the right to spread or transmit one's religion by exposition of its tenets, but it does not include the right to convert another person to one's own religion. Since every person has freedom of conscience, forcible or fraudulent conversion would impinge on that freedom. The State laws were valid as they were made to maintain public order.

Relevance to the Topic: The leading case on the meaning of "propagate" under Article 25.

Important Points

- Arts 25–28 form the right to freedom of religion.
- Art 25 applies to all persons, subject to public order, morality, health and other fundamental rights.
- "Propagate" does not include the right to convert (*Rev. Stainislaus*, 1977).
- Art 27: no taxes for promoting a religion; Art 28: no religious instruction in wholly State-funded institutions.

Remember: Freedom of religion is not absolute; the State can regulate secular activities and carry out social reform.

Topic 2.32: Concept of Secularism

Introduction

India is a land of many faiths, and religious conflict has often threatened its unity. The Constitution's answer is **secularism**: the State has no religion of its own, treats all religions equally, and guarantees religious freedom to all. Although the word "secular" was added to the Preamble only in 1976, the principle was built into the Constitution from the beginning. The Supreme Court has held that secularism is part of the basic structure.

Definition

> **Secularism** in the Indian sense means that the State has no official religion, does not discriminate on the basis of religion, treats all religions with equal respect (*sarva dharma sama bhava*), and guarantees freedom of religion to all, while retaining the power to regulate secular activities connected with religion and to carry out social reform.

Detailed Explanation

1. Western and Indian Models of Secularism

Point	Western (American/French) model	Indian model
Relationship of State and religion	Strict separation ("wall of separation")	Principled distance; equal respect
State intervention in religion	Generally not allowed	Allowed for social reform and regulation of secular activities
Aid to religious institutions	Generally prohibited	Allowed on a non-discriminatory basis (Art 30(2))
Approach	Negative (non-interference)	Positive (equal respect and protection)

2. Constitutional Provisions Embodying Secularism

1. **Preamble:** "Secular" (42nd Amendment, 1976); liberty of belief, faith and worship.
2. **Arts 14, 15, 16:** no discrimination on the ground of religion.
3. **Arts 25–28:** freedom of religion.
4. **Arts 29–30:** rights of religious and linguistic minorities.
5. **Art 44:** Uniform Civil Code (DPSP).
6. **Art 51A(e):** duty to promote harmony transcending religious differences.
7. **Art 325:** no person ineligible for electoral rolls on grounds of religion.

3. Judicial Interpretation

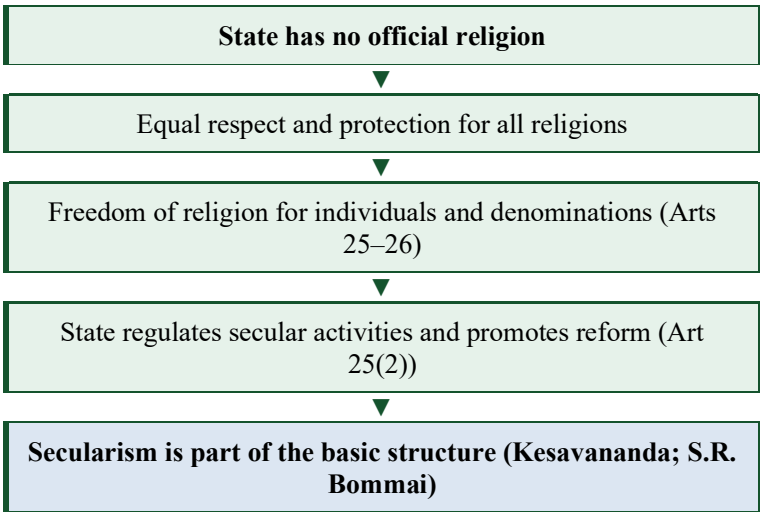
1. *Kesavananda Bharati* (1973): secularism is part of the basic structure.

2. *S.R. Bommai v Union of India* (1994): secularism is a basic feature; a State Government that acts against secularism can be dismissed under Art 356; religion and politics must not mix.
3. *St. Xavier's College v State of Gujarat* (1974): secularism means neither pro-God nor anti-God; the State treats devout, agnostic and atheist alike.
4. *Aruna Roy v Union of India* (2002): teaching the essential values of all religions in schools does not violate secularism.
5. *Dr. Balram Singh v Union of India* (2024): the insertion of "secular" in the Preamble was upheld.

4. Challenges to Secularism

1. Communal violence and political mobilisation on religious lines.
2. Debates over a Uniform Civil Code.
3. Balancing religious freedom with gender equality (e.g. triple talaq, Sabarimala).

Flowchart: Indian secularism in practice



Examples

- The State gives grants-in-aid to schools run by different religious minorities on equal terms. This is consistent with Indian secularism.
- A political party seeks votes by appealing to religion and promising to favour one religion. This violates secularism and may amount to a corrupt practice under the Representation of the People Act, 1951.

Case Laws

Case Law: S.R. Bommai v Union of India (on secularism)

Year: 1994 **Court:** Supreme Court of India (nine-judge bench)

Facts / Background: After the demolition of the Babri Masjid in December 1992, the President dismissed the BJP Governments in Madhya Pradesh, Rajasthan and Himachal Pradesh under Article 356, partly on the ground that they had failed to uphold secularism. These proclamations, along with others (Karnataka, Meghalaya, Nagaland), were challenged. (The case is discussed in detail under Unit VI on Emergency.)

Legal Issue: Is secularism part of the basic structure, and can a State Government be dismissed for acting against secularism?

Court's Decision / What the Court Held: The Court held that secularism is a basic feature of the Constitution. A State Government that pursues anti-secular policies acts contrary to the Constitution, and that can be a valid ground for action under Article 356. The proclamations relating to the three BJP-ruled States were upheld on this ground. The Court explained that religion is a matter of individual faith and cannot be mixed with secular activities of the State.

Relevance to the Topic: The case is the leading authority on secularism as a basic feature of the Constitution.

Important Points

- Indian secularism means equal respect for all religions, not hostility to religion.
- "Secular" was added to the Preamble in 1976, but the concept existed from the start.
- Secularism is part of the basic structure (*Kesavananda*, 1973; *S.R. Bommai*, 1994).
- The State may regulate secular activities and promote social reform.

Remember: Indian secularism is "principled distance", not a rigid wall of separation.

Topic 2.33: Religious Freedom of the Individual and Religious Denominations

Introduction

The Constitution protects religious freedom at two levels. Article 25 protects the freedom of every individual to hold and practise his religion. Article 26 protects the collective freedom of religious denominations (organised groups within a religion) to manage their own religious affairs, establish institutions and administer property. The distinction is important because the rights of denominations are subject only to public order, morality and health, and not to the other provisions of Part III.

Definition

> **Article 26:** "Subject to public order, morality and health, every religious denomination or any section thereof shall have the right (a) to establish and maintain institutions for religious and charitable purposes; (b) to manage its own affairs in matters of religion; (c) to own and acquire movable and immovable property; and (d) to administer such property in accordance with law."

Detailed Explanation

1. Individual Freedom (Article 25)

1. Belongs to all persons, citizens and non-citizens.
2. Includes freedom of conscience, and the right to profess, practise and propagate religion.
3. Subject to public order, morality, health, other provisions of Part III, and State regulation under Art 25(2).

2. Freedom of Religious Denominations (Article 26)

Meaning of "religious denomination" (*Commissioner, HRE v Sri Lakshmindra Thirtha Swamiar of Sri Shirur Mutt*, 1954):

1. A collection of individuals who have a system of beliefs or doctrines which they regard as conducive to their spiritual well-being.
2. A common organisation.
3. A distinctive name.

Rights of a denomination:

1. To establish and maintain institutions for religious and charitable purposes.
2. To manage its own affairs in matters of religion, i.e. matters essential to the religion, such as rituals and ceremonies.
3. To own and acquire property.

4. To administer property in accordance with law (the State can regulate the administration of property).

3. Comparison

Point	Article 25 (individual)	Article 26 (denomination)
Holder of right	Every person	Religious denomination or its section
Content	Conscience; profess, practise, propagate	Establish institutions; manage religious affairs; own and administer property
Restrictions	Public order, morality, health; other provisions of Part III; Art 25(2)	Public order, morality, health; administration of property "in accordance with law"
Social reform	State can make laws (Art 25(2)(b))	Subject to Art 25(2)(b) in matters of temple entry (*Sri Venkataramana Devaru*, 1958)

4. Matters of Religion and Secular Matters

1. Matters of religion (e.g. how worship is performed, what offerings are made) are protected under Art 26(b).
2. Secular matters (e.g. administration of temple properties, appointment of non-religious staff) can be regulated by law.
3. The test of "essential religious practices" decides what is a matter of religion (Topic 2.34).

5. Groups Held to Be Denominations or Not

1. Shirur Mutt (a Madhva sect): denomination (1954).
2. Ramakrishna Mission: held to be a religious denomination for Art 26 purposes but not a separate religion (*Bramchari Sidheswar Shai v State of WB*, 1995).
3. Followers of Sri Aurobindo (Auroville): not a religious denomination (*S.P. Mittal v Union of India*, 1983).

Flowchart: Is the group a religious denomination?



Examples

- A particular sect runs its own temples and decides the rituals to be performed. This is protected under Art 26(b).
- A State law regulating the accounts and management of temple property is valid under Art 26(d).

Case Laws

Case Law: Commissioner, Hindu Religious Endowments, Madras v Sri Lakshmindra Thirtha Swamiar of Sri Shirur Mutt

Year: 1954 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: The Madras Hindu Religious and Charitable Endowments Act, 1951 gave wide powers to the Commissioner to control the administration of religious institutions, including the Shirur Mutt. The head of the Mutt challenged several provisions as violating Articles 25 and 26.

Legal Issue: What is a "religious denomination" and what are "matters of religion" under Article 26?

Court's Decision / What the Court Held: The Court held that the Shirur Mutt belonged to a religious denomination (the followers of Madhvacharya). "Religion" includes not only beliefs but also practices, rituals and ceremonies that are an integral part of the religion. A denomination has complete autonomy to decide which rites and ceremonies are essential according to its tenets. The State can regulate the administration of property, but cannot take over management of religious matters. Several provisions of the Act that interfered with religious matters were struck down.

Relevance to the Topic: The leading case defining "religious denomination" and "matters of religion".

Case Law: S.P. Mittal v Union of India

Year: 1983 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Auroville (Emergency Provisions) Act, 1980 allowed the Central Government to take over the management of Auroville, a township founded by the Sri Aurobindo Society, because of mismanagement. The Society claimed protection under Articles 25 and 26, arguing that the teachings of Sri Aurobindo formed a religion and the Society was a religious denomination.

Legal Issue: Is the Sri Aurobindo Society a religious denomination, and is the Act valid?

Court's Decision / What the Court Held: The majority held that the teachings of Sri Aurobindo were a philosophy, not a religion, and the Society was not a religious denomination. The Act was therefore valid.

Relevance to the Topic: The case explains the requirements for claiming protection as a religious denomination.

Important Points

- Art 25 protects the individual; Art 26 protects religious denominations.
- A denomination has a common faith, common organisation and a distinctive name (*Shirur Mutt*, 1954).
- Denominations can manage religious affairs; property administration can be regulated by law.
- Not every philosophical group is a religious denomination (*S.P. Mittal*, 1983).

Remember: Art 26 is subject only to public order, morality and health, but the State can regulate secular aspects.

Topic 2.34: Restrictions on right to freedom of religion; essential religious practices test

Introduction

Religious freedom is not absolute. The Constitution allows the State to restrict it on grounds of public order, morality and health, and to regulate secular activities connected with religion. The courts have also developed the **essential religious practices test** to decide which practices are protected as part of religion. This test has been applied in many controversial cases, such as those on triple talaq, Sabarimala and the hijab.

Definition

> The **essential religious practices test** is the judicial doctrine under which only those practices that are essential and integral to a religion are protected by Articles 25 and 26; practices that are not essential, or that are merely secular, superstitious or incidental, can be regulated or prohibited by the State.

Detailed Explanation

1. Constitutional Restrictions on Religious Freedom

Restriction	Source
Public order	Art 25(1), Art 26
Morality	Art 25(1), Art 26
Health	Art 25(1), Art 26
Other provisions of Part III (e.g. Arts 14, 15, 17, 21)	Art 25(1)
Regulation of economic, financial, political or other secular activities	Art 25(2)(a)
Social welfare and reform; temple entry	Art 25(2)(b)

2. Development of the Essential Religious Practices Test

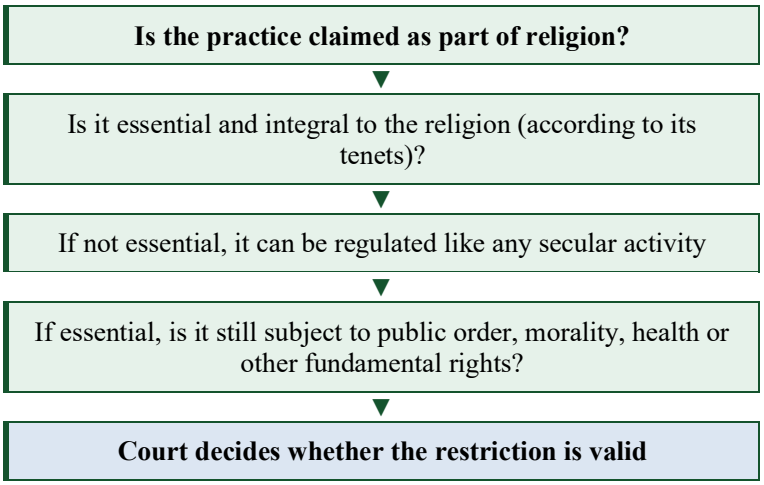
1. **Shirur Mutt (1954):** religion includes practices; what is essential is to be decided by reference to the doctrines of the religion itself.
2. **Durgah Committee, Ajmer v Syed Hussain Ali (1961):** Justice Gajendragadkar held that only practices that are essential and integral are protected; even practices that are religious but spring from superstition may not be protected.
3. **Mohd. Hanif Quareshi v State of Bihar (1958):** cow sacrifice on Bakrid is not an essential practice of Islam.
4. **Dr. M. Ismail Faruqui v Union of India (1994):** offering namaz in a mosque is not an essential practice, as namaz can be offered anywhere; acquisition of the Ayodhya site was upheld.

5. **Church of God (Full Gospel) in India v K.K.R. Majestic Colony Welfare Association (2000):** no religion prescribes prayers through loudspeakers; noise pollution can be restricted.
6. **Shayara Bano v Union of India (2017):** instant triple talaq is not an essential religious practice (Kurian Joseph J.) and is manifestly arbitrary (Nariman J.).
7. **Indian Young Lawyers Association v State of Kerala (2018):** the exclusion of women aged 10–50 from Sabarimala temple was held unconstitutional (majority).
8. **Aishat Shifa v State of Karnataka (2022):** split verdict on the hijab ban in Karnataka schools; referred to a larger bench.

3. Criticism of the Test

1. Judges decide theological questions, which may be beyond their competence.
2. The test may be applied inconsistently.
3. Some judges suggest focusing on constitutional morality, dignity and equality instead.
4. A nine-judge bench was constituted (in the Sabarimala review matter, 2019–2020) to consider questions about the scope of religious freedom and the essential practices test. Its decision should be checked for the latest position.

Flowchart: Applying the essential religious practices test



Examples

- A community claims that using loudspeakers at night is part of its prayer. Courts hold that this is not essential and can be restricted under noise pollution rules.
- A temple denies entry to persons of a particular caste. Art 25(2)(b) and Art 17 allow the State to open the temple to all.

Case Laws

Case Law: Durgah Committee, Ajmer v Syed Hussain Ali

Year: 1961 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Durgah Khawaja Saheb Act, 1955 provided for the administration of the Durgah (shrine) of Khwaja Moinuddin Chishti at Ajmer by a committee appointed by the Government. The Khadims (hereditary servants of the shrine) challenged the Act as violating their rights under Articles 25 and 26.

Legal Issue: Which practices are protected as "matters of religion" under Articles 25 and 26?

Court's Decision / What the Court Held: The Court upheld most of the Act. Justice Gajendragadkar observed that only practices that are an essential and integral part of the religion are protected. Even practices that are religious may have sprung from superstitious beliefs and may be extraneous and unessential accretions to religion itself; such practices are not protected. The administration of the property of the Durgah was a secular matter that could be regulated.

Relevance to the Topic: The case is regarded as the origin of the "essential and integral practices" test.

Case Law: Indian Young Lawyers Association v State of Kerala (Sabarimala case)

Year: 2018 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Women aged 10 to 50 years were prohibited from entering the Sabarimala temple dedicated to Lord Ayyappa, under Rule 3(b) of the Kerala Hindu Places of Public Worship (Authorisation of Entry) Rules, 1965 and custom. The ban was challenged as violating Articles 14, 15, 17 and 25.

Legal Issue: Is the exclusion of women of menstruating age from the Sabarimala temple constitutionally valid?

Court's Decision / What the Court Held: By a 4:1 majority, the Court held that the exclusion was unconstitutional. The majority held that the devotees of Lord Ayyappa do not form a separate religious denomination, that the exclusion is not an essential religious practice, and that it violates the right of women to worship under Article 25(1). Rule 3(b) was struck down. Justice Chandrachud also linked the exclusion to Article 17. Justice Indu Malhotra dissented, holding that courts should not interfere in matters of faith. (Review petitions led to a reference to a larger bench on broader questions of religious freedom, without staying the judgment.)

Relevance to the Topic: A leading modern case on the essential religious practices test and gender equality.

Important Points

- Religious freedom is subject to public order, morality, health and other fundamental rights.
- The State may regulate secular activities and carry out social reform (Art 25(2)).
- Only essential and integral practices are protected (*Durgah Committee*, 1961).
- Examples: cow sacrifice (*Quareshi*), namaz in a mosque (*Ismail Faruqui*), loudspeakers (*Church of God*), triple talaq (*Shayara Bano*), Sabarimala (2018).
- The test is criticised and is being reconsidered by a larger bench.

Remember: Courts decide whether a practice is essential by reference to the religion's own tenets.

Topic 2.35: Right to cultural and educational rights (Article 29 and 30)

Introduction

India is home to many religious and linguistic minorities. To make them feel secure and to protect their identity, the Constitution guarantees **cultural and educational rights** in Articles 29 and 30. Article 29 protects the language, script and culture of any section of citizens and prohibits discrimination in admission to State institutions. Article 30 gives minorities the right to establish and administer their own educational institutions.

Definition

> **Article 29(1):** "Any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same."

> **Article 29(2):** "No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them."

> **Article 30(1):** "All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice."

Detailed Explanation

1. Article 29

1. **29(1):** applies to any section of citizens (not only minorities) with a distinct language, script or culture; they can conserve it.
2. **29(2):** prohibits denial of admission to State-maintained or aided institutions on grounds of religion, race, caste or language. It is an individual right of citizens.

2. Article 30

1. **30(1):** minorities (religious or linguistic) have the right to establish and administer educational institutions of their choice.
2. **30(1A):** if the State acquires the property of a minority institution, the compensation must not restrict or abrogate the right under 30(1) (44th Amendment, 1978).
3. **30(2):** the State shall not discriminate against minority institutions in granting aid.

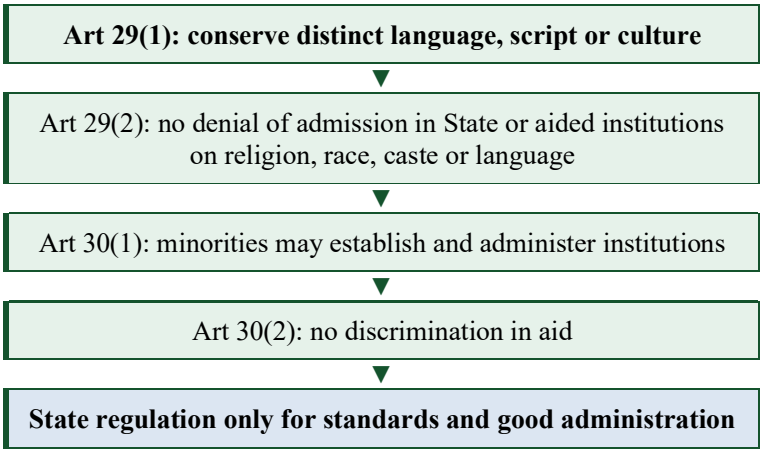
3. Article 29 and Article 30 Compared

Point	Article 29	Article 30
Beneficiaries	Any section of citizens with distinct language, script or culture	Religious and linguistic minorities
Right	To conserve language, script and culture; non-discrimination in admissions	To establish and administer educational institutions
Nature	Cultural and individual	Educational and collective

4. Key Principles

1. **Minority status is determined State-wise** (*T.M.A. Pai*, 2002).
2. The right to administer includes the right to admit students, appoint staff, fix fees and take disciplinary action, but not the right to maladminister (*St. Xavier's College*, 1974).
3. The State can make regulations in the interest of educational standards, discipline and health, but these must not destroy the minority character.
4. Aided minority institutions must admit a reasonable number of non-minority students (*T.M.A. Pai*).

Flowchart: Cultural and educational rights



Examples

- A Telugu-speaking group in Karnataka (a linguistic minority there) can establish a Telugu-medium school under Art 30(1).
- A State-aided college refuses admission to a student because of his caste. This violates Art 29(2).

Case Laws

Case Law: In re Kerala Education Bill, 1957

Year: 1958 **Court:** Supreme Court of India (Advisory opinion under Article 143)

Facts / Background: The Kerala Education Bill, 1957 sought to regulate aided schools, including minority schools, in matters such as appointment of teachers, fees and management. The President referred to the Supreme Court whether the Bill violated Article 30(1).

Legal Issue: What is the scope of the right of minorities under Article 30(1), and can the State regulate aided minority institutions?

Court's Decision / What the Court Held: The Court advised that the right under Article 30(1) is not absolute. The State may impose reasonable regulations to ensure the excellence of education (e.g. qualifications of teachers, standards of instruction) as a condition of aid or recognition. But regulations that destroy the minority character or take away the right to administer would be invalid. Certain clauses of the Bill (such as those enabling the Government to take over management) were held to violate Article 30(1).

Relevance to the Topic: The case laid the foundation of the law on minority educational rights.

Important Points

- Art 29(1): conservation of language, script and culture by any section of citizens.
- Art 29(2): no denial of admission to State or aided institutions on prohibited grounds.
- Art 30(1): minorities can establish and administer educational institutions.
- Art 30(1A): protection on compulsory acquisition; Art 30(2): no discrimination in aid.
- *In re Kerala Education Bill* (1958): reasonable regulations permitted; minority character must not be destroyed.

Remember: Art 30 applies to both religious and linguistic minorities.

Topic 2.36: Rights of the minorities

Introduction

Minorities in a democracy may fear domination by the majority. The Constitution addresses this by guaranteeing special rights to religious and linguistic minorities, mainly in Articles 29 and 30, and in other provisions such as Articles 350A and 350B. The courts have developed detailed principles on who is a minority and what rights minority educational institutions have.

Definition

> **Minority:** the Constitution does not define the term. In general, a minority is a group that is numerically smaller and non-dominant in a State, and has a distinct religion or language. Under Article 30, minorities are religious or linguistic minorities, determined State-wise.

Detailed Explanation

1. Who Is a Minority?

1. **State-wise determination:** religious and linguistic minorities are determined with reference to the State, not the whole of India (*T.M.A. Pai Foundation v State of Karnataka*, 2002).
2. **National Commission for Minorities Act, 1992:** the Central Government has notified six communities as minorities at the national level: Muslims, Christians, Sikhs, Buddhists, Parsis and Jains (Jains added in 2014).

2. Constitutional Rights of Minorities

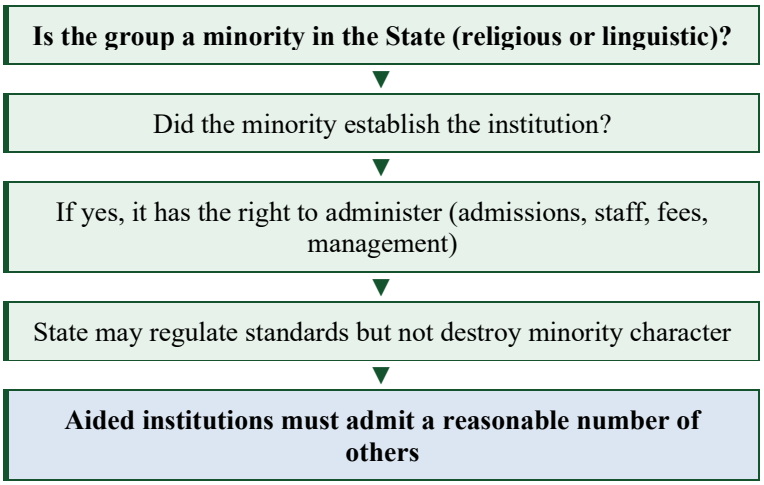
Article	Right
29	Conservation of language, script and culture; non-discrimination in admissions
30(1)	Right to establish and administer educational institutions
30(1A)	Compensation on acquisition not to abrogate the right
30(2)	Non-discrimination in State aid
350A	Instruction in the mother tongue at the primary stage for linguistic minorities
350B	Special Officer for linguistic minorities
347	Recognition of a language spoken by a substantial section of a State's population

3. Principles of Minority Educational Rights

1. **Right to establish and administer:** includes admission of students, reasonable fee structure, appointment of staff, disciplinary action, and choice of governing body (*St. Xavier's College v State of Gujarat*, 1974).

2. **No right to maladminister:** the State can regulate for standards of education, qualifications of teachers, health, hygiene and discipline.
3. **Unaided minority institutions:** have maximum autonomy (*T.M.A. Pai*, 2002; *P.A. Inamdar*, 2005).
4. **Aided minority institutions:** must follow regulations attached to aid and admit a reasonable number of non-minority students (Art 29(2)).
5. **Reservation:** the State cannot impose reservation on unaided minority institutions; Art 15(5) excludes minority institutions.
6. **RTE Act:** does not apply to minority schools (*Pramati*, 2014).
7. **Minority character:** depends on who established the institution; an institution established by a minority does not lose its minority character merely because it is incorporated by a statute (*AMU v Naresh Agarwal*, 2024).

Flowchart: Scope of minority educational rights



Examples

- A Christian society in Andhra Pradesh establishes an engineering college. It can admit students of its choice, subject to merit-based and transparent procedures, and can appoint its own teachers who meet prescribed qualifications.
- A State law directs all minority schools to follow a Government-appointed manager. This violates Art 30(1).

Case Laws

Case Law: T.M.A. Pai Foundation v State of Karnataka

Year: 2002 **Court:** Supreme Court of India (eleven-judge bench)

Facts / Background: The case arose from many petitions by private and minority educational institutions challenging State regulation of admissions and fees, and the scheme framed in *Unni Krishnan* (1993).

Legal Issue: (i) How are minorities to be determined? (ii) What is the scope of the rights of minority educational institutions under Article 30? (iii) To what extent can the State regulate private and minority institutions?

Court's Decision / What the Court Held: The Court held that (i) religious and linguistic minorities are to be determined State-wise; (ii) the right to administer includes the right to admit students, set up a reasonable fee structure, constitute a governing body, appoint staff and take disciplinary action; (iii) the State can regulate for maintaining academic standards and preventing maladministration, but cannot interfere in day-to-day administration; (iv) unaided minority institutions have greater autonomy; aided minority institutions must admit a reasonable number of non-minority students; (v) the *Unni Krishnan* scheme was overruled. The establishment of educational institutions is also an "occupation" under Article 19(1)(g).

Relevance to the Topic: The leading case on the rights of minorities in education.

Case Law: Aligarh Muslim University v Naresh Agarwal

Year: 2024 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: In *S. Azeez Basha v Union of India* (1967), the Supreme Court held that Aligarh Muslim University was not a minority institution because it was established by an Act of Parliament (the AMU Act, 1920), not by the Muslim community. The question of AMU's minority status was referred to a larger bench.

Legal Issue: What is the test for determining whether an educational institution was "established" by a minority, and does incorporation by a statute take away minority status?

Court's Decision / What the Court Held: By a 4:3 majority, the Court overruled *Azeez Basha*. It held that an institution does not lose its minority character merely because it was incorporated by a statute. The court must look at the genesis of the institution, who conceived the idea, who took steps to establish it, and who provided the funds and land, to decide whether it was established by a minority. The actual determination of AMU's minority status was left to a regular bench applying these tests.

Relevance to the Topic: The case lays down the current test for minority status under Article 30.

Important Points

- Minorities are religious or linguistic and are determined State-wise (*T.M.A. Pai*, 2002).

- Six communities are notified as national minorities.
- Minority institutions can administer their affairs but cannot maladminister.
- Unaided minority institutions have greater autonomy; aided ones must admit a reasonable number of others.
- Incorporation by statute does not take away minority character (*AMU v Naresh Agarwal*, 2024).

Remember: Minority rights are a shield to protect identity, not a sword to escape regulation for standards.

Topic 2.37: Right to Property (Article 19(1)(f), Article 31 and Article 300 (Constitutional policy before and after the 44th Amendment)

Introduction

The right to property was originally a fundamental right under Articles 19(1)(f) and 31. But it came into conflict with the State's programmes for land reform and nationalisation. After many amendments and judicial battles, the 44th Amendment (1978) removed it from Part III and made it a constitutional right under **Article 300A** (the syllabus refers to "Article 300"; the relevant provision is Article 300A). This topic explains the constitutional policy before and after the 44th Amendment.

Definition

> **Article 300A:** "No person shall be deprived of his property save by authority of law."

Detailed Explanation

1. Position before the 44th Amendment

1. **Art 19(1)(f):** citizens had the right to acquire, hold and dispose of property, subject to reasonable restrictions (Art 19(5)).
2. **Art 31(1):** no person shall be deprived of his property save by authority of law.
3. **Art 31(2):** property could be compulsorily acquired only for a public purpose and on payment of compensation.

2. The Conflict between Property and Land Reform

Development	Effect
Kameshwar Singh cases (1951–52)	Land reform laws challenged
1st Amendment (1951)	Arts 31A and 31B and the Ninth Schedule inserted to protect land reform laws
4th Amendment (1955)	Adequacy of compensation made non-justiciable
Golaknath v State of Punjab (1967)	Parliament cannot amend fundamental rights, including the right to property
R.C. Cooper (1970)	Bank nationalisation law struck down for inadequate compensation principles
24th and 25th Amendments (1971)	"Compensation" replaced by "amount"; Art 31C inserted
Kesavananda Bharati (1973)	Right to property is not part of the basic structure; Parliament can amend it
44th Amendment (1978)	Arts 19(1)(f) and 31 deleted; Art 300A inserted

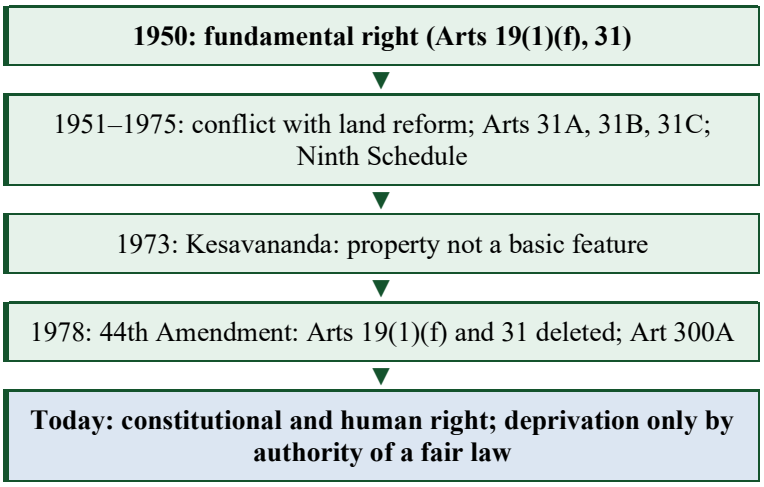
3. Position after the 44th Amendment

1. The right to property is no longer a fundamental right; it is a **constitutional right** under Art 300A.
2. A person can be deprived of property only by **authority of law** (a valid statute), not by executive action alone.
3. Violation of Art 300A cannot be challenged under Art 32 (since it is not a fundamental right), but can be challenged under Art 226 and by civil suit.
4. **Compensation** is not expressly required by Art 300A, but courts have held that the law must be just, fair and reasonable (*K.T. Plantation*, 2011).
5. The right to property is regarded as a **human right** (*Vidya Devi v State of HP*, 2020).
6. **Exceptions where compensation is still required:** Art 30(1A) (minority institutions) and the second proviso to Art 31A(1) (land within the ceiling limit under personal cultivation must be compensated at market value).
7. **Statutory framework:** Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

4. Article 39(b) and Private Property

In *Property Owners Association v State of Maharashtra* (2024), a nine-judge bench held that not all privately owned resources are "material resources of the community" under Art 39(b); only those with certain characteristics (such as scarcity and impact on community well-being) can be treated as such.

Flowchart: Constitutional policy on property



Examples

- A State acquires land for a highway under the RFCTLARR Act, 2013 and pays compensation. This is a deprivation by authority of law and is valid.

- A district collector takes possession of a farmer's land without any law authorising it. This violates Art 300A.

Case Laws

Case Law: K.T. Plantation Pvt. Ltd. v State of Karnataka

Year: 2011 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Roerich and Devika Rani Roerich Estate (Acquisition and Transfer) Act, 1996 provided for acquisition of a large estate for a public purpose, with an amount of compensation that the owners considered inadequate. The Act was challenged under Article 300A.

Legal Issue: Does Article 300A require the payment of compensation, and what are the limits on the State's power to deprive a person of property?

Court's Decision / What the Court Held: The Court held that Article 300A requires that deprivation be by a valid law; the law must be for a public purpose; and although Article 300A does not expressly mention compensation, the requirement of public purpose and compensation is inherent in the power of eminent domain. The law must be just, fair and reasonable; the amount of compensation, though not justiciable as "adequate", cannot be illusory. The Act was upheld.

Relevance to the Topic: The leading case on the scope of Article 300A.

Case Law: Vidya Devi v State of Himachal Pradesh

Year: 2020 **Court:** Supreme Court of India

Facts / Background: In 1967–68, the State of Himachal Pradesh took the land of Vidya Devi, an illiterate widow, for the construction of a road, without following any acquisition procedure or paying compensation. She approached the court decades later.

Legal Issue: Can the State take possession of private land without following the procedure established by law, and is the right to property a human right?

Court's Decision / What the Court Held: The Court held that the State had violated Article 300A by forcibly dispossessing her without following due process. The right to property is not only a constitutional right but also a human right. The State cannot take advantage of the delay; it was directed to pay compensation with interest and costs as if the land had been acquired under the law.

Relevance to the Topic: The case shows that the right to property, though not a fundamental right, is a strong constitutional and human right.

Important Points

- Originally, property was a fundamental right (Arts 19(1)(f), 31).
- The 44th Amendment (1978) deleted these and inserted Art 300A.
- Art 300A: no deprivation except by authority of law.
- Not enforceable under Art 32, but under Art 226 and by suit.
- *K.T. Plantation* (2011): law must be just, fair and reasonable; compensation cannot be illusory.
- *Vidya Devi* (2020): right to property is a human right.

Remember: The right to property is a constitutional right, not a fundamental right, since 1978.

Topic 2.38: Right to Constitutional Remedies (Article 32 and 226)

Introduction

Rights are meaningful only if they can be enforced. The Constitution provides a direct remedy for violation of fundamental rights: a person can approach the Supreme Court under Article 32, which is itself a fundamental right, or the High Court under Article 226. Dr. Ambedkar called Article 32 "the very soul of the Constitution and the very heart of it". These provisions make the courts the guardians of fundamental rights.

Definition

> **Article 32(1):** "The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed."

> **Article 226(1) (in part):** "...every High Court shall have power... to issue to any person or authority, including in appropriate cases, any Government, within those territories directions, orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, or any of them, for the enforcement of any of the rights conferred by Part III and for any other purpose."

Detailed Explanation

1. Article 32

1. **32(1):** the right to move the Supreme Court for enforcement of fundamental rights is guaranteed; it is itself a fundamental right.
2. **32(2):** the Supreme Court can issue directions, orders or writs (habeas corpus, mandamus, prohibition, quo warranto and certiorari).
3. **32(3):** Parliament may empower any other court to exercise these powers within its local limits.
4. **32(4):** this right shall not be suspended except as provided by the Constitution (i.e. Art 359 during an Emergency).

2. Article 226

1. High Courts can issue writs for enforcement of fundamental rights and "for any other purpose" (legal rights).
2. Jurisdiction over persons and authorities within their territories, or where the cause of action arises (Art 226(2)).
3. Interim orders are subject to conditions in Art 226(3).
4. Art 227: power of superintendence over subordinate courts and tribunals.

3. Comparison of Articles 32 and 226

Point	Article 32	Article 226
Court	Supreme Court	High Court
Scope	Only fundamental rights	Fundamental rights and other legal rights ("any other purpose")
Nature	Itself a fundamental right	Discretionary constitutional power
Territorial reach	Whole of India	Within the territory of the High Court (or where cause of action arises)
Suspension	Can be suspended during Emergency (Art 359)	Not suspended as such, but enforcement of fundamental rights may be

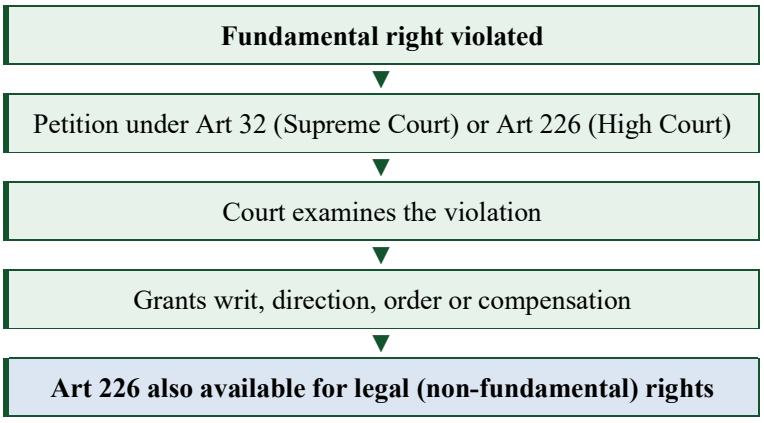
4. Remedies Available

1. Writs (habeas corpus, mandamus, prohibition, certiorari, quo warranto) (Topic 2.39).
2. Directions and guidelines (e.g. *Vishaka*, *D.K. Basu*).
3. **Compensation** for violation of fundamental rights (*Rudul Sah*, 1983; *Nilabati Behera*, 1993).
4. Continuing mandamus (monitoring implementation).

5. Significance

1. Makes fundamental rights real and enforceable.
2. Judicial review under Arts 32 and 226 is part of the basic structure (*L. Chandra Kumar*, 1997).
3. Basis for PIL and access to justice for the poor.

Flowchart: Approaching the court for a constitutional remedy



Examples

- A person illegally detained by the police can file a habeas corpus petition directly in the Supreme Court under Art 32 or in the High Court under Art 226.

- A student denied a scholarship due under a Government scheme (a legal right, not a fundamental right) can approach the High Court under Art 226.

Case Laws

Case Law: Romesh Thappar v State of Madras

Year: 1950 **Court:** Supreme Court of India

Facts / Background: The Madras Government, under the Madras Maintenance of Public Order Act, 1949, banned the entry and circulation in Madras of "Cross Roads", a journal published by Romesh Thappar. He directly approached the Supreme Court under Article 32. The State argued that he should first approach the High Court under Article 226.

Legal Issue: Must a person first approach the High Court before moving the Supreme Court under Article 32?

Court's Decision / What the Court Held: The Court held that Article 32 itself is a fundamental right, and the Supreme Court is the protector and guarantor of fundamental rights. It cannot refuse to entertain a petition under Article 32 merely because the petitioner could have approached the High Court. On merits, the ban was struck down as violating Article 19(1)(a), since "public safety" and "public order" (as then worded) did not fall within the then Article 19(2).

Relevance to the Topic: The case establishes the status of Article 32 as a fundamental right and the Supreme Court as the guarantor of fundamental rights.

Case Law: Rudul Sah v State of Bihar

Year: 1983 **Court:** Supreme Court of India

Facts / Background: Rudul Sah was acquitted by a Sessions Court in 1968, but he remained in jail for 14 more years, being released only in 1982. He filed a habeas corpus petition and claimed compensation.

Legal Issue: Can the Supreme Court award monetary compensation under Article 32 for violation of the fundamental right to personal liberty?

Court's Decision / What the Court Held: The Court held that it can award compensation under Article 32 as a remedy for violation of fundamental rights. Releasing the petitioner would be "lip service" to his right to liberty if no compensation was given. The State was ordered to pay Rs. 30,000 as interim compensation, without prejudice to his right to sue for damages.

Relevance to the Topic: The case established compensation as a public law remedy for violation of fundamental rights.

Important Points

- Art 32 is itself a fundamental right; Art 226 is wider (any other purpose).
- The Supreme Court is the guarantor of fundamental rights (*Romesh Thappar*, 1950).
- Courts can award compensation for violation of fundamental rights (*Rudul Sah*, 1983).
- Judicial review under Arts 32 and 226 is part of the basic structure (*L. Chandra Kumar*, 1997).

Remember: Ambedkar called Art 32 "the very soul of the Constitution and the very heart of it".

Topic 2.39: Writ jurisdiction – meaning, nature, significance and kinds of writs

Introduction

A writ is a formal written order issued by a court commanding a person or authority to do or not to do something. The Constitution empowers the Supreme Court (Art 32) and High Courts (Art 226) to issue writs in the nature of habeas corpus, mandamus, prohibition, certiorari and quo warranto. These writs originated in English law as "prerogative writs" and are now powerful tools for protecting rights and controlling State action in India.

Definition

A **writ** is a written order issued by a superior court in the name of the State, directing a person or authority to perform or refrain from performing a specified act. **Writ jurisdiction** is the power of the Supreme Court and High Courts to issue such writs under Articles 32 and 226.

Detailed Explanation

1. Nature of Writ Jurisdiction

1. **Extraordinary and discretionary** (especially under Art 226).
2. **Summary** in nature; usually decided on affidavits.
3. **Public law remedy:** mainly against the State and public authorities (habeas corpus also against private persons).
4. **Alternative remedy:** courts may decline where an effective alternative remedy exists, except in cases of violation of fundamental rights, violation of natural justice, or action without jurisdiction (*Whirlpool Corporation v Registrar of Trade Marks*, 1998).
5. **Laches:** unreasonable delay may lead to refusal.

2. The Five Writs

Writ	Meaning	Purpose	Against whom	Key case
Habeas corpus	"You may have the body"	Release from unlawful detention	State and private persons	*Kanu Sanyal v District Magistrate* (1974); *Sunil Batra* (1980)
Mandamus	"We command"	Compel a public authority to perform a public duty	Public authorities (not the President/Governor personally, not private persons, generally not legislature)	*Mani Subrat Jain v State of Haryana* (1977)

Writ	Meaning	Purpose	Against whom	Key case
Prohibition	"To forbid"	Prevent an inferior court or tribunal from exceeding jurisdiction (preventive, before final decision)	Judicial and quasi-judicial bodies	*East India Commercial Co. v Collector of Customs* (1962)
Certiorari	"To be certified"	Quash an order already made without or in excess of jurisdiction, in violation of natural justice, or with an error apparent on the face of the record (corrective)	Judicial, quasi-judicial and administrative bodies	*T.C. Basappa v T. Nagappa* (1954); *Hari Vishnu Kamath* (1955)
Quo warranto	"By what authority"	Remove a person from a public office he holds without legal authority	Holders of public offices created by statute or Constitution	*University of Mysore v C.D. Govinda Rao* (1964)

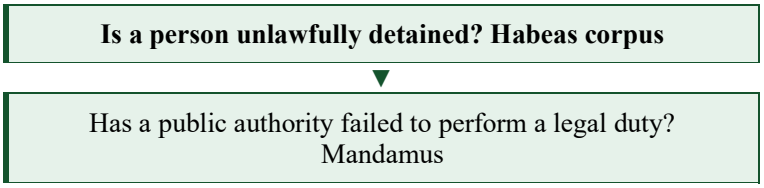
3. Conditions for Each Writ (Key Points)

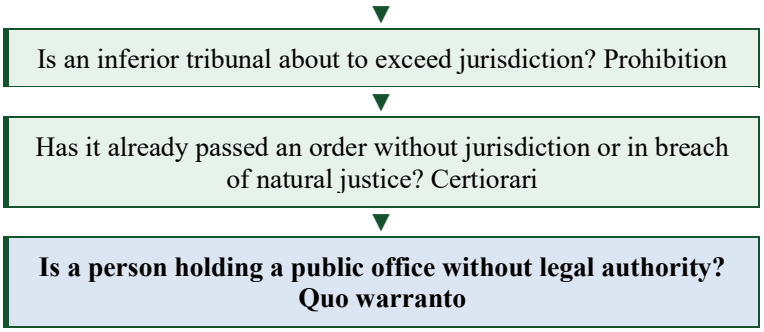
1. **Habeas corpus:** the detention must be illegal; any person can file on behalf of the detenu; not available against detention by a competent court's order.
2. **Mandamus:** the petitioner must have a legal right, and the authority must have a legal duty to act; not issued to enforce a private contract.
3. **Prohibition and certiorari:** issued for lack or excess of jurisdiction, violation of natural justice, fraud, or (for certiorari) an error of law apparent on the face of the record.
4. **Quo warranto:** the office must be public and substantive, created by statute or the Constitution; the holder must be in actual possession of it; any person can apply (no personal interest required).

4. Significance

1. Protects personal liberty (habeas corpus).
2. Ensures that public authorities perform their duties (mandamus).
3. Keeps inferior courts and tribunals within their jurisdiction (prohibition, certiorari).
4. Prevents usurpation of public offices (quo warranto).
5. Basis of judicial review of administrative action.

Flowchart: Choosing the correct writ





Examples

- A municipal corporation refuses to issue a building permit even though all conditions are met. The applicant can seek a writ of mandamus.
- A person who does not have the required qualifications is appointed as a university Registrar. Any person can seek a writ of quo warranto.

Case Laws

Case Law: Hari Vishnu Kamath v Syed Ahmad Ishaque

Year: 1955 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: In an election to the Lok Sabha, some ballot papers that did not bear the required official mark were counted. The Election Tribunal declared the respondent elected. The appellant approached the High Court under Article 226 for writs of certiorari and prohibition, but the High Court dismissed the petition, holding (among other things) that the tribunal had become functus officio after deciding.

Legal Issue: What is the scope of the writs of certiorari and prohibition, and can they be issued when the tribunal has already decided and ceased to exist?

Court's Decision / What the Court Held: The Court held that certiorari can be issued to correct errors of jurisdiction, violation of natural justice, and errors of law apparent on the face of the record, but not mere errors of fact. Where a tribunal has given a decision, certiorari can be issued to quash it, and the court can issue both certiorari and prohibition together to quash the decision and prevent further action. The tribunal had committed an error apparent on the face of the record in counting invalid ballot papers. The decision was quashed.

Relevance to the Topic: The leading case on the scope of certiorari and prohibition.

Case Law: University of Mysore v C.D. Govinda Rao

Year: 1964 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: C.D. Govinda Rao challenged the appointment of a person as Research Reader in English at the University of Mysore, arguing that he did not possess the required qualifications. The High Court issued a writ of quo warranto.

Legal Issue: What are the conditions for issuing a writ of quo warranto?

Court's Decision / What the Court Held: The Supreme Court held that quo warranto lies to inquire whether a person holding a public office holds it by legal authority. The office must be a public office created by statute or the Constitution, and the holder must not be legally qualified or properly appointed. In this case, the Court found that the appointment was made by the expert Selection Board, and the High Court had wrongly interfered with the Board's assessment. The writ was set aside.

Relevance to the Topic: The leading case on the writ of quo warranto.

Important Points

- Writs are issued by the Supreme Court (Art 32) and High Courts (Art 226).
- Five writs: habeas corpus, mandamus, prohibition, certiorari and quo warranto.
- Prohibition is preventive; certiorari is corrective (*Hari Vishnu Kamath*, 1955).
- Quo warranto tests the legal authority of a public office holder (*C.D. Govinda Rao*, 1964).
- Writ jurisdiction is discretionary; alternative remedy is not an absolute bar.

Remember: Habeas corpus can be issued against private persons; mandamus generally cannot.

Topic 2.40: Locus standi and Public Interest Litigation

Introduction

Traditionally, only a person whose own legal right was violated could approach a court; this is the rule of **locus standi** (standing). This rule made justice inaccessible to the poor, illiterate and marginalised, who could not approach courts on their own. From the late 1970s, the Supreme Court relaxed the rule and allowed public-spirited persons to file cases on behalf of such persons. This gave birth to **Public Interest Litigation (PIL)**, one of the most significant contributions of the Indian judiciary.

Definition

> **Locus standi** is the right of a person to bring an action before a court, which traditionally requires that he has suffered a legal injury.

> **Public Interest Litigation (PIL)** is litigation filed by any public-spirited person or organisation, in the interest of the public or a section of the public, for the enforcement of the rights of persons who cannot approach the court themselves because of poverty, disability or other reasons.

Detailed Explanation

1. Traditional Rule of Locus Standi

1. Only the person aggrieved (whose legal right is violated) could file a petition.
2. Exceptions: habeas corpus (any person could file on behalf of the detenu) and quo warranto (any person could file).

2. Relaxation of Locus Standi

1. **Representative standing:** a public-spirited person can file on behalf of those who cannot approach the court (e.g. bonded labourers, prisoners, children).
2. **Citizen standing:** any citizen can approach the court where there is a public injury (e.g. violation of the rule of law, environmental damage).
3. **Epistolary jurisdiction:** letters and postcards addressed to the court have been treated as writ petitions (e.g. *Sunil Batra II*, 1980; *D.K. Basu*, 1997).

3. Features of PIL

1. Non-adversarial: the court and parties cooperate to solve a public problem.
2. Relaxed procedure: letters, newspaper reports, suo motu action.
3. Court-appointed commissions to gather facts.
4. Wide remedies: guidelines, continuing mandamus, compensation.

5. Pioneered by Justices P.N. Bhagwati and V.R. Krishna Iyer.

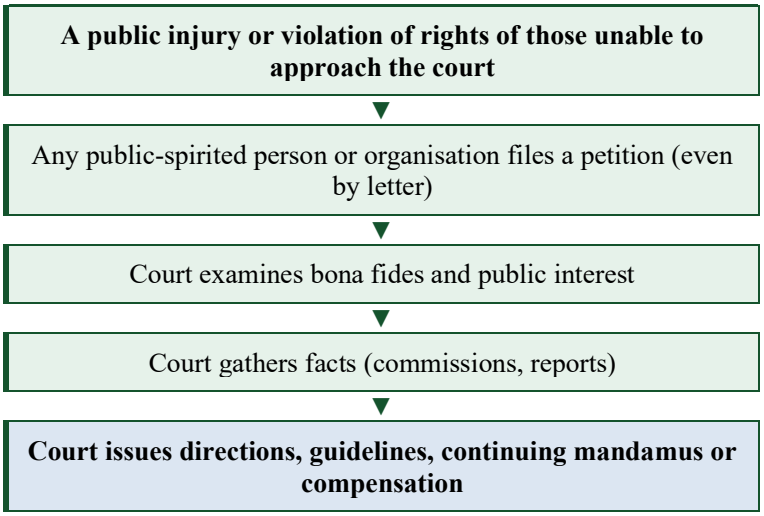
4. Important PILs

Case	Subject
Hussainara Khatoon v State of Bihar (1979)	Undertrial prisoners; right to speedy trial
S.P. Gupta v Union of India (1981)	Judges' transfer; liberalised locus standi
PUDR v Union of India (1982)	Minimum wages for Asiad workers
Bandhua Mukti Morcha (1984)	Bonded labour
M.C. Mehta v Union of India (1987)	Oleum gas leak; absolute liability
Vishaka v State of Rajasthan (1997)	Sexual harassment at the workplace
Vineet Narain v Union of India (1998)	Independence of CBI investigation

5. Misuse and Safeguards

1. PILs have sometimes been misused for publicity, private interest or political purposes ("publicity interest litigation", "paise income litigation").
2. Courts now check the credentials of the petitioner, the bona fides of the petition, and whether a substantial public interest is involved. Frivolous PILs are dismissed with costs.

Flowchart: How PIL works



Examples

- A lawyer files a PIL about the lack of toilets and drinking water in Government schools. The court can issue directions to the State.
- A person files a PIL to settle a private property dispute in the name of public interest. The court will dismiss it, possibly with costs.

Case Laws

Case Law: S.P. Gupta v Union of India (Judges' Transfer Case)

Year: 1981 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: Lawyers filed petitions challenging the Government's circular on transfer of High Court judges and the non-extension of the terms of certain additional judges, arguing that it affected the independence of the judiciary. The Government objected that the lawyers had no locus standi, as they were not personally aggrieved.

Legal Issue: Can lawyers or members of the public who are not personally aggrieved approach the court for the enforcement of public duties?

Court's Decision / What the Court Held: The Court (Bhagwati J.) held that where a legal wrong or legal injury is caused to a person or a determinate class of persons who, because of poverty, helplessness or disability, cannot approach the court, any member of the public can approach the court for relief. Further, where there is a public injury arising from the breach of a public duty, any member of the public having sufficient interest can maintain an action. The lawyers had locus standi. (On the merits relating to appointments, this case was later overruled in the Second Judges case, 1993.)

Relevance to the Topic: The leading case on the liberalisation of locus standi and the foundation of PIL.

Case Law: State of Uttaranchal v Balwant Singh Chaufal

Year: 2010 **Court:** Supreme Court of India

Facts / Background: A PIL challenged the appointment of the Advocate General of Uttarakhand on the ground that he was over the age limit. The High Court entertained it. On appeal, the Supreme Court considered the growing misuse of PIL.

Legal Issue: What guidelines should courts follow to prevent misuse of PIL?

Court's Decision / What the Court Held: The Court traced the history of PIL in three phases and laid down guidelines: courts should encourage genuine PILs and discourage frivolous ones; they should verify the credentials of the petitioner and the correctness of the contents; they should ensure that substantial public interest is involved; they should ensure that the petition is not aimed at personal gain or private motive; and they should impose exemplary costs on frivolous petitions. On merits, it held that there is no age limit for appointment as Advocate General.

Relevance to the Topic: The case lays down guidelines to prevent abuse of PIL.

Important Points

- Traditionally, only an aggrieved person had locus standi.
- PIL relaxed locus standi for the benefit of the poor and disadvantaged (*S.P. Gupta*, 1981).
- Letters and postcards can be treated as petitions (epistolary jurisdiction).
- Courts must prevent misuse of PIL (*Balwant Singh Chaufal*, 2010).

Remember: PIL is a powerful tool, but it must be used for genuine public interest.

Topic 2.41: Limitations on Fundamental rights

Introduction

Fundamental rights are not absolute. They must be balanced against the needs of society, the security of the State and the rights of others. The Constitution itself contains many limitations: reasonable restrictions on freedoms, special provisions for weaker sections, restrictions for the armed forces, emergency provisions, and protection of certain laws from challenge. Parliament can also amend fundamental rights, subject to the basic structure.

Definition

> **Limitations on fundamental rights** are the restrictions, exceptions and qualifications, contained in the Constitution or permitted by it, that allow the State to curtail or regulate fundamental rights in the interest of the public, the security of the State, social justice and the rights of others.

Detailed Explanation

1. Limitations within the Rights Themselves

Limitation	Provision
Reasonable restrictions on the six freedoms	Art 19(2)–(6)
Public order, morality, health on religious freedom	Arts 25, 26
Special provisions for women, children, backward classes, SCs/STs, EWS	Arts 15(3)–(6), 16(4)–(6)
Compulsory public service	Art 23(2)
Preventive detention	Art 22(3)–(7)
Procedure established by law (fair, just and reasonable)	Art 21

2. Special Limitations

1. **Art 31A:** saving of laws for acquisition of estates, State management of property, amalgamation of companies, etc., from challenge under Arts 14 and 19.
2. **Art 31B and the Ninth Schedule:** laws placed in the Ninth Schedule are protected from challenge for violating fundamental rights, but laws added after 24 April 1973 can be tested against the basic structure (*I.R. Coelho*, 2007).
3. **Art 31C:** laws giving effect to Art 39(b) and (c) cannot be challenged under Arts 14 and 19 (the extension to all DPSPs by the 42nd Amendment was struck down in *Minerva Mills*, 1980).

4. **Art 33:** Parliament may restrict or abrogate fundamental rights of members of the armed forces, police, intelligence agencies and similar forces, to ensure discipline and the proper discharge of duties.
5. **Art 34:** restrictions on fundamental rights while martial law is in force in any area; Parliament may indemnify officers.
6. **Art 35:** Parliament (not State legislatures) has the power to make laws for certain matters in Part III, e.g. offences under Arts 17 and 23.

3. Emergency Limitations

1. **Art 358:** Art 19 is suspended automatically during a National Emergency declared on the ground of war or external aggression.
2. **Art 359:** the President may suspend the right to move courts for enforcement of specified fundamental rights, except Arts 20 and 21.

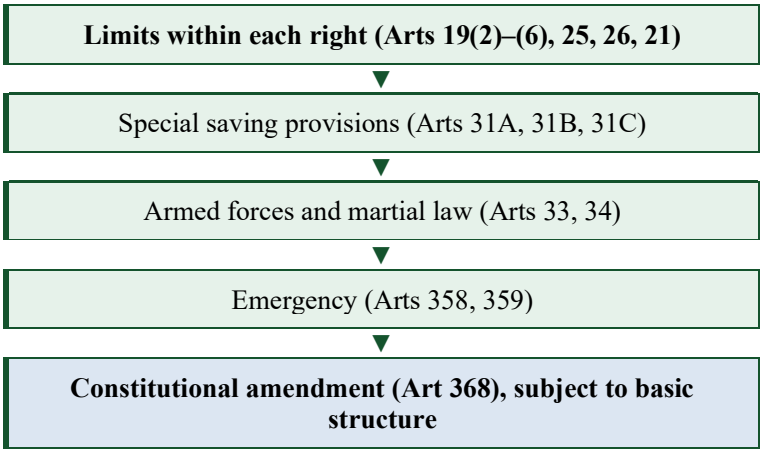
4. Amendment of Fundamental Rights

1. Parliament can amend fundamental rights under Art 368 (*Kesavananda Bharati*, 1973, overruling *Golaknath*, 1967).
2. But amendments cannot destroy the basic structure, including the essence of Arts 14, 19 and 21 (*Minerva Mills*, 1980; *I.R. Coelho*, 2007).

5. Judicial Tests for Limitations

1. Reasonableness and proportionality.
2. Non-arbitrariness (Art 14).
3. Fair, just and reasonable procedure (Art 21).
4. Basic structure test for amendments.

Flowchart: Sources of limitations on fundamental rights



Examples

- Members of the armed forces cannot form trade unions, as Parliament has restricted their right to form associations under Art 33.
- A land reform law protected by Art 31A cannot be challenged under Art 14 on the ground of unequal treatment of landowners.

Case Laws

Case Law: Waman Rao v Union of India

Year: 1981 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Maharashtra Agricultural Lands (Ceiling on Holdings) Act, 1961 and its amendments, placed in the Ninth Schedule, were challenged. The petitioners also challenged Articles 31A, 31B and 31C as violating the basic structure.

Legal Issue: Are Articles 31A, 31B and 31C valid, and are laws placed in the Ninth Schedule immune from challenge?

Court's Decision / What the Court Held: The Court upheld Article 31A and the unamended Article 31C as not violating the basic structure. It held that amendments to the Constitution made on or after 24 April 1973 (the date of *Kesavananda Bharati*), including additions to the Ninth Schedule, are open to challenge on the ground that they damage the basic structure; laws added to the Ninth Schedule before that date are protected.

Relevance to the Topic: The case explains the limits of the protection given by Articles 31A, 31B and 31C and introduced the 24 April 1973 cut-off date, later developed in *I.R. Coelho* (2007).

Important Points

- Fundamental rights are not absolute; the Constitution itself limits them.
- Reasonable restrictions (Art 19), special provisions (Arts 15, 16), preventive detention (Art 22).
- Arts 31A, 31B and 31C save certain laws; Ninth Schedule laws after 24 April 1973 can be reviewed (*Waman Rao*, 1981; *I.R. Coelho*, 2007).
- Art 33 (armed forces) and Art 34 (martial law).
- Emergency: Arts 358 and 359 (but not Arts 20 and 21).
- Amendments are subject to the basic structure.

Remember: Limitations must themselves be reasonable, non-arbitrary and consistent with the basic structure.

UNIT III
Directive Principles of State Policy

Topics in this Unit

3.1 Concept of Welfare State and Social Justice

3.2 Meaning, Nature, Significance, Classification and Justiciability

3.3 Directive Principles of State Policy vis-à-vis Fundamental Rights (Judicial Interpretation)

Topic 3.1: Concept of Welfare State and Social Justice

Introduction

The Indian Constitution does not aim merely at maintaining law and order. It aims at building a **welfare State**, in which the State actively works to improve the economic and social conditions of the people and ensures **social justice**, especially for the weaker sections. These ideals are expressed in the Preamble and most fully in Part IV (Directive Principles of State Policy).

Definition

> A **welfare State** is a State that takes primary responsibility for the social and economic well-being of its citizens, by providing education, health, employment, social security and a minimum standard of living, and by reducing inequality.

> **Social justice** means the removal of social, economic and political inequalities so that all persons, especially the weaker and disadvantaged sections, have equal opportunity and can live with dignity.

Detailed Explanation

1. Police State versus Welfare State

Point	Police State	Welfare State
Role of State	Maintain law and order, defence, tax collection	Also promote social and economic welfare
Approach	Laissez-faire (minimal intervention)	Active intervention
Focus	Individual liberty	Liberty plus equality and social security
Indian provisions	—	Preamble, Part IV, Part III (Arts 15(4), 17, 21A, 23, 24), Part XVI

2. Features of a Welfare State

1. Provision of education, health and housing.
2. Social security: pensions, unemployment relief, maternity benefits.
3. Labour welfare: fair wages, humane working conditions.
4. Reduction of inequality of income, wealth and opportunity.
5. Protection of weaker sections.
6. Planned economic development.

3. Constitutional Basis of the Welfare State in India

1. **Preamble:** justice, social, economic and political; equality of status and opportunity; "socialist".
2. **Art 38:** the State shall strive to promote the welfare of the people by securing a social order in which justice, social, economic and political, shall inform all institutions of national life; and shall minimise inequalities in income, status, facilities and opportunities (38(2), added by the 44th Amendment).
3. **Art 39:** adequate means of livelihood, distribution of material resources for the common good, prevention of concentration of wealth, equal pay for equal work, protection of workers and children, equal justice and free legal aid (39A).
4. **Arts 41–43A, 47:** right to work, education, public assistance, humane conditions of work, maternity relief, living wage, workers' participation in management, nutrition and public health.
5. **Art 46:** promotion of educational and economic interests of SCs, STs and weaker sections.

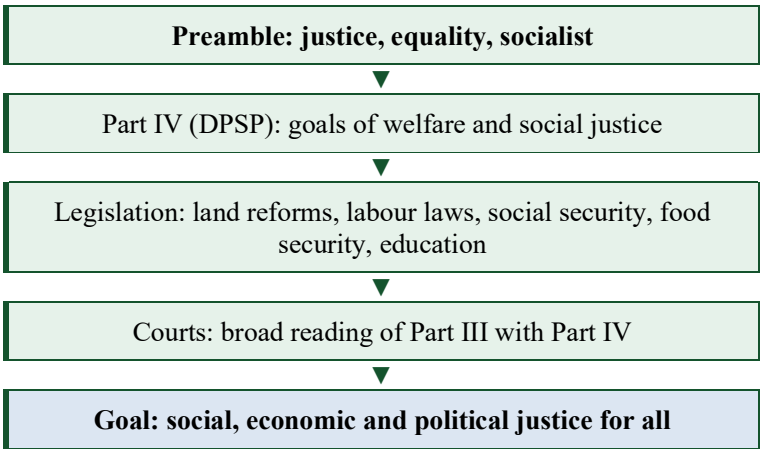
4. Dimensions of Social Justice

1. **Social justice:** abolition of caste and social discrimination (Arts 15, 17, 46).
2. **Economic justice:** fair distribution of wealth and resources; adequate livelihood (Arts 38, 39).
3. **Political justice:** equal participation in political life (universal adult franchise, Art 326).

5. Role of Courts

Courts have used the welfare State ideal to interpret fundamental rights broadly (e.g. Art 21 rights to livelihood, health, education) and to uphold welfare legislation as reasonable restrictions on property and trade.

Flowchart: Building a welfare State through the Constitution



Examples

- The National Food Security Act, 2013, which provides subsidised food grains to a large part of the population, implements Arts 39 and 47.
- The Mahatma Gandhi National Rural Employment Guarantee Act, 2005 provides employment to rural households, implementing Art 41.

Case Laws

Case Law: Air India Statutory Corporation v United Labour Union

Year: 1997 **Court:** Supreme Court of India

Facts / Background: Contract labourers working for Air India sought absorption as regular employees after the Central Government abolished contract labour in certain activities under the Contract Labour (Regulation and Abolition) Act, 1970.

Legal Issue: Are contract labourers entitled to absorption after the abolition of contract labour, and what is the role of social justice in interpreting labour laws?

Court's Decision / What the Court Held: The Court (K. Ramaswamy J. for the majority) held that the workers were entitled to absorption. It emphasised that social justice is a fundamental right and that the Constitution aims at a welfare State where labour laws must be interpreted to advance the welfare of workers. (This holding on automatic absorption was later overruled in *Steel Authority of India v National Union Waterfront Workers*, 2001, but the observations on social justice remain influential.)

Relevance to the Topic: The case illustrates how the courts have used the concept of social justice and the welfare State in interpreting the Constitution.

Important Points

- A welfare State actively promotes the social and economic well-being of its citizens.
- Social justice is the goal of the Preamble and Part IV.
- Arts 38, 39, 41–43A, 46 and 47 form the basis of the welfare State.
- Courts read Part III together with Part IV to advance welfare.

Remember: India is a welfare State, not a police State.

Topic 3.2: Meaning, Nature, Significance, Classification and Justiciability

Introduction

Part IV of the Constitution (Articles 36 to 51) contains the **Directive Principles of State Policy** (DPSP). They are guidelines to the State for making laws and policies that will create a just social and economic order. They are borrowed from the Irish Constitution (1937), which in turn was influenced by the Spanish Constitution. Unlike Fundamental Rights, they cannot be enforced by courts, but they are "fundamental in the governance of the country".

Definition

> **Article 37:** "The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws."

Detailed Explanation

1. Meaning

DPSPs are a set of principles directing the State (as defined in Art 12, through Art 36) to secure social, economic and political justice. Dr. Ambedkar described them as an "instrument of instructions" to the legislature and executive.

2. Nature

1. **Non-justiciable:** no court can enforce them directly (Art 37).
2. **Fundamental in governance:** the State has a duty to apply them in making laws.
3. **Positive obligations:** they require the State to act.
4. **Guidelines for policy:** they set long-term goals for the welfare State.
5. **Moral and political sanction:** their enforcement depends on public opinion and elections.

3. Classification of DPSPs

Category	Articles	Content
Socialistic principles	38, 39, 39A, 41, 42, 43, 43A, 47	Social order based on justice; reduction of inequality; adequate livelihood; distribution of resources; equal pay; free legal aid; right to work, education and public assistance; humane conditions of work; living wage; workers' participation; nutrition and public health
Gandhian principles	40, 43, 43B, 46, 47, 48	Village panchayats; cottage industries; co-operative societies; welfare of SCs, STs and weaker sections; prohibition of intoxicating drinks and drugs; prohibition of cow slaughter and improvement of breeds

Category	Articles	Content
Liberal-intellectual principles	44, 45, 48, 48A, 49, 50, 51	Uniform civil code; early childhood care and education; modern agriculture and animal husbandry; protection of environment, forests and wildlife; protection of monuments; separation of judiciary from executive; promotion of international peace

4. Amendments Adding DPSPs

Amendment	Addition
42nd (1976)	Art 39(f) (children), 39A (legal aid), 43A (workers' participation), 48A (environment)
44th (1978)	Art 38(2) (minimise inequalities)
86th (2002)	Art 45 substituted (early childhood care and education)
97th (2011)	Art 43B (co-operative societies)

5. Significance

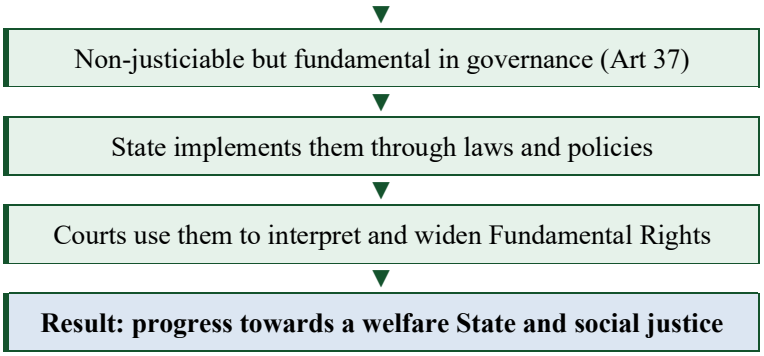
1. **Ideals of a welfare State:** they set the goals of social and economic democracy.
2. **Guide for legislation:** many laws implement DPSPs (land reforms, minimum wages, legal aid, environment protection, RTE, food security, MGNREGA).
3. **Aid to interpretation:** courts use them to interpret laws and fundamental rights.
4. **Test of reasonableness:** a restriction on fundamental rights that implements a DPSP is likely to be reasonable.
5. **Standard of evaluation:** the people can judge governments by their implementation of DPSPs.
6. **Complement Fundamental Rights:** together they form the "conscience of the Constitution" (Granville Austin).

6. Justiciability

1. DPSPs are not justiciable (Art 37); no one can file a writ to compel the State to implement them.
2. However, courts have made many DPSPs indirectly enforceable by reading them into fundamental rights, especially Art 21 (e.g. right to education, legal aid, health, environment).
3. Laws implementing Art 39(b) and (c) are protected by Art 31C from challenge under Arts 14 and 19.

Flowchart: Role of Directive Principles

Part IV sets socio-economic goals (Arts 36–51)



Examples

- The Legal Services Authorities Act, 1987 implements Art 39A (free legal aid).
- The Environment (Protection) Act, 1986 implements Art 48A.

Case Laws

Case Law: State of Madras v Champakam Dorairajan (on DPSP and justiciability)

Year: 1951 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: The Madras Government justified its Communal G.O. (reserving seats by caste and religion) by relying on Article 46, a Directive Principle (facts in Topic 2.16).

Legal Issue: Can a Directive Principle override a Fundamental Right?

Court's Decision / What the Court Held: The Court held that the Directive Principles, being expressly made unenforceable by Article 37, cannot override the provisions of Part III, which are enforceable. The Directive Principles must conform to and run as subsidiary to the Chapter on Fundamental Rights. The G.O. was struck down.

Relevance to the Topic: The case reflects the early view of the non-justiciability and subordinate position of DPSPs, which was later modified (Topic 3.3).

Important Points

- DPSPs are in Part IV (Arts 36–51), borrowed from the Irish Constitution.
- They are non-justiciable but fundamental in governance (Art 37).
- Classified as socialistic, Gandhian and liberal-intellectual.
- Added by the 42nd, 44th, 86th and 97th Amendments.
- Courts make many DPSPs indirectly enforceable through Art 21.
- Early view: DPSPs subordinate to Fundamental Rights (*Champakam Dorairajan*, 1951).

Remember: DPSPs are directions to the State, not rights of individuals enforceable in court.

Topic 3.3: Directive Principles of State Policy vis-à-vis Fundamental Rights (Judicial Interpretation)

Introduction

Fundamental Rights (Part III) protect individual liberty, while Directive Principles (Part IV) aim at social justice. Sometimes these two Parts seem to conflict: for example, land reform laws (implementing DPSPs) restricted the right to property (a Fundamental Right). How should the conflict be resolved? The Supreme Court's answer has changed over time, from the primacy of Fundamental Rights, to harmonious construction, to the view that the balance between the two Parts is part of the basic structure.

Definition

> The **relationship between Fundamental Rights and DPSPs** refers to how the courts have reconciled the justiciable rights in Part III with the non-justiciable principles in Part IV, and how far laws implementing DPSPs can restrict Fundamental Rights.

Detailed Explanation

1. Differences between Fundamental Rights and DPSPs

Point	Fundamental Rights	Directive Principles
Part	Part III (Arts 12–35)	Part IV (Arts 36–51)
Enforceability	Justiciable (Arts 32, 226)	Non-justiciable (Art 37)
Nature	Mostly negative (limits on State)	Positive (directions to State)
Aim	Political democracy, individual liberty	Social and economic democracy, welfare
Source	US Bill of Rights	Irish Constitution
Suspension	Some can be suspended during Emergency	Not applicable

2. Stages of Judicial Interpretation

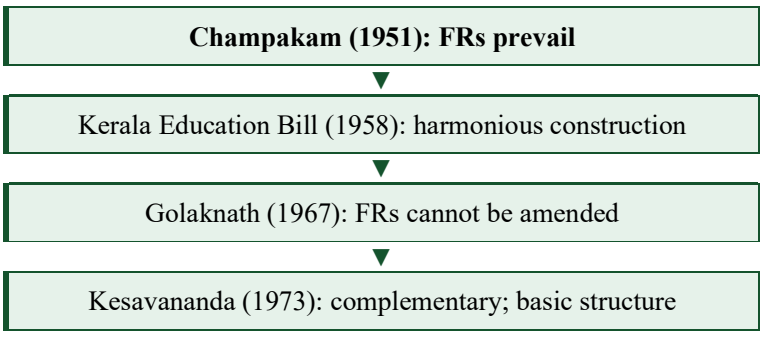
Stage	Case	View
1. Primacy of Fundamental Rights	*State of Madras v Champakam Dorairajan* (1951)	DPSPs must run subsidiary to Fundamental Rights
2. Harmonious construction	*In re Kerala Education Bill* (1958); *Mohd. Hanif Quareshi v State of Bihar* (1958)	Courts should harmonise both, giving effect to both as far as possible

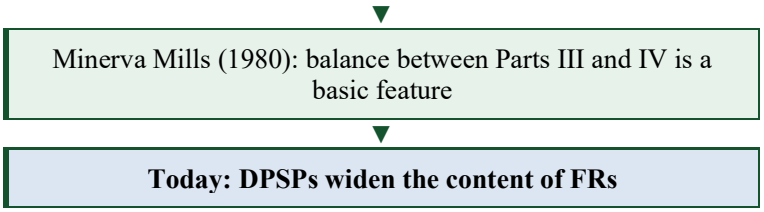
Stage	Case	View
3. Fundamental Rights cannot be amended	*Golaknath v State of Punjab* (1967)	Parliament cannot amend Fundamental Rights even to implement DPSPs
4. 25th Amendment (1971)	Art 31C inserted	Laws implementing Art 39(b) and (c) protected from challenge under Arts 14, 19, 31
5. Kesavananda Bharati (1973)	Upheld first part of Art 31C; struck down the part excluding judicial review	Fundamental Rights and DPSPs are complementary
6. 42nd Amendment (1976)	Art 31C extended to all DPSPs	Primacy to all DPSPs over Arts 14 and 19
7. Minerva Mills (1980)	Extension of Art 31C struck down	Harmony and balance between Parts III and IV is part of the basic structure
8. Later decisions	*Unni Krishnan* (1993); *Olga Tellis* (1985); others	DPSPs read into Fundamental Rights, especially Art 21

3. DPSPs as Aids to Interpret Fundamental Rights

1. **Right to livelihood** (Art 39(a)) read into Art 21 (*Olga Tellis*, 1985).
2. **Equal pay for equal work** (Art 39(d)) read with Arts 14 and 16 (*Randhir Singh v Union of India*, 1982).
3. **Free legal aid** (Art 39A) read into Art 21 (*M.H. Hoskot*, 1978).
4. **Education** (Arts 41, 45) read into Art 21 (*Unni Krishnan*, 1993), now Art 21A.
5. **Health** (Art 47) read into Art 21 (*Paschim Banga Khet Mazdoor Samity*, 1996).
6. **Environment** (Art 48A) read into Art 21 (*M.C. Mehta* cases).
7. **Cow protection** (Art 48) as a reasonable restriction under Art 19(6) (*State of Gujarat v Mirzapur Moti Kureshi Kassab Jamat*, 2005).

Flowchart: Evolution of the FR–DPSP relationship





Examples

- A land ceiling law implementing Art 39(b) restricts the right to property but is protected by Art 31C and Art 31A.
- The right to free legal aid under Art 39A has been read into Art 21, so an accused who cannot afford a lawyer must be given one.

Case Laws

Case Law: Minerva Mills Ltd. v Union of India

Year: 1980 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Sick Textile Undertakings (Nationalisation) Act, 1974 allowed the Government to take over Minerva Mills. The owners challenged it and also challenged sections 4 and 55 of the 42nd Amendment, which extended Article 31C to all Directive Principles and inserted clauses (4) and (5) in Article 368 (barring judicial review of amendments).

Legal Issue: (i) Can Parliament give primacy to all DPSPs over Fundamental Rights in Articles 14 and 19? (ii) Can Parliament exclude judicial review of constitutional amendments?

Court's Decision / What the Court Held: The Court struck down section 4 (extension of Article 31C) and section 55 (Article 368(4) and (5)) of the 42nd Amendment. It held that "the Indian Constitution is founded on the bedrock of the balance between Parts III and IV. To give absolute primacy to one over the other is to disturb the harmony of the Constitution." The harmony and balance between Fundamental Rights and Directive Principles is an essential feature of the basic structure. Limited amending power is also a basic feature.

Relevance to the Topic: The leading case on the relationship between Fundamental Rights and DPSPs.

Case Law: In re Kerala Education Bill (on harmonious construction)

Year: 1958 **Court:** Supreme Court of India (Advisory opinion)

Facts / Background: The Kerala Education Bill sought to regulate aided schools, including minority schools (facts in Topic 2.35).

Legal Issue: How should the courts deal with an apparent conflict between Fundamental Rights and DPSPs?

Court's Decision / What the Court Held: Chief Justice S.R. Das observed that although DPSPs cannot override Fundamental Rights, the courts should not ignore them. In determining the scope of Fundamental Rights, the courts should adopt the principle of harmonious construction and attempt to give effect to both as far as possible.

Relevance to the Topic: The case introduced the doctrine of harmonious construction between Parts III and IV.

Important Points

- Fundamental Rights are justiciable; DPSPs are not.
- *Champakam* (1951): FRs prevail; *Kerala Education Bill* (1958): harmonious construction.
- *Kesavananda* (1973): FRs and DPSPs are complementary.
- *Minerva Mills* (1980): balance between Parts III and IV is part of the basic structure.
- Courts read DPSPs into Fundamental Rights (Art 21) to widen their content.

Remember: Fundamental Rights and DPSPs are "the conscience of the Constitution" (Granville Austin).

UNIT IV
Fundamental Duties

Topics in this Unit

4.1 Evolution of Fundamental Duties (42nd Amendment 1976)

4.2 Relationship between fundamental rights and duties

4.3 Legislative and Judicial efforts for enforcement of Fundamental Duties

Topic 4.1: Evolution of Fundamental Duties (42nd Amendment 1976)

Introduction

Rights and duties go together. While the original Constitution contained a detailed list of Fundamental Rights, it had no list of duties of citizens. In 1976, on the recommendation of the Swaran Singh Committee, Parliament added **Part IVA (Article 51A)** by the 42nd Amendment, listing ten Fundamental Duties. An eleventh duty was added by the 86th Amendment in 2002. These duties remind citizens of their obligations to the nation, society and fellow citizens.

Definition

> **Fundamental Duties** are the moral and civic obligations of every citizen of India listed in Article 51A (Part IVA) of the Constitution, intended to promote patriotism, national unity, respect for the Constitution and social harmony.

Detailed Explanation

1. Background

1. The idea was inspired by the Constitution of the former USSR (Soviet Union), which listed duties of citizens.
2. During the Emergency, the Government set up the **Swaran Singh Committee (1976)**, which recommended adding a chapter on Fundamental Duties. It recommended eight duties; the Government added ten.
3. The **42nd Amendment Act, 1976** inserted Part IVA and Article 51A, with effect from 3 January 1977.
4. The **86th Amendment Act, 2002** added clause (k).

2. The Eleven Fundamental Duties (Art 51A)

It shall be the duty of every citizen of India:

Clause	Duty
(a)	to abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem
(b)	to cherish and follow the noble ideals which inspired our national struggle for freedom
(c)	to uphold and protect the sovereignty, unity and integrity of India
(d)	to defend the country and render national service when called upon to do so
(e)	to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women
(f)	to value and preserve the rich heritage of our composite culture

Clause	Duty
(g)	to protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures
(h)	to develop the scientific temper, humanism and the spirit of inquiry and reform
(i)	to safeguard public property and to abjure violence
(j)	to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement
(k)	who is a parent or guardian, to provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years (86th Amendment, 2002)

3. Features

1. Apply only to **citizens**, not foreigners.
2. **Non-justiciable:** there is no direct legal sanction for their violation in the Constitution.
3. Some are moral (e.g. cherish noble ideals), others civic (e.g. respect the National Flag).
4. They can be enforced through legislation.
5. They reflect Indian traditions and values.

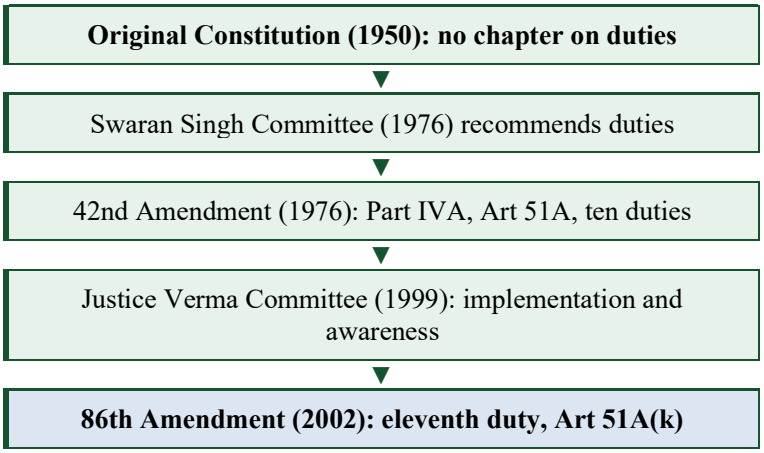
4. Recommendations Not Accepted

The Swaran Singh Committee also recommended a duty to pay taxes and penalties for non-compliance, but these were not included.

5. Justice Verma Committee (1999)

The Committee on Operationalisation of Fundamental Duties, chaired by Justice J.S. Verma, identified existing laws that implement Fundamental Duties and suggested ways to spread awareness of them.

Flowchart: Evolution of Fundamental Duties



Examples

- A citizen who damages public buses during a protest fails in his duty under Art 51A(i) and may be punished under the Prevention of Damage to Public Property Act, 1984.
- Parents who do not send their child aged 8 to school fail in their duty under Art 51A(k).

Case Laws

Case Law: AIIMS Students' Union v All India Institute of Medical Sciences

Year: 2002 **Court:** Supreme Court of India

Facts / Background: AIIMS reserved 33% of postgraduate seats for its own graduates (institutional preference) and provided further preferences. Students challenged the scheme as violating Article 14.

Legal Issue: Was the institutional reservation valid, and what is the importance of Fundamental Duties?

Court's Decision / What the Court Held: The Court struck down the excessive institutional reservation as unreasonable and violating Article 14. In doing so, the Court observed that Fundamental Duties, though not enforceable by writ, provide a valuable guide and aid to interpretation of constitutional and legal issues. Fundamental Duties are as important as Fundamental Rights, and the duty in Art 51A(j) to strive towards excellence was relevant in judging the scheme, which promoted mediocrity.

Relevance to the Topic: The case shows that Fundamental Duties are relevant in interpreting the Constitution and laws.

Important Points

- Fundamental Duties were added by the 42nd Amendment (1976) on the Swaran Singh Committee's recommendation.
- Part IVA, Art 51A; originally ten duties, now eleven (86th Amendment, 2002).
- Inspired by the USSR Constitution.
- They apply only to citizens and are non-justiciable.
- Justice Verma Committee (1999) recommended ways to implement them.
- Courts use them as aids to interpretation (*AIIMS Students' Union*, 2002).

Remember: There are now eleven Fundamental Duties.

Topic 4.2: Relationship between fundamental rights and duties

Introduction

Rights and duties are two sides of the same coin. A right of one person is a duty of others to respect it. Mahatma Gandhi said that the true source of rights is duty. The Constitution guarantees Fundamental Rights (Part III) and lists Fundamental Duties (Part IVA). Understanding their relationship helps balance individual liberty with social responsibility.

Definition

> The **relationship between Fundamental Rights and Fundamental Duties** refers to their correlative and complementary nature: rights give individuals freedom, while duties remind them to exercise that freedom responsibly and to respect the rights of others and the interests of the nation.

Detailed Explanation

1. Correlation of Rights and Duties

1. Every right implies a duty on others to respect it (e.g. A's right to life implies everyone's duty not to harm A).
2. Rights without duties may lead to anarchy; duties without rights may lead to tyranny.
3. Fundamental Duties encourage citizens to use rights responsibly.

2. Comparison

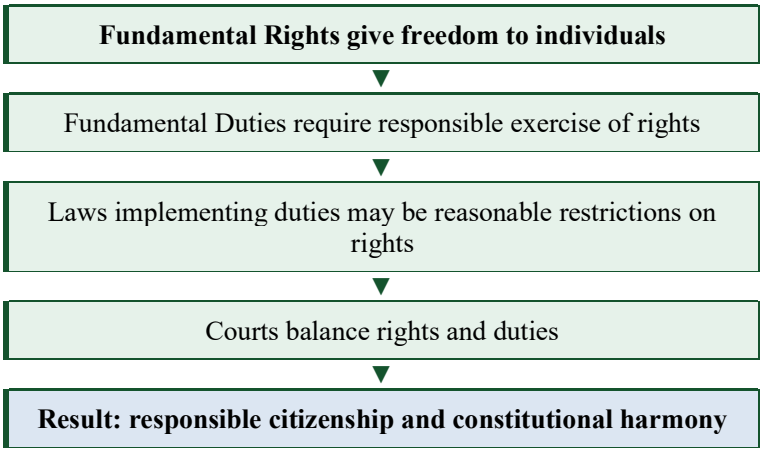
Point	Fundamental Rights	Fundamental Duties
Part	Part III (Arts 12–35)	Part IVA (Art 51A)
Origin	Original Constitution	42nd Amendment (1976)
Source	US Bill of Rights, etc.	USSR Constitution
Holder	Citizens and non-citizens (depending on the right)	Only citizens
Enforceability	Justiciable	Non-justiciable (unless enforced by law)
Nature	Restrict the State	Obligations of citizens

3. How Duties Relate to Rights

1. **Duties as reasonable restrictions:** a law implementing a Fundamental Duty may be treated as a reasonable restriction on a Fundamental Right (e.g. a ban on cow slaughter linked to Art 51A(g) and Art 48).

2. **Duties as aids to interpretation:** courts use duties to interpret the scope of rights (e.g. duty to respect the National Flag and right to fly it, *Naveen Jindal*, 2004).
3. **Duties and corresponding rights:** Art 51A(k) (duty of parents to provide education) corresponds to Art 21A (right of children to education); Art 51A(g) (protect environment) corresponds to the Art 21 right to a healthy environment.
4. **Balance:** duties cannot be used to deny rights unless a valid law imposes a reasonable restriction.

Flowchart: Rights and duties working together



Examples

- A citizen has the right to free speech (Art 19(1)(a)), but also the duty to promote harmony (Art 51A(e)). A law punishing hate speech balances the two.
- A child has the right to education (Art 21A), and the parents have the duty to provide opportunities for it (Art 51A(k)).

Case Laws

Case Law: Bijoe Emmanuel v State of Kerala

Year: 1986 **Court:** Supreme Court of India

Facts / Background: Three children belonging to the Jehovah's Witnesses faith stood respectfully during the singing of the National Anthem at their school, but did not sing, because their religion did not allow them to join in any rituals other than their own. The headmistress expelled them on the basis of circulars issued by the Kerala Education Department.

Legal Issue: Does expelling students who stand respectfully but do not sing the National Anthem violate their Fundamental Rights, and how does this relate to the duty to respect the National Anthem?

Court's Decision / What the Court Held: The Court held that the expulsion violated their rights under Article 19(1)(a) (which includes the right to remain silent) and Article 25 (freedom of conscience and religion). Standing respectfully during the anthem shows proper respect; there is no legal provision obliging anyone to sing it, and the circulars were not "law" for the purposes of Article 19(2). The Court said: "Our tradition teaches tolerance; our philosophy preaches tolerance; our Constitution practises tolerance; let us not dilute it."

Relevance to the Topic: The case shows how Fundamental Duties (Art 51A(a): respect for the National Anthem) must be balanced with Fundamental Rights, and that duties cannot override rights without a valid law.

Important Points

- Rights and duties are correlative and complementary.
- Fundamental Duties apply only to citizens and are non-justiciable.
- Laws implementing duties may be reasonable restrictions on rights.
- Duties are aids to interpret rights.
- *Bijoe Emmanuel* (1986): duty to respect the anthem does not compel singing in violation of Arts 19 and 25.

Remember: Duties guide the use of rights; they do not cancel rights.

Topic 4.3: Legislative and Judicial efforts for enforcement of Fundamental Duties

Introduction

Fundamental Duties are not directly enforceable by courts. However, they can be enforced through legislation, and courts have used them to interpret laws and to issue directions in public interest litigation. Many laws, some passed even before 1976, give effect to these duties. This topic explains the legislative and judicial efforts to enforce Fundamental Duties.

Definition

> **Enforcement of Fundamental Duties** refers to the measures taken by the legislature (through laws) and the judiciary (through interpretation and directions) to give practical effect to the duties listed in Article 51A.

Detailed Explanation

1. Legislative Efforts

Duty	Laws giving effect to it
51A(a) respect for the Constitution, National Flag and National Anthem	Prevention of Insults to National Honour Act, 1971; Flag Code of India, 2002
51A(c) sovereignty, unity and integrity	Unlawful Activities (Prevention) Act, 1967; Bharatiya Nyaya Sanhita, 2023 (offences against the State)
51A(d) defend the country	Laws on national service and the armed forces
51A(e) promote harmony; dignity of women	Protection of Civil Rights Act, 1955; BNS provisions on promoting enmity (s.196); Representation of the People Act, 1951 (corrupt practices); Dowry Prohibition Act, 1961
51A(g) protect the environment	Wild Life (Protection) Act, 1972; Forest (Conservation) Act, 1980; Environment (Protection) Act, 1986; Water and Air Acts
51A(i) safeguard public property	Prevention of Damage to Public Property Act, 1984
51A(k) education of children	Right of Children to Free and Compulsory Education Act, 2009

2. Recommendations of the Justice Verma Committee (1999)

1. Identified existing laws that give effect to the duties.
2. Recommended that Fundamental Duties be taught in schools and colleges.
3. Suggested awareness programmes and inclusion in teacher training.

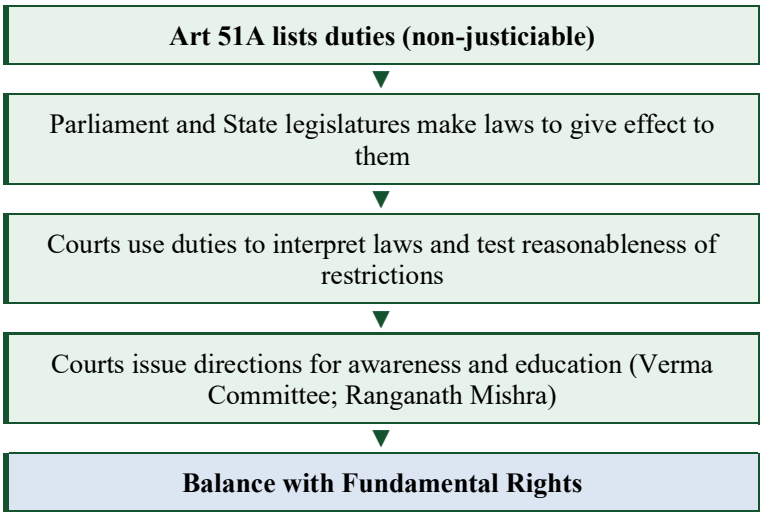
3. Judicial Efforts

1. **Aid to interpretation:** courts use Fundamental Duties to interpret statutes and the Constitution (*AIIMS Students' Union*, 2002).
2. **Reasonable restrictions:** laws implementing duties have been upheld as reasonable restrictions on rights (*State of Gujarat v Mirzapur Moti Kureshi Kassab Jamat*, 2005, linking Art 51A(g) and Art 48 to the ban on cow slaughter).
3. **Environmental protection:** courts relied on Art 51A(g) in many environmental cases (*M.C. Mehta* cases, including directions for environmental education).
4. **Awareness of duties:** in *Ranganath Mishra v Union of India* (2003), the Supreme Court directed the Union to consider the recommendations of the Justice Verma Committee for spreading awareness of Fundamental Duties.
5. **National Anthem:** in *Shyam Narayan Chouksey v Union of India*, the Court in 2016 directed that the National Anthem be played in cinema halls before films; in 2018 it modified this to make it optional, leaving the matter to the Government.

4. Limitations

1. Duties are non-justiciable; courts cannot punish a citizen directly for not performing a duty unless a law provides for it.
2. Some duties are vague (e.g. "strive towards excellence").
3. Enforcement through compulsion may conflict with Fundamental Rights (*Bijoe Emmanuel*, 1986).

Flowchart: Enforcement of Fundamental Duties



Examples

- A person who burns the National Flag in public can be punished under the Prevention of Insults to National Honour Act, 1971, which gives effect to Art 51A(a).

- A factory that pollutes a river can be closed down by the court, relying on Arts 21, 48A and 51A(g).

Case Laws

Case Law: Shyam Narayan Chouksey v Union of India

Year: 2016 (interim order) and 2018 (modification) **Court:** Supreme Court of India

Facts / Background: A PIL sought directions for showing proper respect to the National Anthem, including playing it in cinema halls before the screening of films, and preventing its commercial exploitation or misuse.

Legal Issue: Can the court direct that the National Anthem be played in cinema halls and that the audience stand up, as a way of enforcing the duty to respect the National Anthem?

Court's Decision / What the Court Held: In an interim order in November 2016, the Court directed that the National Anthem be played in all cinema halls before the feature film, with the audience standing up, relying on the Fundamental Duty in Article 51A(a). In January 2018, the Court modified its order, making playing the anthem in cinema halls optional and leaving it to the Central Government to frame guidelines after considering the report of an inter-ministerial committee.

Relevance to the Topic: The case shows both the judicial effort to enforce Fundamental Duties and the caution needed to balance them with individual rights.

Case Law: State of Gujarat v Mirzapur Moti Kureshi Kassab Jamat

Year: 2005 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: The Bombay Animal Preservation (Gujarat Amendment) Act, 1994 imposed a total ban on the slaughter of cows and their progeny, including bulls and bullocks. Butchers challenged it as an unreasonable restriction on their right to trade under Article 19(1)(g).

Legal Issue: Is a total ban on the slaughter of cow progeny a reasonable restriction, and what is the role of DPSPs and Fundamental Duties?

Court's Decision / What the Court Held: By majority, the Court upheld the ban as a reasonable restriction in the interest of the general public under Article 19(6). It held that Articles 48 and 48A (DPSP) and Article 51A(g) (duty to have compassion for living creatures) must be read together; a restriction implementing these can be reasonable, and the concept of reasonableness must be judged in the light of Directive Principles and Fundamental Duties.

Relevance to the Topic: The case shows Fundamental Duties being used to test the reasonableness of restrictions on Fundamental Rights.

Important Points

- Fundamental Duties are enforced mainly through legislation.
- Important laws: Prevention of Insults to National Honour Act, 1971; Wild Life Protection Act, 1972; Environment Protection Act, 1986; RTE Act, 2009.
- Justice Verma Committee (1999) recommended ways to operationalise duties.
- Courts use duties to interpret laws and to test reasonableness (*Mirzapur Moti Kureshi*, 2005).
- *Shyam Narayan Chouksey* (2016, 2018): directions on the National Anthem.

Remember: Fundamental Duties are enforceable only through laws, not directly through writs.

UNIT V
Amendment of the Constitution

Topics in this Unit

5.1 Need of Amending the Constitution

5.2 Methods and process of Amendment

5.3 Doctrine of Basic Structure

Topic 5.1: Need of Amending the Constitution

Introduction

A constitution is made for the present, but it must also serve future generations. Society, economy and political conditions change over time, and new problems arise that the framers could not foresee. If a constitution cannot be amended, it may become outdated, or people may resort to extra-constitutional methods to change it. Therefore, every constitution provides a method for its own amendment. Article 368 of the Indian Constitution deals with this power.

Definition

> **Amendment of the Constitution** means a formal change in the text of the Constitution, by way of addition, variation or repeal of any provision, made according to the procedure laid down in the Constitution itself (Article 368).

Detailed Explanation

1. Reasons for Amendment

1. **Changing social and economic conditions:** e.g. land reforms (1st, 4th, 17th Amendments), reservation (77th, 81st, 103rd Amendments).
2. **Overcoming judicial decisions:** e.g. the 1st Amendment after *Champakam Dorairajan*; the 24th Amendment after *Golaknath*.
3. **Reorganisation of States and territory:** e.g. the 7th Amendment (1956), 100th Amendment (2015).
4. **Strengthening democracy:** e.g. 61st Amendment (voting age to 18), 73rd and 74th Amendments (local self-government), 106th Amendment (women's reservation).
5. **Removing defects and ambiguities:** clarifying provisions.
6. **Introducing new rights and duties:** e.g. 86th Amendment (right to education), 42nd Amendment (Fundamental Duties).
7. **Federal and fiscal changes:** e.g. 101st Amendment (GST).
8. **Protecting democratic institutions after abuse:** e.g. 44th Amendment (1978) after the Emergency.

2. Balance between Rigidity and Flexibility

1. **Too rigid:** the Constitution may become outdated and may encourage revolution.
2. **Too flexible:** the Constitution may be changed by a temporary majority for political convenience.
3. The Indian Constitution strikes a balance: some provisions can be amended by simple majority, others need special majority, and federal provisions need ratification by States.

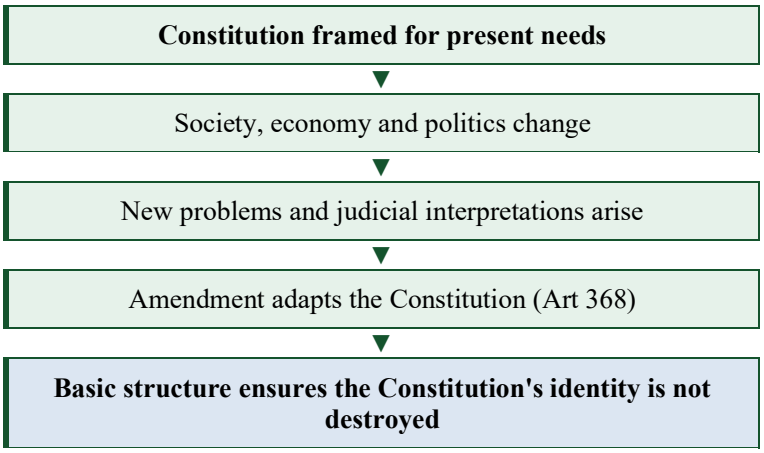
3. Views of the Framers

Dr. B.R. Ambedkar said in the Constituent Assembly that the Constitution should not be so rigid that it cannot adapt, nor so flexible that it can be changed easily. Jawaharlal Nehru also said that a constitution should be flexible enough to grow with the nation.

4. Limits of Amendment

The power to amend is not unlimited. It cannot be used to destroy the basic structure of the Constitution (*Kesavananda Bharati*, 1973). The idea is that amendment means changing the Constitution, not replacing it with a different one.

Flowchart: Why amendments are needed



Examples

- The 61st Amendment (1988) lowered the voting age from 21 to 18 years, to involve young people in democracy.
- The 101st Amendment (2016) introduced the Goods and Services Tax, changing the fiscal relationship between the Union and the States.

Case Laws

Case Law: Sri Sankari Prasad Singh Deo v Union of India

Year: 1951 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The Constitution (First Amendment) Act, 1951 inserted Articles 31A and 31B and the Ninth Schedule to protect land reform laws from challenge on the ground of violating Fundamental Rights. Zamindars challenged the Amendment, arguing that Parliament could not abridge Fundamental Rights, because Article 13(2) prohibited the State from making any "law" that takes away or abridges them.

Legal Issue: Can Parliament amend the Fundamental Rights under Article 368? Is a constitutional amendment "law" under Article 13(2)?

Court's Decision / What the Court Held: The Court unanimously held that the power to amend the Constitution under Article 368 includes the power to amend Fundamental Rights. "Law" in Article 13(2) means ordinary law made in the exercise of legislative power, not constitutional amendments made in the exercise of constituent power. The First Amendment was upheld.

Relevance to the Topic: The case recognised the wide power of Parliament to amend the Constitution to meet social needs, such as land reform; this view was later modified by *Golaknath* (1967) and *Kesavananda Bharati* (1973).

Important Points

- Amendments are needed to adapt the Constitution to changing needs.
- The Indian Constitution balances rigidity and flexibility.
- Over 100 amendments have been made.
- The amending power is limited by the basic structure (*Kesavananda Bharati*, 1973).
- *Shankari Prasad* (1951): Parliament can amend Fundamental Rights; amendment is not "law" under Art 13(2).

Remember: Amendment means change, not destruction, of the Constitution.

Topic 5.2: Methods and process of Amendment

Introduction

Article 368 lays down the procedure for amending the Constitution. Different provisions require different procedures, depending on their importance and federal character. In addition, some provisions can be changed by Parliament by a simple majority through ordinary legislation, which is not treated as an amendment under Article 368. The scope of the amending power has been the subject of a long debate between Parliament and the Supreme Court.

Definition

> **Article 368(1):** "Notwithstanding anything in this Constitution, Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article."

Detailed Explanation

1. Three Methods of Amendment

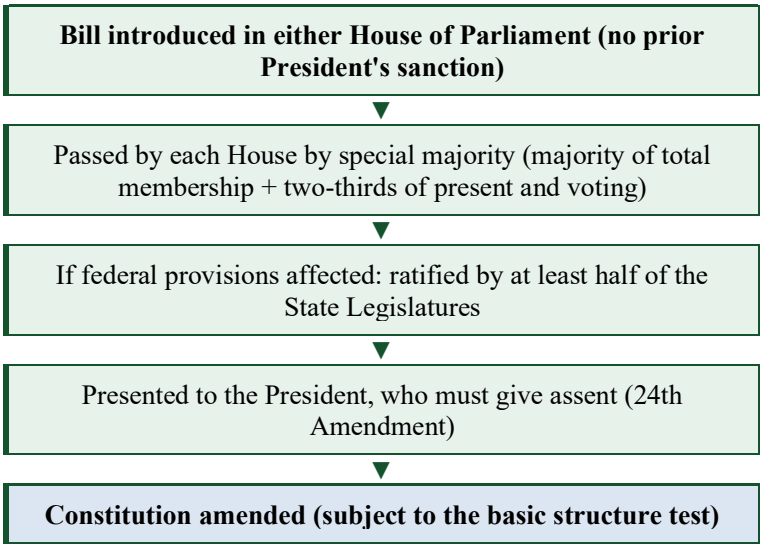
Method	Procedure	Examples of provisions
1. Simple majority of Parliament (outside Art 368)	Passed like an ordinary law; not deemed an amendment under Art 368	Arts 2, 3, 4 (new States); Art 169 (creation or abolition of Legislative Councils); Fifth and Sixth Schedules; citizenship (Art 11); quorum; salaries and allowances of MPs; use of English in Parliament
2. Special majority of Parliament (Art 368(2))	Majority of the total membership of each House **and** a majority of not less than two-thirds of the members present and voting	Fundamental Rights; DPSP; most other provisions
3. Special majority plus ratification by at least half of the State Legislatures (proviso to Art 368(2))	Special majority in each House, plus resolution of ratification by not less than one-half of the State Legislatures	Election of the President (Arts 54, 55); extent of executive power of Union and States (Arts 73, 162); Supreme Court and High Courts; distribution of legislative powers; Seventh Schedule; representation of States in Parliament; Art 368 itself; GST (Art 279A)

2. Procedure under Article 368

1. A Bill for amendment can be introduced only in either House of Parliament, not in a State Legislature.

2. It can be introduced by a Minister or a private member; no prior permission of the President is required.
3. It must be passed in each House by a special majority. There is **no provision for a joint sitting** in case of disagreement.
4. If the Bill affects federal provisions, it must be ratified by at least half of the State Legislatures (by simple majority); no time limit is prescribed.
5. The Bill is then presented to the President, who **must give his assent** (Art 368(2), as amended by the 24th Amendment, 1971); he cannot withhold assent or return the Bill.
6. The Constitution stands amended in accordance with the terms of the Bill.

Flowchart: Procedure for a constitutional amendment under Article 368



3. Debate on the Scope of the Amending Power

Case / Amendment	Holding
Shankari Prasad (1951)	Parliament can amend Fundamental Rights; amendment is not "law" under Art 13(2)
Sajjan Singh v State of Rajasthan (1965)	Same view (Hidayatullah and Mudholkar JJ. expressed doubts)
Golaknath v State of Punjab (1967)	Amendment is "law" under Art 13(2); Parliament cannot take away or abridge Fundamental Rights (prospective overruling)
24th Amendment (1971)	Art 13(4) and Art 368(3) inserted: Art 13 does not apply to amendments; Art 368 contains the power to amend; President must assent
Kesavananda Bharati (1973)	*Golaknath* overruled; Parliament can amend any provision, but cannot destroy the basic structure
42nd Amendment (1976)	Art 368(4) and (5): no amendment can be questioned in court; no limit on amending power

Case / Amendment	Holding
Minerva Mills (1980)	Art 368(4) and (5) struck down; limited amending power is a basic feature

4. Important Amendments

Amendment	Year	Subject
1st	1951	Arts 15(4), 31A, 31B, Ninth Schedule; restrictions on free speech
7th	1956	Reorganisation of States
24th	1971	Power of Parliament to amend Fundamental Rights
42nd	1976	"Mini Constitution": Preamble, Fundamental Duties, DPSPs, curbs on courts
44th	1978	Restored safeguards; property removed from Part III; Emergency safeguards
52nd	1985	Anti-defection law (Tenth Schedule)
73rd and 74th	1992	Panchayats and municipalities
86th	2002	Right to education (Art 21A)
101st	2016	GST
103rd	2019	EWS reservation
106th	2023	Reservation of one-third seats for women in Lok Sabha and State Assemblies

Examples

- The 101st Amendment (GST) required ratification by at least half of the States because it affected the distribution of taxing powers.
- The creation of Telangana did not require an amendment under Article 368; it was done by an ordinary law under Articles 3 and 4.

Case Laws

Case Law: I.C. Golaknath v State of Punjab

Year: 1967 **Court:** Supreme Court of India (eleven-judge bench)

Facts / Background: The Golaknath family owned over 500 acres of land in Punjab. Under the Punjab Security of Land Tenures Act, 1953, part of their land was declared surplus. They challenged the Act and the 17th Amendment (which placed it in the Ninth Schedule) as violating their Fundamental Rights to property and equality.

Legal Issue: Can Parliament amend the Constitution so as to take away or abridge Fundamental Rights?

Court's Decision / What the Court Held: By a 6:5 majority, the Court held that a constitutional amendment is "law" under Article 13(2), and therefore Parliament cannot amend Part III so as to take away or abridge Fundamental Rights. The Court held that Article 368 only laid down the procedure for amendment, and the power to amend came from Article 248 and Entry 97 (residuary power). Applying the doctrine of **prospective overruling**, it held that the earlier amendments (1st, 4th and 17th) would remain valid, but in future Parliament could not abridge Fundamental Rights. Parliament responded with the 24th Amendment, and *Golaknath* was overruled in *Kesavananda Bharati* (1973).

Relevance to the Topic: The case shows the debate on the scope of the amending power and introduced the doctrine of prospective overruling in India.

Important Points

- Three methods: simple majority (outside Art 368), special majority, and special majority plus State ratification.
- An amendment Bill can be introduced only in Parliament; there is no joint sitting; the President must assent.
- *Golaknath* (1967): Parliament cannot abridge Fundamental Rights; prospective overruling.
- 24th Amendment (1971): Art 13 does not apply to amendments.
- *Kesavananda* (1973): power to amend is limited by the basic structure.

Remember: Laws under Arts 2, 3, 4 and 169 are not "amendments" under Art 368, though they change the Constitution's text.

Topic 5.3: Doctrine of Basic Structure

Introduction

Can Parliament, using its power to amend, change anything in the Constitution, even its core identity? The Supreme Court answered this question in *Kesavananda Bharati v State of Kerala* (1973): Parliament can amend any provision of the Constitution, but it cannot alter or destroy its **basic structure**. This doctrine is one of the most important contributions of Indian constitutional law and has been followed in other countries.

Definition

> The **doctrine of basic structure** states that the power of Parliament to amend the Constitution under Article 368 does not include the power to alter or destroy the basic structure or essential features of the Constitution. Any amendment that does so is void.

Detailed Explanation

1. Origin

1. The idea was suggested by the German scholar Prof. Dietrich Conrad and by Justice Mudholkar in *Sajjan Singh* (1965).
2. It was laid down by a majority of 7:6 in *Kesavananda Bharati* (1973).

2. Features Recognised as Part of the Basic Structure

Basic feature	Case
Supremacy of the Constitution	*Kesavananda Bharati* (1973)
Republican and democratic form of government	*Kesavananda Bharati*
Secular character of the Constitution	*Kesavananda Bharati*; *S.R. Bommai* (1994)
Separation of powers	*Kesavananda Bharati*; *Indira Gandhi* (1975)
Federal character	*Kesavananda Bharati*; *S.R. Bommai*
Unity and integrity of the nation	*Kesavananda Bharati*
Rule of law	*Indira Gandhi v Raj Narain* (1975)
Free and fair elections	*Indira Gandhi v Raj Narain*
Judicial review	*Indira Gandhi*; *Minerva Mills* (1980); *L. Chandra Kumar* (1997)
Limited amending power	*Minerva Mills* (1980)
Harmony between Fundamental Rights and DPSPs	*Minerva Mills* (1980)
Independence of the judiciary	*S.P. Gupta* (1981); *NJAC case* (2015)

Basic feature	Case
Parliamentary system of government	*Kesavananda Bharati*
Principle of equality (essence of Arts 14, 19, 21)	*I.R. Coelho* (2007)

3. Development after Kesavananda

1. **Indira Gandhi v Raj Narain (1975):** clause (4) of Art 329A (39th Amendment) was struck down for violating the basic structure.
2. **Minerva Mills (1980):** Art 368(4) and (5) and the extension of Art 31C were struck down.
3. **Waman Rao (1981):** amendments made after 24 April 1973 can be tested against the basic structure.
4. **I.R. Coelho (2007):** laws added to the Ninth Schedule after 24 April 1973 can be tested against the basic structure.
5. **NJAC case (2015):** the 99th Amendment (National Judicial Appointments Commission) was struck down for violating judicial independence.
6. **Janhit Abhiyan (2022):** the 103rd Amendment (EWS) was upheld; it did not violate the basic structure.

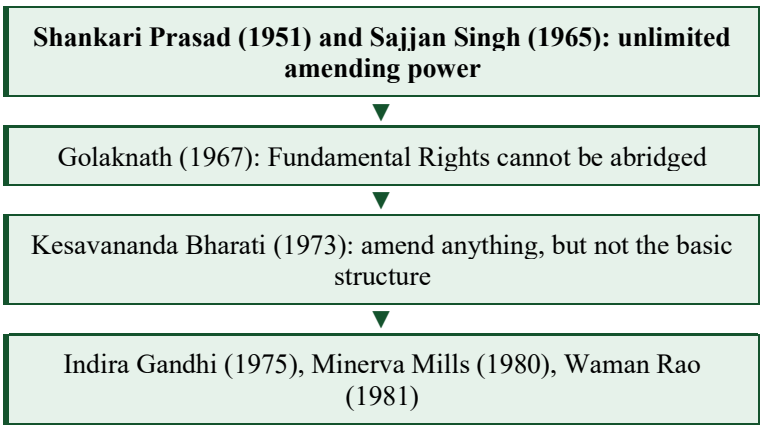
4. Significance

1. Protects the core identity of the Constitution from a temporary majority.
2. Strengthens constitutionalism and judicial review.
3. Balances parliamentary sovereignty with constitutional supremacy.

5. Criticism

1. The basic structure is not defined; judges decide its content.
2. It gives the judiciary power over the constituent power of Parliament.
3. Supporters respond that it prevents abuse, as shown during the Emergency.

Flowchart: Development of the basic structure doctrine



▼

I.R. Coelho (2007), NJAC (2015): doctrine applied and expanded

Examples

- If Parliament passes an amendment abolishing elections and making the Prime Minister's term permanent, it would be struck down as destroying democracy, a basic feature.
- An amendment that removes judicial review of all laws would be void as violating the basic structure.

Case Laws

Case Law: Kesavananda Bharati Sripadagalvaru v State of Kerala

Year: 1973 **Court:** Supreme Court of India (thirteen-judge bench)

Facts / Background: Swami Kesavananda Bharati, head of the Edneer Mutt in Kerala, challenged the Kerala Land Reforms Act, 1963, as amended, which affected the Mutt's property. During the proceedings, Parliament passed the 24th, 25th and 29th Amendments, which expanded Parliament's amending power, restricted the right to property, and placed the Kerala laws in the Ninth Schedule. The petitioner challenged these amendments.

Legal Issue: What is the extent of Parliament's power to amend the Constitution under Article 368? Can it amend Fundamental Rights and alter the basic features of the Constitution?

Court's Decision / What the Court Held: By a 7:6 majority, the Court held that: (i) *Golaknath* was overruled; Parliament can amend any provision of the Constitution, including Fundamental Rights; (ii) the 24th Amendment was valid; (iii) but the power of amendment is not unlimited; Parliament cannot alter or destroy the **basic structure** or framework of the Constitution; (iv) the first part of Article 31C was valid, but the second part (excluding judicial review of whether a law gives effect to Art 39(b) and (c)) was invalid. Different judges listed different basic features, such as supremacy of the Constitution, republican and democratic government, secularism, separation of powers and federalism.

Relevance to the Topic: The landmark case that established the basic structure doctrine.

Case Law: Supreme Court Advocates-on-Record Association v Union of India (NJAC case)

Year: 2015 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The 99th Amendment (2014) and the National Judicial Appointments Commission Act, 2014 replaced the collegium system of appointing judges with a National Judicial Appointments Commission (NJAC), consisting of the Chief Justice of India, two senior judges, the Union Law Minister and two eminent persons. The amendment was challenged as violating the independence of the judiciary.

Legal Issue: Does the 99th Amendment, which gave the executive and non-judicial members a role in the appointment of judges, violate the basic structure?

Court's Decision / What the Court Held: By a 4:1 majority, the Court struck down the 99th Amendment and the NJAC Act. It held that the independence of the judiciary is part of the basic structure, and primacy of the judiciary in judicial appointments is essential to it. The NJAC, which allowed the executive and non-judicial members to veto judicial appointments, violated the basic structure. The collegium system was revived.

Relevance to the Topic: The case is an important application of the basic structure doctrine to protect judicial independence.

Important Points

- Parliament can amend any provision, but not the basic structure (*Kesavananda Bharati*, 1973, 7:6).
- Basic features include supremacy of the Constitution, democracy, secularism, federalism, separation of powers, judicial review, rule of law and free elections.
- The doctrine was applied in *Indira Gandhi* (1975), *Minerva Mills* (1980), *I.R. Coelho* (2007) and the *NJAC case* (2015).
- Amendments after 24 April 1973 can be tested against the basic structure (*Waman Rao*, 1981).

Remember: The basic structure doctrine applies to constitutional amendments, not ordinary laws (which are tested against specific provisions).

UNIT VI
Emergency Provisions

Topics in this Unit

6.1 Need of Emergency Provisions
6.2 Types of Emergency
6.3 National Emergency
6.4 Constitutional / State Emergency
6.5 Financial Emergency
6.6 Impact of Emergency on Federalism and Fundamental Rights (SR Bommai Case)

Topic 6.1: Need of Emergency Provisions

Introduction

Every country may face extraordinary situations, such as war, armed rebellion, breakdown of government in a State, or a financial crisis. In such situations, the normal working of the Constitution may not be enough to protect the nation. Part XVIII of the Constitution (Articles 352 to 360) contains **emergency provisions**, which allow the Union to assume extraordinary powers. These provisions were inspired by the Government of India Act, 1935 and the Weimar Constitution of Germany.

Definition

> **Emergency provisions** are special constitutional provisions (Arts 352–360) that empower the Union Government to deal effectively with abnormal situations threatening the security, unity, constitutional machinery or financial stability of the country, by temporarily changing the federal structure and the operation of certain Fundamental Rights.

Detailed Explanation

1. Reasons for Emergency Provisions

1. **Security of the nation:** to deal with war, external aggression or armed rebellion.
2. **Unity and integrity:** India's diversity and the experience of Partition made the framers concerned about disintegration.
3. **Breakdown of constitutional machinery in States:** to ensure that the government of every State is carried on according to the Constitution (Art 355).
4. **Financial stability:** to deal with threats to the financial stability or credit of India.
5. **Effective central leadership in crises:** a federal system may be too slow in emergencies; the Constitution allows it to become unitary temporarily.

2. Views in the Constituent Assembly

1. Dr. Ambedkar defended the provisions as necessary, but hoped that Art 356 would remain a "dead letter" and be used only as a last resort.
2. Critics (such as H.V. Kamath and K.T. Shah) feared misuse and described them as a "fraud on the Constitution" and a step towards dictatorship.

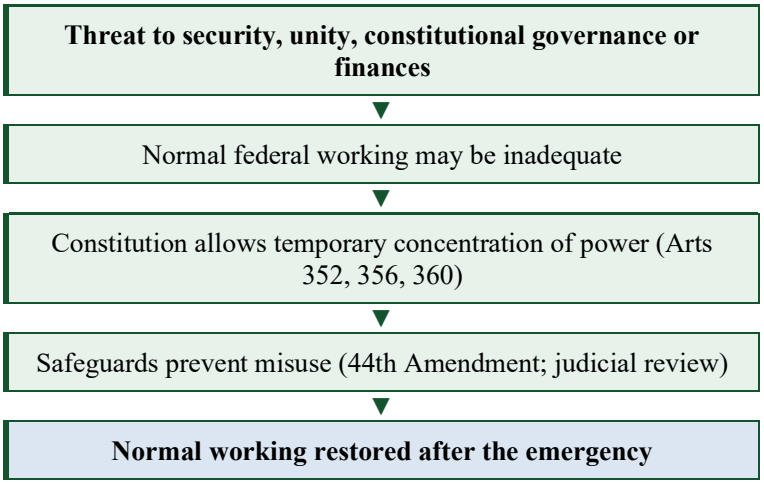
3. Duty of the Union: Article 355

"It shall be the duty of the Union to protect every State against external aggression and internal disturbance and to ensure that the government of every State is carried on in accordance with the provisions of this Constitution." This duty is the basis of the emergency provisions.

4. Experience of Misuse and Safeguards

1. The National Emergency of 1975–77 (on the ground of "internal disturbance") led to suspension of Fundamental Rights, mass detentions and censorship.
2. The **44th Amendment (1978)** introduced safeguards: "armed rebellion" replaced "internal disturbance"; written advice of the Cabinet; special majority for approval; Arts 20 and 21 cannot be suspended; judicial review restored.
3. *S.R. Bommai* (1994) limited the use of Art 356.

Flowchart: Why emergency provisions exist



Examples

- During a war, Parliament may need to make laws on subjects in the State List, such as police and public order, to coordinate national defence (Art 250).
- If a State Government refuses to follow the Constitution, the President may take over the administration of the State (Art 356).

Case Laws

This topic is mainly about the reasons and history of the emergency provisions, and there is no single case law that deals directly with the "need" for them. The leading judicial decisions on the use and limits of emergency powers are discussed in the following topics: *Makhan Singh v State of Punjab* (1964) and *ADM Jabalpur v Shivkant Shukla* (1976) on National Emergency, *Rameshwar Prasad v Union of India* (2006) on State Emergency, and *S.R. Bommai v Union of India* (1994) on the impact of emergency powers on federalism.

Important Points

- Emergency provisions are in Part XVIII (Arts 352–360).
- They are based on the duty of the Union under Art 355.
- Inspired by the Government of India Act, 1935 and the Weimar Constitution.

- They convert the federal system into a unitary one during emergencies.
- The 44th Amendment (1978) added safeguards against misuse.

Remember: Ambedkar hoped Art 356 would remain a "dead letter"; in practice it was used many times until *S.R. Bommai*.

Topic 6.2: Types of Emergency

Introduction

The Constitution provides for three types of emergency, each dealing with a different kind of crisis: a threat to the security of India, a breakdown of constitutional machinery in a State, and a threat to financial stability. This topic gives an overview and comparison of the three types; each is explained in detail in the following topics.

Definition

> The **three types of emergency** under the Constitution are: (1) National Emergency (Art 352); (2) State Emergency or President's Rule, also called Constitutional Emergency (Art 356); and (3) Financial Emergency (Art 360).

Detailed Explanation

1. Comparison of the Three Types

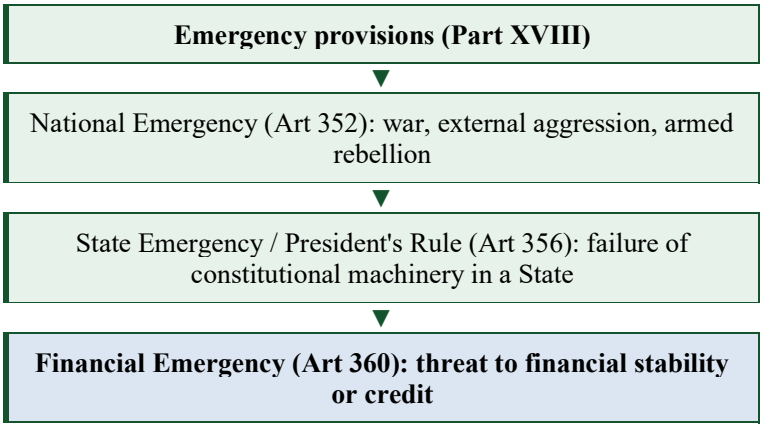
Point	National Emergency (Art 352)	State Emergency (Art 356)	Financial Emergency (Art 360)
Ground	War, external aggression or armed rebellion threatening the security of India or any part	Failure of constitutional machinery in a State	Threat to the financial stability or credit of India or any part
Basis	Written advice of the Union Cabinet	Report of the Governor or otherwise	President's satisfaction
Approval by Parliament	Within one month, by special majority	Within two months, by simple majority	Within two months, by simple majority
Duration	Six months at a time, extendable indefinitely with approval every six months	Six months at a time, up to a maximum of three years (beyond one year only with conditions)	Indefinite, until revoked
Revocation	By the President, or if the Lok Sabha passes a resolution disapproving it	By the President at any time	By the President at any time
Effect on Fundamental Rights	Art 19 suspended (war or external aggression only); enforcement of other rights may be suspended (except Arts 20, 21)	No direct effect	No direct effect

Point	National Emergency (Art 352)	State Emergency (Art 356)	Financial Emergency (Art 360)
Effect on federalism	Union can give directions to all States; Parliament can legislate on State List	Union takes over the State executive; Parliament legislates for the State	Union can give financial directions; salaries can be reduced
Times used	Three times (1962, 1971, 1975)	More than 100 times	Never

2. Terminology

1. **National Emergency** is also called "Proclamation of Emergency" (the Constitution uses this term only for Art 352).
2. **State Emergency** is commonly called "President's Rule" or "Constitutional Emergency".
3. **Financial Emergency** is under Art 360.

Flowchart: Types of emergency



Examples

- The Emergency of 1962 was declared during the war with China (external aggression).
- President's Rule was imposed in Jammu and Kashmir in 2018 after the coalition government lost its majority.

Case Laws

This is an overview topic. The leading cases on each type of emergency are discussed in Topics 6.3 (National Emergency), 6.4 (State Emergency) and 6.6 (*S.R. Bommai*). Financial Emergency has never been declared, and there is no case law on its actual use.

Important Points

- Three types: National (Art 352), State (Art 356), Financial (Art 360).

- National Emergency needs Cabinet's written advice and special majority approval within one month.
- State Emergency needs approval within two months; maximum duration three years.
- Financial Emergency has never been declared.

Remember: Only a National Emergency affects Fundamental Rights directly (Arts 358, 359).

Topic 6.3: National Emergency

Introduction

A National Emergency is the most serious type of emergency. It can be proclaimed when the security of India or any part of it is threatened by war, external aggression or armed rebellion. During such an emergency, the federal system becomes unitary, and certain Fundamental Rights may be suspended. Because of the misuse of this power in 1975–77, the 44th Amendment (1978) added important safeguards.

Definition

> **Article 352(1) (in part):** "If the President is satisfied that a grave emergency exists whereby the security of India or of any part of the territory thereof is threatened, whether by war or external aggression or armed rebellion, he may, by Proclamation, make a declaration to that effect in respect of the whole of India or of such part of the territory thereof as may be specified in the Proclamation."

Detailed Explanation

1. Grounds

1. **War**.
2. **External aggression**.
3. **Armed rebellion** (substituted for "internal disturbance" by the 44th Amendment, 1978).

The Emergency can be proclaimed even before the actual occurrence of war, aggression or rebellion, if the President is satisfied that there is imminent danger.

2. Safeguards Introduced by the 44th Amendment (1978)

1. The President can proclaim an Emergency only on the **written advice of the Union Cabinet** (Prime Minister and Cabinet Ministers).
2. The Proclamation must be **approved by both Houses within one month**, by a **special majority** (majority of total membership and two-thirds of members present and voting).
3. It remains in force for **six months** and can be extended for six months at a time with fresh approval.
4. The **Lok Sabha** can pass a resolution disapproving the Proclamation by a simple majority; one-tenth of its members can require a special sitting for this purpose.
5. It can be proclaimed for the whole of India or a part.
6. The President's satisfaction is **subject to judicial review** (the bar in clause (5), inserted by the 38th Amendment, was removed).

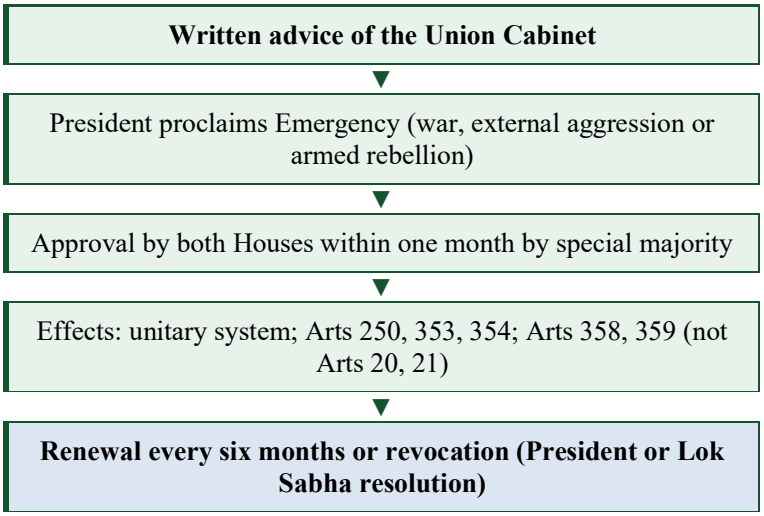
3. Effects of a National Emergency

Area	Effect
Executive	The Union can give directions to any State on the manner of exercising its executive power (Art 353(a))
Legislative	Parliament can make laws on State List subjects (Art 250); such laws cease 6 months after the Emergency ends; Parliament can confer powers on Union officers (Art 353(b))
Financial	The President can modify the distribution of revenues between the Union and States (Art 354)
Lok Sabha term	Can be extended by Parliament by one year at a time; not beyond six months after the Emergency ends (Art 83(2))
Fundamental Rights	Art 358: Art 19 automatically suspended (only when the Emergency is on the ground of war or external aggression); Art 359: President can suspend the right to move courts for enforcement of specified rights, except Arts 20 and 21

4. Emergencies Declared So Far

Year	Ground
1962	Chinese aggression (external aggression); continued until 1968
1971	War with Pakistan (external aggression); continued until 1977
1975	"Internal disturbance" (declared on 25 June 1975); revoked in March 1977

Flowchart: Proclamation of National Emergency



Examples

- If a neighbouring country attacks India, the President may proclaim a National Emergency, and Parliament may make laws on police and public order (State subjects).

- A Proclamation made on the ground of armed rebellion in a part of India does not automatically suspend Art 19, because Art 358 applies only to war or external aggression.

Case Laws

Case Law: Makhan Singh Tarsikka v State of Punjab

Year: 1964 **Court:** Supreme Court of India (seven-judge bench)

Facts / Background: During the National Emergency declared in 1962 (Chinese aggression), the President issued an order under Article 359 suspending the right to move any court for enforcement of Articles 14, 21 and 22 for persons detained under the Defence of India Act and Rules. Makhan Singh and others, detained under these Rules, filed habeas corpus petitions under section 491 CrPC, arguing that the Rules were invalid.

Legal Issue: During an Emergency, when the right to move courts for enforcement of certain Fundamental Rights is suspended under Article 359, can a detenu challenge his detention?

Court's Decision / What the Court Held: The Court held that the Presidential order under Article 359 barred petitions seeking enforcement of the specified Fundamental Rights (Arts 14, 21, 22), whether under Article 32, Article 226 or section 491 CrPC. However, a detenu could still challenge his detention on grounds other than violation of those Fundamental Rights, for example, that the detention was not in accordance with the Act under which it was made, or was mala fide. So the bar was limited to claims based on the suspended rights.

Relevance to the Topic: The case explains the effect of Article 359 during a National Emergency. (The later case of *ADM Jabalpur*, 1976, took a broader view, which was later overruled and corrected by the 44th Amendment.)

Case Law: ADM Jabalpur v Shivkant Shukla (on Emergency and Article 359)

Year: 1976 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: During the 1975 Emergency, the right to move courts for enforcement of Articles 14, 21 and 22 was suspended, and many persons were detained under MISA (facts in Topic 2.12).

Legal Issue: Could a detenu challenge his detention on any ground during the Emergency?

Court's Decision / What the Court Held: The majority held that no detenu could challenge his detention, even on the ground of illegality or mala fides, because Article 21 was the sole repository of the right to life and liberty. This view was later declared wrong; the 44th Amendment made Articles 20 and 21 non-suspendable, and *K.S. Puttaswamy* (2017) expressly overruled the majority view.

Relevance to the Topic: The case shows the dangers of unlimited emergency powers and led to the safeguards of the 44th Amendment.

Important Points

- Grounds: war, external aggression or armed rebellion (after the 44th Amendment).
- Written advice of the Cabinet; approval by special majority within one month; renewal every six months.
- The Lok Sabha can disapprove by simple majority.
- Effects: unitary system (Arts 250, 353, 354), extension of Lok Sabha, Arts 358 and 359 (not Arts 20, 21).
- Declared in 1962, 1971 and 1975.
- *Makhan Singh* (1964) and *ADM Jabalpur* (1976) on Art 359.

Remember: Art 358 operates only when the Emergency is on the ground of war or external aggression, not armed rebellion (44th Amendment).

Topic 6.4: Constitutional / State Emergency

Introduction

Under Article 356, if the government of a State cannot be carried on in accordance with the Constitution, the President may take over the functions of the State Government. This is commonly known as **President's Rule** or State Emergency. It has been used more than 100 times, often for political reasons, which led the Supreme Court in *S.R. Bommai* (1994) to lay down strict limits on its use.

Definition

> **Article 356(1) (in part):** "If the President, on receipt of a report from the Governor of a State or otherwise, is satisfied that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution, the President may by Proclamation (a) assume to himself all or any of the functions of the Government of the State...; (b) declare that the powers of the Legislature of the State shall be exercisable by or under the authority of Parliament; (c) make such incidental and consequential provisions as appear to the President to be necessary..."

Detailed Explanation

1. Grounds

1. **Failure of constitutional machinery** in the State (Art 356), on the report of the Governor "or otherwise".
2. **Failure to comply with Union directions** (Art 365): where a State fails to comply with or give effect to directions given by the Union, the President may hold that the State Government cannot be carried on according to the Constitution.

2. Procedure and Duration

1. The Proclamation must be **approved by both Houses within two months** by simple majority.
2. Once approved, it continues for **six months**, and can be extended by six months at a time, up to a **maximum of three years**.
3. Continuation **beyond one year** is possible only if (a) a National Emergency is in operation in the whole of India or the State, and (b) the Election Commission certifies that elections to the State Assembly cannot be held (44th Amendment).
4. It can be revoked by the President at any time without parliamentary approval.

3. Effects

1. The President assumes the functions of the State Government; the Governor administers the State on behalf of the President.

2. The State Legislature is suspended or dissolved; Parliament or the President (if delegated) makes laws for the State.
3. The President can promulgate ordinances for the State when Parliament is not in session.
4. The High Court's powers are not affected.
5. Fundamental Rights are not affected.

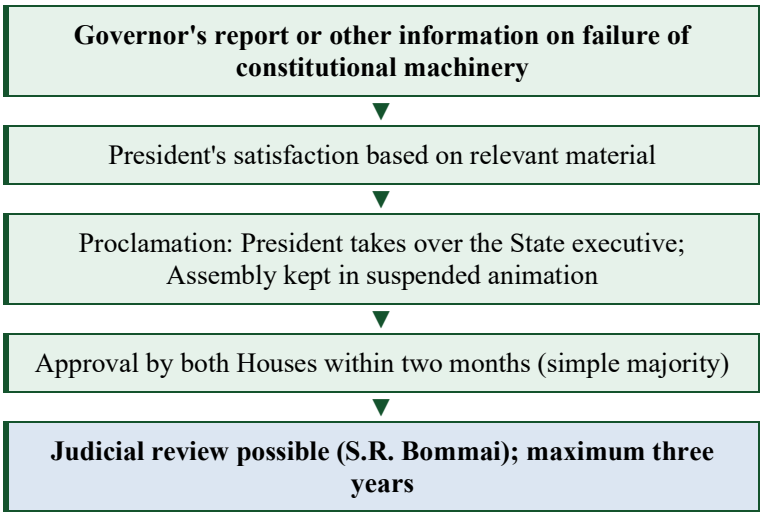
4. Limits Laid Down in S.R. Bommai (1994)

1. The Proclamation is **subject to judicial review**: the court can examine whether relevant material existed for the President's satisfaction and whether the power was used mala fide.
2. The Assembly should be kept in **suspended animation** until Parliament approves the Proclamation; it cannot be dissolved before approval.
3. The question of majority must be tested on the **floor of the House**, not in the Governor's office.
4. If the Proclamation is struck down, the court can restore the dismissed Government and the Assembly.
5. Art 356 should be used only in cases of real breakdown of constitutional machinery, as a last resort.
6. A State Government acting against secularism can be dismissed.

5. Sarkaria Commission and Punchhi Commission

1. The **Sarkaria Commission (1988)** recommended that Art 356 be used sparingly, as a last resort, after warning the State and exploring all alternatives.
2. The **Punchhi Commission (2010)** also recommended safeguards, including localised emergencies in certain cases.

Flowchart: Proclamation under Article 356



Examples

- A Chief Minister loses majority, but the Governor recommends President's Rule without allowing a floor test. Under *S.R. Bommai*, such a Proclamation is likely to be struck down.
- After the coalition Government in Jammu and Kashmir lost its majority in 2018, Governor's Rule and then President's Rule were imposed.

Case Laws

Case Law: Rameshwar Prasad v Union of India

Year: 2006 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: After the Bihar Assembly elections of February 2005, no party had a majority, and President's Rule was imposed with the Assembly in suspended animation. In May 2005, on the Governor's report that attempts were being made to form a Government by horse-trading, the Assembly was dissolved by a Presidential Proclamation, before any party could stake its claim.

Legal Issue: Was the dissolution of the Bihar Assembly on the basis of the Governor's report valid?

Court's Decision / What the Court Held: The Court held that the Proclamation dissolving the Assembly was unconstitutional. The Governor's report was based on unverified material and was made to prevent a particular party from forming a Government, which is not a valid ground. The Governor cannot shut out the formation of a Government on the ground of anticipated horse-trading. However, as fresh elections had already been ordered, the Court did not restore the Assembly.

Relevance to the Topic: The case applies *S.R. Bommai* and shows the limits on the use of Article 356.

Important Points

- Art 356: failure of constitutional machinery in a State; Art 365: failure to comply with Union directions.
- Approval within two months (simple majority); maximum three years; beyond one year only with conditions.
- President's Rule does not affect the High Court or Fundamental Rights.
- *S.R. Bommai* (1994): judicial review, suspended animation, floor test.
- *Rameshwar Prasad* (2006): dissolution of the Bihar Assembly held unconstitutional.

Remember: Art 356 should be the last resort, as the Sarkaria Commission recommended.

Topic 6.5: Financial Emergency

Introduction

A Financial Emergency can be proclaimed when the financial stability or credit of India, or any part of it, is threatened. It allows the Union to take control of the finances of the States and to reduce the salaries of all government servants, including judges. Although this power exists, it has never been used, even during the economic crisis of 1991.

Definition

> **Article 360(1):** "If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or of any part of the territory thereof is threatened, he may by a Proclamation make a declaration to that effect."

Detailed Explanation

1. Procedure and Duration

1. The Proclamation must be **approved by both Houses within two months** by simple majority.
2. Once approved, it continues **indefinitely** until revoked by the President; no repeated approval is required.
3. It can be revoked by the President at any time.
4. The 38th Amendment (1975) made the President's satisfaction final and non-justiciable, but the 44th Amendment (1978) removed this, so it is subject to judicial review.

2. Effects

1. **Financial directions to States:** the Union can direct any State to observe canons of financial propriety.
2. **Reduction of salaries:** the President can direct reduction of salaries and allowances of all or any class of persons serving the Union or a State, including **judges of the Supreme Court and High Courts**.
3. **Money Bills of States:** the Union can require that all Money Bills and financial Bills passed by the State Legislature be reserved for the President's consideration.
4. **Effect on federalism:** the financial autonomy of the States is effectively suspended.
5. **No effect on Fundamental Rights.**

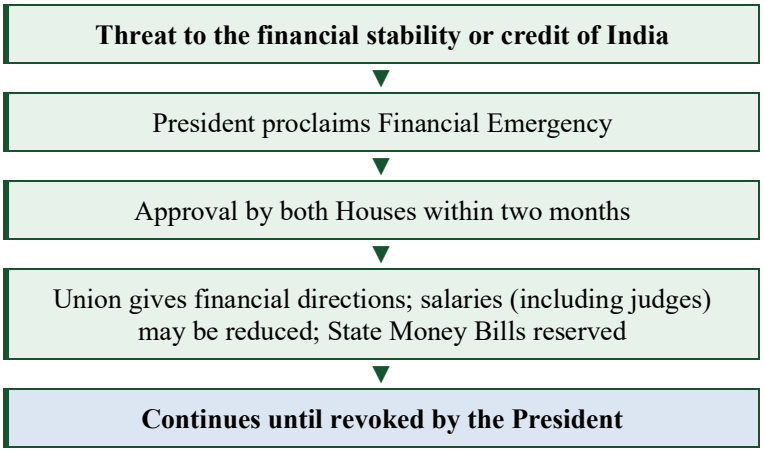
3. Why it Has Never Been Used

1. India has managed financial crises through ordinary measures, such as economic reforms (1991), Reserve Bank actions and borrowing.
2. Declaring a Financial Emergency may damage India's credibility and investor confidence.

4. Comparison with Other Emergencies

Point	Financial Emergency	National Emergency	State Emergency
Approval	2 months, simple majority	1 month, special majority	2 months, simple majority
Duration	Indefinite	6 months at a time	6 months at a time; max. 3 years
Fundamental Rights	Not affected	Affected (Arts 358, 359)	Not affected
Used	Never	3 times	More than 100 times

Flowchart: Financial Emergency under Article 360



Examples

- If the Government is unable to pay its debts and India's credit collapses, the President may proclaim a Financial Emergency and reduce the salaries of government employees.
- During a Financial Emergency, a State's budget may have to be reserved for the President's consideration.

Case Laws

There is no case law on the actual use of Article 360, because a Financial Emergency has never been declared in India. Questions about the scope of judicial review of a Proclamation under Article 360 would be decided on the principles laid down in *Minerva Mills* (1980) and *S.R. Bommai* (1994), which hold that emergency proclamations are not immune from judicial review where the satisfaction is based on irrelevant or no material, or is mala fide.

Important Points

- Art 360: threat to the financial stability or credit of India.
- Approval within two months by simple majority; continues indefinitely until revoked.

- Union can give financial directions, reduce salaries (including of judges), and reserve State Money Bills.
- It does not affect Fundamental Rights.
- It has never been declared.

Remember: A Financial Emergency is the only emergency that allows reduction of judges' salaries.

Topic 6.6: Impact of Emergency on Federalism and Fundamental Rights (SR Bommai Case)

Introduction

Emergency provisions change the normal working of the Constitution in two important ways: they make the federal system unitary, and they may restrict Fundamental Rights. Both effects carry the risk of misuse. The Supreme Court's judgment in *S.R. Bommai v Union of India* (1994) is the most important decision limiting the use of emergency powers, especially Article 356, and protecting federalism as part of the basic structure.

Definition

> The **impact of emergency on federalism** refers to the shift of power from the States to the Union during an emergency. The **impact on Fundamental Rights** refers to the suspension or restriction of certain rights under Articles 358 and 359 during a National Emergency.

Detailed Explanation

1. Impact on Federalism

Emergency	Effect on federalism
National Emergency	Union can give executive directions to States (Art 353(a)); Parliament can legislate on State subjects (Art 250); Union can modify the distribution of revenues (Art 354); the Constitution becomes practically unitary
State Emergency	The Union takes over the State executive; Parliament legislates for the State; the elected State Government is removed
Financial Emergency	Union controls State finances; State Money Bills may be reserved; salaries reduced

2. Impact on Fundamental Rights

1. **Art 358:** when a National Emergency is proclaimed on the ground of war or external aggression, the freedoms in Art 19 are automatically suspended; the State can make laws or take executive action restricting them. Such laws must contain a recital that they relate to the Emergency. They cease to have effect when the Emergency ends (except for things done during it).
2. **Art 359:** the President may by order suspend the right to move any court for the enforcement of specified Fundamental Rights during a National Emergency, except **Arts 20 and 21** (44th Amendment). The order must be approved by Parliament.
3. **No effect** of State or Financial Emergency on Fundamental Rights.

3. Safeguards after the 44th Amendment

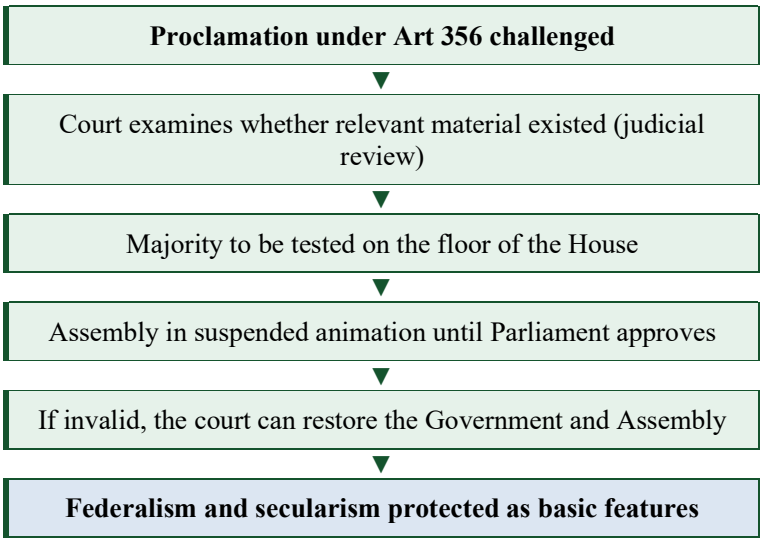
1. Arts 20 and 21 cannot be suspended.

2. Art 358 applies only when the Emergency is due to war or external aggression.
3. Laws restricting rights under Arts 358 and 359 must be related to the Emergency.
4. Judicial review of Proclamations is available.

4. The S.R. Bommai Case: Key Principles

1. Federalism and secularism are part of the basic structure.
2. A Proclamation under Art 356 is subject to judicial review on limited grounds: whether relevant material existed, whether the satisfaction was mala fide or based on irrelevant grounds.
3. The Union must disclose the material on which the President's satisfaction was based.
4. The floor of the House is the proper place to test the majority of a Government.
5. The State Assembly can be dissolved only after both Houses of Parliament approve the Proclamation; until then it can only be kept in suspended animation.
6. If the Proclamation is set aside, the court can restore the dismissed Government and revive the Assembly.
7. Art 356 should be used sparingly and only in cases of real failure of constitutional machinery.

Flowchart: How S.R. Bommai protects federalism



Examples

- After *S.R. Bommai*, the use of Article 356 has decreased significantly, because the Union knows that Proclamations can be struck down.
- During the 1975 Emergency, the enforcement of Arts 14, 21 and 22 was suspended; today, Arts 20 and 21 cannot be suspended.

Case Laws

Case Law: S.R. Bommai v Union of India

Year: 1994 **Court:** Supreme Court of India (nine-judge bench)

Facts / Background: S.R. Bommai was the Chief Minister of Karnataka. In 1989, the Governor reported that he had lost his majority after some members withdrew support, and recommended President's Rule without giving him an opportunity to prove his majority on the floor of the House, though he had offered to do so. President's Rule was imposed and the Assembly was dissolved. Similar Proclamations in Meghalaya, Nagaland, and the three BJP-ruled States of Madhya Pradesh, Rajasthan and Himachal Pradesh (after the Babri Masjid demolition in 1992) were also challenged and heard together.

Legal Issue: (i) Is a Proclamation under Article 356 subject to judicial review? (ii) What are the limits on the President's power? (iii) Can the Assembly be dissolved before Parliament's approval? (iv) Is secularism and federalism part of the basic structure?

Court's Decision / What the Court Held: The Court held that: (1) a Proclamation under Article 356 is subject to judicial review; the court can examine whether there was relevant material for the President's satisfaction and whether it was mala fide; (2) the floor of the House is the only proper place to test the majority; the Karnataka, Meghalaya and Nagaland Proclamations were held invalid; (3) the Assembly must be kept in suspended animation until both Houses approve the Proclamation; it cannot be dissolved before approval; (4) the court can restore the dismissed Government if the Proclamation is struck down; (5) federalism and secularism are basic features; the Proclamations in the three BJP-ruled States were upheld because those Governments had acted against secularism.

Relevance to the Topic: The landmark case limiting the use of Article 356 and protecting the federal structure; it is specifically mentioned in the syllabus.

Important Points

- Emergency converts the federal system into a unitary one, especially during a National Emergency.
- Art 358 suspends Art 19 (war or external aggression); Art 359 allows suspension of enforcement of other rights, except Arts 20 and 21.
- State and Financial Emergencies do not affect Fundamental Rights.
- *S.R. Bommai* (1994): judicial review of Art 356; floor test; suspended animation; federalism and secularism are basic features.

Remember: After *S.R. Bommai*, Art 356 cannot be used for political reasons without facing judicial review.

References / Bibliography

Primary Sources

- The Constitution of India (as amended up to date).
- Constituent Assembly Debates (1946–1949).

Books Prescribed

- J.N. Pandey, Constitutional Law of India, Central Law Agency, Allahabad.
- M.P. Jain, Indian Constitutional Law, Wadhwa & Co., Nagpur.
- V.N. Shukla, Constitution of India, Eastern Book Company, Lucknow.
- C.K. Takwani, Constitutional Law of India, Whytes & Co.
- H.M. Seervai, Constitutional Law of India (3 Volumes), Law & Justice Publishing Co.

Reference Books

- Granville Austin, The Indian Constitution: Cornerstone of a Nation, OUP.
- D.D. Basu, Introduction to the Constitution of India, LexisNexis.
- G.C.V. Subba Rao, Indian Constitutional Law, S. Gogia & Co., Hyderabad.
- B. Shiva Rao, The Framing of India's Constitution (5 Volumes), IIPA, New Delhi.
- M.V. Pylee, Constitutional Government in India, S. Chand.
- P.M. Bakshi, The Constitution of India, Universal Law Publishing.

Note on Case Laws

- Cases are cited with the court and year of judgment. Where a detail is not certain, the notes say so rather than guess. Students should read the full judgments of the landmark cases, especially Kesavananda Bharati (1973), Maneka Gandhi (1978), Indra Sawhney (1992), Minerva Mills (1980) and S.R. Bommai (1994).